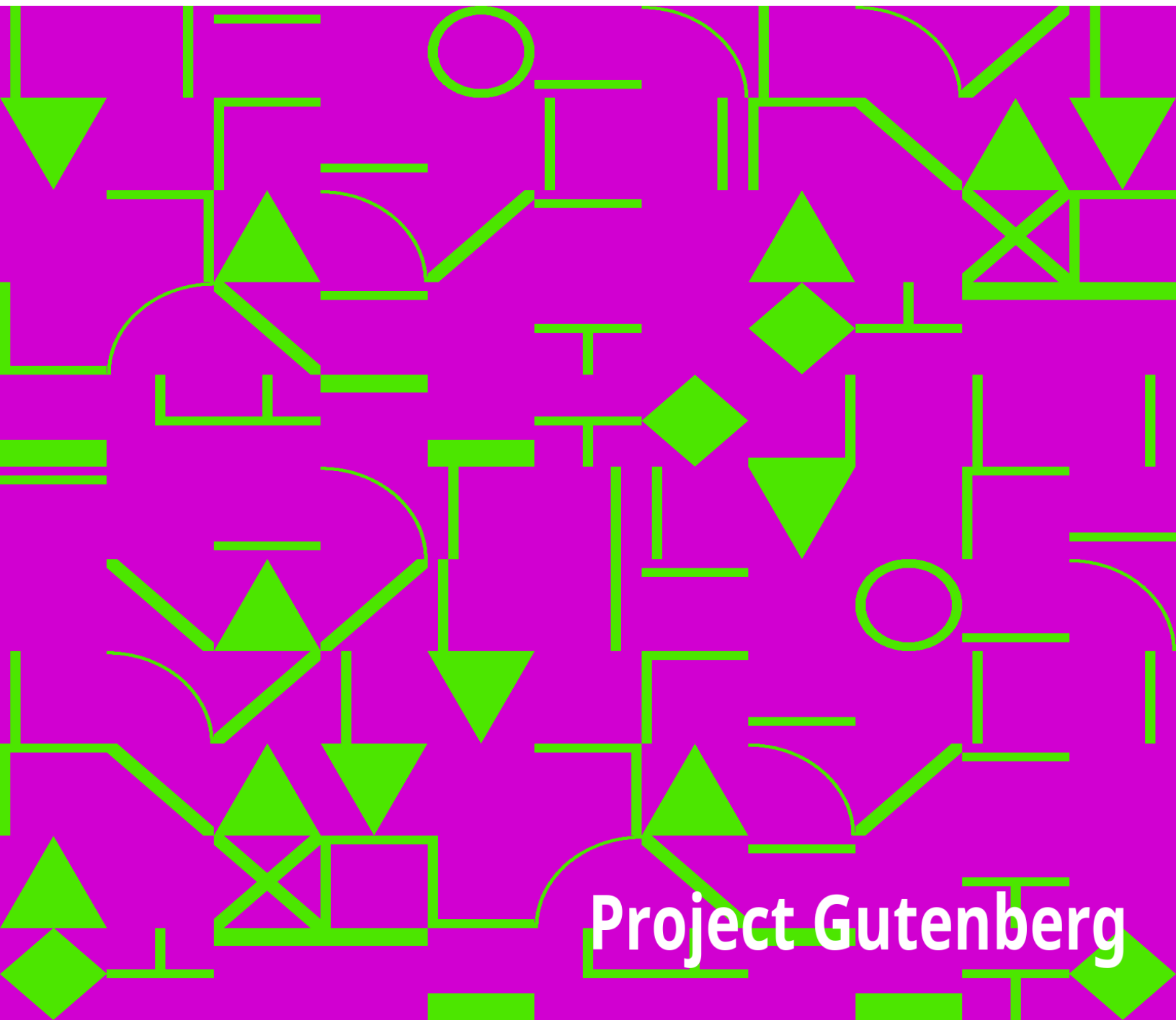


The Writings of Thomas Paine — Volume 2 (1779-1792): The Rights of Man

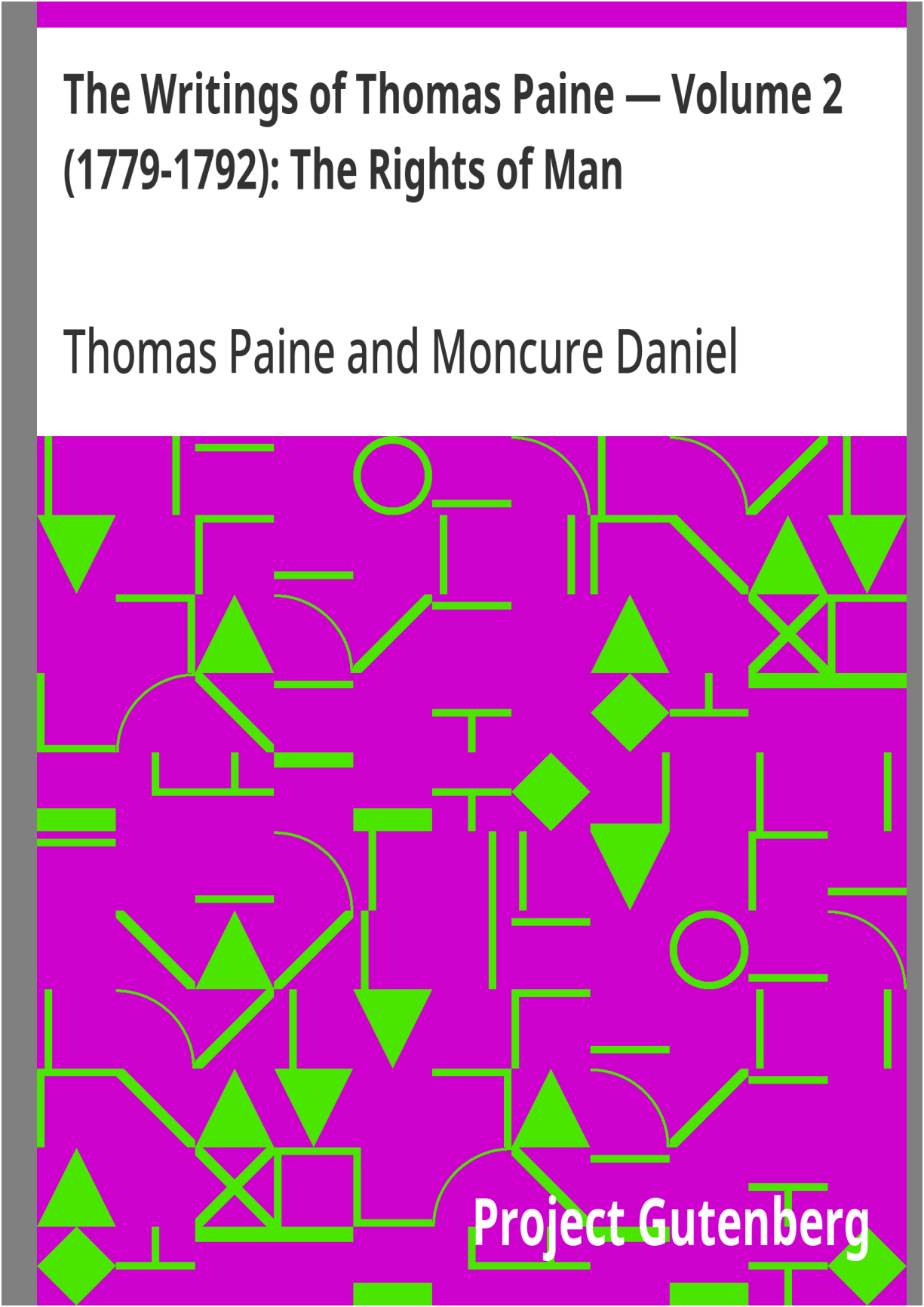
Thomas Paine and Moncure Daniel



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MAN ***

**THE WRITINGS OF THOMAS
PAINE**

VOLUME II.

By Thomas Paine

Collected And Edited By Moncure Daniel Conway

1779 - 1792

[Redactor's Note: Reprinted from the "The Writings of Thomas Paine Volume I" (1894 - 1896). The author's notes are preceded by a "*". A Table of Contents has been added for each part for the convenience of the reader which is not included in the printed edition. Notes are at the end of Part II.]

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EDITOR'S INTRODUCTION.

WHEN Thomas Paine sailed from America for France, in April, 1787, he was perhaps as happy a man as any in the world. His most intimate friend, Jefferson, was Minister at Paris, and his friend Lafayette was the idol of France. His fame had preceded him, and he at once became, in Paris, the centre of the same circle of savants and philosophers that had surrounded Franklin. His main reason for proceeding at once to Paris was that he might submit to the Academy of Sciences his invention of an iron bridge, and with its favorable verdict he came to England, in September. He at once went to his aged mother at Thetford, leaving with a publisher (Ridgway), his "Prospects on the Rubicon." He next made arrangements to patent his bridge, and to construct at Rotherham the large model of it exhibited on Paddington Green, London. He was welcomed in England by leading statesmen, such as Lansdowne and Fox, and above all by Edmund Burke, who for some time had him as a guest at Beaconsfield, and drove him about in various parts of the country. He had not the slightest revolutionary purpose, either as regarded England or France. Towards Louis XVI. he felt only gratitude for the services he had rendered America, and towards George III. he felt no animosity whatever. His four months' sojourn in Paris had convinced him that there was approaching a reform of that country after the American model, except that the Crown would be preserved, a compromise he approved, provided the throne should not be hereditary. Events in France travelled more swiftly than he had anticipated, and Paine was summoned by Lafayette, Condorcet, and others, as an adviser in the formation of a new constitution.

Such was the situation immediately preceding the political and literary duel between Paine and Burke, which in the event turned out a tremendous war between Royalism and Republicanism in Europe. Paine was, both in France and in England, the inspirer of moderate counsels. Samuel Rogers relates that in early life he dined at a friend's house in London with Thomas Paine, when one of the toasts given was the "memory of Joshua,"—in allusion to the Hebrew leader's conquest of the kings of Canaan, and execution of them. Paine observed that he would not treat kings like Joshua.

"I 'm of the Scotch parson's opinion," he said, "when he prayed against Louis XIV.—`Lord, shake him over the mouth of hell, but don't let him drop!'" Paine then gave as his toast, "The Republic of the World,"—which Samuel Rogers, aged twenty-nine, noted as a sublime idea. This was Paine's faith and hope, and with it he confronted the revolutionary storms which presently burst over France and England.

Until Burke's arraignment of France in his parliamentary speech (February 9, 1790), Paine had no doubt whatever that he would sympathize with the movement in France, and wrote to him from that country as if conveying glad tidings. Burke's "Reflections on the Revolution in France" appeared November 1, 1790, and Paine at once set himself to answer it. He was then staying at the Angel Inn, Islington. The inn has been twice rebuilt since that time, and from its contents there is preserved only a small image, which perhaps was meant to represent "Liberty,"—possibly brought from Paris by Paine as an ornament for his study. From the Angel he removed to a house in Harding Street, Fetter Lane. Rickman says Part First of "Rights of Man" was finished at Versailles, but probably this has reference to the preface only, as I cannot find Paine in France that year until April 8. The book had been printed by Johnson, in time for the opening of Parliament, in February; but this publisher became frightened after a few copies were out (there is one in the British Museum), and the work was transferred to J. S. Jordan, 166 Fleet Street, with a preface sent from Paris (not contained in Johnson's edition, nor in the American editions). The pamphlet, though sold at the same price as Burke's, three shillings, had a vast circulation, and Paine gave the proceeds to the Constitutional Societies which sprang up under his teachings in various parts of the country.

Soon after appeared Burke's "Appeal from the New to the Old Whigs." In this Burke quoted a good deal from "Rights of Man," but replied to it only with exclamation points, saying that the only answer such ideas merited was "criminal justice." Paine's Part Second followed, published February 17, 1792. In Part First Paine had mentioned a rumor that Burke was a masked pensioner (a charge that will be noticed in connection with its detailed statement in a further publication); and as Burke had been formerly arraigned in Parliament, while Paymaster, for a very questionable proceeding, this charge no doubt hurt a good deal. Although the government did not follow Burke's suggestion of a prosecution at that time, there is little doubt that it was he who induced the prosecution of Part Second. Before the

trial came on, December 18, 1792, Paine was occupying his seat in the French Convention, and could only be outlawed.

Burke humorously remarked to a friend of Paine and himself, "We hunt in pairs." The severally representative character and influence of these two men in the revolutionary era, in France and England, deserve more adequate study than they have received. While Paine maintained freedom of discussion, Burke first proposed criminal prosecution for sentiments by no means libellous (such as Paine's Part First). While Paine was endeavoring to make the movement in France peaceful, Burke fomented the league of monarchs against France which maddened its people, and brought on the Reign of Terror. While Paine was endeavoring to preserve the French throne ("phantom" though he believed it), to prevent bloodshed, Burke was secretly writing to the Queen of France, entreating her not to compromise, and to "trust to the support of foreign armies" ("Histoire de France depuis 1789." Henri Martin, i., 151). While Burke thus helped to bring the King and Queen to the guillotine, Paine pleaded for their lives to the last moment. While Paine maintained the right of mankind to improve their condition, Burke held that "the awful Author of our being is the author of our place in the order of existence; and that, having disposed and marshalled us by a divine tactick, not according to our will, but according to his, he has, in and by that disposition, virtually subjected us to act the part which belongs to the place assigned us." Paine was a religious believer in eternal principles; Burke held that "political problems do not primarily concern truth or falsehood. They relate to good or evil. What in the result is likely to produce evil is politically false, that which is productive of good politically is true." Assuming thus the visionary's right to decide before the result what was "likely to produce evil," Burke vigorously sought to kindle war against the French Republic which might have developed itself peacefully, while Paine was striving for an international Congress in Europe in the interest of peace. Paine had faith in the people, and believed that, if allowed to choose representatives, they would select their best and wisest men; and that while reforming government the people would remain orderly, as they had generally remained in America during the transition from British rule to selfgovernment. Burke maintained that if the existing political order were broken up there would be no longer a people, but "a number of vague, loose individuals, and nothing more." "Alas!" he exclaims, "they little know how many a weary step is to be taken before they can form themselves into a

mass, which has a true personality." For the sake of peace Paine wished the revolution to be peaceful as the advance of summer; he used every endeavor to reconcile English radicals to some *modus vivendi* with the existing order, as he was willing to retain Louis XVI. as head of the executive in France: Burke resisted every tendency of English statesmanship to reform at home, or to negotiate with the French Republic, and was mainly responsible for the King's death and the war that followed between England and France in February, 1793. Burke became a royal favorite, Paine was outlawed by a prosecution originally proposed by Burke. While Paine was demanding religious liberty, Burke was opposing the removal of penal statutes from Unitarians, on the ground that but for those statutes Paine might some day set up a church in England. When Burke was retiring on a large royal pension, Paine was in prison, through the devices of Burke's confederate, the American Minister in Paris. So the two men, as Burke said, "hunted in pairs."

So far as Burke attempts to affirm any principle he is fairly quoted in Paine's work, and nowhere misrepresented. As for Paine's own ideas, the reader should remember that "Rights of Man" was the earliest complete statement of republican principles. They were pronounced to be the fundamental principles of the American Republic by Jefferson, Madison, and Jackson, - the three Presidents who above all others represented the republican idea which Paine first allied with American Independence. Those who suppose that Paine did but reproduce the principles of Rousseau and Locke will find by careful study of his well-weighed language that such is not the case. Paine's political principles were evolved out of his early Quakerism. He was potential in George Fox. The belief that every human soul was the child of God, and capable of direct inspiration from the Father of all, without mediator or priestly intervention, or sacramental instrumentality, was fatal to all privilege and rank. The universal Fatherhood implied universal Brotherhood, or human equality. But the fate of the Quakers proved the necessity of protecting the individual spirit from oppression by the majority as well as by privileged classes. For this purpose Paine insisted on surrounding the individual right with the security of the Declaration of Rights, not to be invaded by any government; and would reduce government to an association limited in its operations to the defence of those rights which the individual is unable, alone, to maintain.

From the preceding chapter it will be seen that Part Second of "Rights of Man" was begun by Paine in the spring of 1791. At the close of that year, or early in 1792, he took up his abode with his friend Thomas "Clio" Rickman, at No. 7 Upper Marylebone Street. Rickman was a radical publisher; the house remains still a book-binding establishment, and seems little changed since Paine therein revised the proofs of Part Second on a table which Rickman marked with a plate, and which is now in possession of Mr. Edward Truelove. As the plate states, Paine wrote on the same table other works which appeared in England in 1792.

In 1795 D. I. Eaton published an edition of "Rights of Man," with a preface purporting to have been written by Paine while in Luxembourg prison. It is manifestly spurious. The genuine English and French prefaces are given.

RIGHTS OF MAN

Being An Answer To Mr. Burke's Attack On The French Revolution

By Thomas Paine

Secretary For Foreign Affairs To Congress In The American War, And
Author Of The Works Entitled "Common Sense" And "A Letter To Abbé
Raynal"

DEDICATION

George Washington

President Of The United States Of America

Sir,

*I present you a small treatise in defence of those principles of
freedom which your exemplary virtue hath so eminently contributed to
establish. That the Rights of Man may become as universal as your
benevolence can wish, and that you may enjoy the happiness of seeing
the New World regenerate the Old, is the prayer of*

Sir,

Your much obliged, and

Obedient humble Servant,

Thomas Paine

PAINE'S PREFACE TO THE ENGLISH EDITION

From the part Mr. Burke took in the American Revolution, it was natural that I should consider him a friend to mankind; and as our acquaintance commenced on that ground, it would have been more agreeable to me to have had cause to continue in that opinion than to change it.

At the time Mr. Burke made his violent speech last winter in the English Parliament against the French Revolution and the National Assembly, I was in Paris, and had written to him but a short time before to inform him how prosperously matters were going on. Soon after this I saw his advertisement of the Pamphlet he intended to publish: As the attack was to be made in a language but little studied, and less understood in France, and as everything suffers by translation, I promised some of the friends of the Revolution in that country that whenever Mr. Burke's Pamphlet came forth, I would answer it. This appeared to me the more necessary to be done, when I saw the flagrant misrepresentations which Mr. Burke's Pamphlet contains; and that while it is an outrageous abuse on the French Revolution, and the principles of Liberty, it is an imposition on the rest of the world.

I am the more astonished and disappointed at this conduct in Mr. Burke, as (from the circumstances I am going to mention) I had formed other expectations.

I had seen enough of the miseries of war, to wish it might never more have existence in the world, and that some other mode might be found out to settle the differences that should occasionally arise in the neighbourhood of nations. This certainly might be done if Courts were disposed to set honesty about it, or if countries were enlightened enough not to be made the dupes of Courts. The people of America had been bred up in the same prejudices against France, which at that time characterised the people of England; but experience and an acquaintance with the French Nation have most effectually shown to the Americans the falsehood of those prejudices; and I do not believe that a more cordial and confidential intercourse exists between any two countries than between America and France.

When I came to France, in the spring of 1787, the Archbishop of Thoulouse was then Minister, and at that time highly esteemed. I became much acquainted with the private Secretary of that Minister, a man of an enlarged benevolent heart; and found that his sentiments and my own perfectly agreed with respect to the madness of war, and the wretched impolicy of two nations, like England and France, continually worrying each other, to no other end than that of a mutual increase of burdens and taxes. That I might be assured I had not misunderstood him, nor he me, I put the substance of our opinions into writing and sent it to him; subjoining a request, that if I should see among the people of England, any disposition to cultivate a better understanding between the two nations than had hitherto prevailed, how far I might be authorised to say that the same disposition prevailed on the part of France? He answered me by letter in the most unreserved manner, and that not for himself only, but for the Minister, with whose knowledge the letter was declared to be written.

I put this letter into the hands of Mr. Burke almost three years ago, and left it with him, where it still remains; hoping, and at the same time naturally expecting, from the opinion I had conceived of him, that he would find some opportunity of making good use of it, for the purpose of removing those errors and prejudices which two neighbouring nations, from the want of knowing each other, had entertained, to the injury of both.

When the French Revolution broke out, it certainly afforded to Mr. Burke an opportunity of doing some good, had he been disposed to it; instead of which, no sooner did he see the old prejudices wearing away, than he immediately began sowing the seeds of a new inveteracy, as if he were afraid that England and France would cease to be enemies. That there are men in all countries who get their living by war, and by keeping up the quarrels of Nations, is as shocking as it is true; but when those who are concerned in the government of a country, make it their study to sow discord and cultivate prejudices between Nations, it becomes the more unpardonable.

With respect to a paragraph in this work alluding to Mr. Burke's having a pension, the report has been some time in circulation, at least two months; and as a person is often the last to hear what concerns him the most to know, I have mentioned it, that Mr. Burke may have an opportunity of contradicting the rumour, if he thinks proper.

Thomas Paine

PAINE'S PREFACE TO THE FRENCH EDITION

The astonishment which the French Revolution has caused throughout Europe should be considered from two different points of view: first as it affects foreign peoples, secondly as it affects their governments.

The cause of the French people is that of all Europe, or rather of the whole world; but the governments of all those countries are by no means favorable to it. It is important that we should never lose sight of this distinction. We must not confuse the peoples with their governments; especially not the English people with its government.

The government of England is no friend of the revolution of France. Of this we have sufficient proofs in the thanks given by that weak and witless person, the Elector of Hanover, sometimes called the King of England, to Mr. Burke for the insults heaped on it in his book, and in the malevolent comments of the English Minister, Pitt, in his speeches in Parliament.

In spite of the professions of sincerest friendship found in the official correspondence of the English government with that of France, its conduct gives the lie to all its declarations, and shows us clearly that it is not a court to be trusted, but an insane court, plunging in all the quarrels and intrigues of Europe, in quest of a war to satisfy its folly and countenance its extravagance.

The English nation, on the contrary, is very favorably disposed towards the French Revolution, and to the progress of liberty in the whole world; and this feeling will become more general in England as the intrigues and artifices of its government are better known, and the principles of the revolution better understood. The French should know that most English newspapers are directly in the pay of government, or, if indirectly connected with it, always under its orders; and that those papers constantly distort and attack the revolution in France in order to deceive the nation. But, as it is impossible long to prevent the prevalence of truth, the daily falsehoods of those papers no longer have the desired effect.

To be convinced that the voice of truth has been stifled in England, the world needs only to be told that the government regards and prosecutes as a libel that which it should protect.*[1](#) This outrage on morality is called law, and judges are found wicked enough to inflict penalties on truth.

The English government presents, just now, a curious phenomenon. Seeing that the French and English nations are getting rid of the prejudices and false notions formerly entertained against each other, and which have cost them so much money, that government seems to be placarding its need of a foe; for unless it finds one somewhere, no pretext exists for the enormous revenue and taxation now deemed necessary.

Therefore it seeks in Russia the enemy it has lost in France, and appears to say to the universe, or to say to itself. "If nobody will be so kind as to become my foe, I shall need no more fleets nor armies, and shall be forced to reduce my taxes. The American war enabled me to double the taxes; the Dutch business to add more; the Nootka humbug gave me a pretext for raising three millions sterling more; but unless I can make an enemy of Russia the harvest from wars will end. I was the first to incite Turk against Russian, and now I hope to reap a fresh crop of taxes."

If the miseries of war, and the flood of evils it spreads over a country, did not check all inclination to mirth, and turn laughter into grief, the frantic conduct of the government of England would only excite ridicule. But it is impossible to banish from one's mind the images of suffering which the contemplation of such vicious policy presents. To reason with governments, as they have existed for ages, is to argue with brutes. It is only from the nations themselves that reforms can be expected. There ought not now to exist any doubt that the peoples of France, England, and America, enlightened and enlightening each other, shall henceforth be able, not merely to give the world an example of good government, but by their united influence enforce its practice.

(Translated from the French)

RIGHTS OF MAN. PART THE FIRST BEING AN ANSWER TO MR. BURKE'S ATTACK ON THE FRENCH REVOLUTION

Among the incivilities by which nations or individuals provoke and irritate each other, Mr. Burke's pamphlet on the French Revolution is an extraordinary instance. Neither the People of France, nor the National Assembly, were troubling themselves about the affairs of England, or the English Parliament; and that Mr. Burke should commence an unprovoked attack upon them, both in Parliament and in public, is a conduct that cannot be pardoned on the score of manners, nor justified on that of policy.

There is scarcely an epithet of abuse to be found in the English language, with which Mr. Burke has not loaded the French Nation and the National Assembly. Everything which rancour, prejudice, ignorance or knowledge could suggest, is poured forth in the copious fury of near four hundred pages. In the strain and on the plan Mr. Burke was writing, he might have written on to as many thousands. When the tongue or the pen is let loose in a frenzy of passion, it is the man, and not the subject, that becomes exhausted.

Hitherto Mr. Burke has been mistaken and disappointed in the opinions he had formed of the affairs of France; but such is the ingenuity of his hope, or the malignancy of his despair, that it furnishes him with new pretences to go on. There was a time when it was impossible to make Mr. Burke believe there would be any Revolution in France. His opinion then was, that the French had neither spirit to undertake it nor fortitude to support it; and now that there is one, he seeks an escape by condemning it.

Not sufficiently content with abusing the National Assembly, a great part of his work is taken up with abusing Dr. Price (one of the best-hearted men that lives) and the two societies in England known by the name of the Revolution Society and the Society for Constitutional Information.

Dr. Price had preached a sermon on the 4th of November, 1789, being the anniversary of what is called in England the Revolution, which took place

1688. Mr. Burke, speaking of this sermon, says: "The political Divine proceeds dogmatically to assert, that by the principles of the Revolution, the people of England have acquired three fundamental rights:

1. To choose our own governors.
2. To cashier them for misconduct.
3. To frame a government for ourselves."

Dr. Price does not say that the right to do these things exists in this or in that person, or in this or in that description of persons, but that it exists in the whole; that it is a right resident in the nation. Mr. Burke, on the contrary, denies that such a right exists in the nation, either in whole or in part, or that it exists anywhere; and, what is still more strange and marvellous, he says: "that the people of England utterly disclaim such a right, and that they will resist the practical assertion of it with their lives and fortunes." That men should take up arms and spend their lives and fortunes, not to maintain their rights, but to maintain they have not rights, is an entirely new species of discovery, and suited to the paradoxical genius of Mr. Burke.

The method which Mr. Burke takes to prove that the people of England have no such rights, and that such rights do not now exist in the nation, either in whole or in part, or anywhere at all, is of the same marvellous and monstrous kind with what he has already said; for his arguments are that the persons, or the generation of persons, in whom they did exist, are dead, and with them the right is dead also. To prove this, he quotes a declaration made by Parliament about a hundred years ago, to William and Mary, in these words: "The Lords Spiritual and Temporal, and Commons, do, in the name of the people aforesaid" (meaning the people of England then living) "most humbly and faithfully submit themselves, their heirs and posterities, for Ever." He quotes a clause of another Act of Parliament made in the same reign, the terms of which he says, "bind us" (meaning the people of their day), "our heirs and our posterity, to them, their heirs and posterity, to the end of time."

Mr. Burke conceives his point sufficiently established by producing those clauses, which he enforces by saying that they exclude the right of the nation for ever. And not yet content with making such declarations, repeated over and over again, he farther says, "that if the people of England possessed such a right before the Revolution" (which he acknowledges to have been the case, not only in England, but throughout Europe, at an early

period), "yet that the English Nation did, at the time of the Revolution, most solemnly renounce and abdicate it, for themselves, and for all their posterity, for ever."

As Mr. Burke occasionally applies the poison drawn from his horrid principles, not only to the English nation, but to the French Revolution and the National Assembly, and charges that august, illuminated and illuminating body of men with the epithet of usurpers, I shall, sans ceremonie, place another system of principles in opposition to his.

The English Parliament of 1688 did a certain thing, which, for themselves and their constituents, they had a right to do, and which it appeared right should be done. But, in addition to this right, which they possessed by delegation, they set up another right by assumption, that of binding and controlling posterity to the end of time. The case, therefore, divides itself into two parts; the right which they possessed by delegation, and the right which they set up by assumption. The first is admitted; but with respect to the second, I reply: There never did, there never will, and there never can, exist a Parliament, or any description of men, or any generation of men, in any country, possessed of the right or the power of binding and controlling posterity to the "end of time," or of commanding for ever how the world shall be governed, or who shall govern it; and therefore all such clauses, acts or declarations by which the makers of them attempt to do what they have neither the right nor the power to do, nor the power to execute, are in themselves null and void. Every age and generation must be as free to act for itself in all cases as the age and generations which preceded it. The vanity and presumption of governing beyond the grave is the most ridiculous and insolent of all tyrannies. Man has no property in man; neither has any generation a property in the generations which are to follow. The Parliament or the people of 1688, or of any other period, had no more right to dispose of the people of the present day, or to bind or to control them in any shape whatever, than the parliament or the people of the present day have to dispose of, bind or control those who are to live a hundred or a thousand years hence. Every generation is, and must be, competent to all the purposes which its occasions require. It is the living, and not the dead, that are to be accommodated. When man ceases to be, his power and his wants cease with him; and having no longer any participation in the concerns of this world, he has no longer any authority in directing

who shall be its governors, or how its government shall be organised, or how administered.

I am not contending for nor against any form of government, nor for nor against any party, here or elsewhere. That which a whole nation chooses to do it has a right to do. Mr. Burke says, No. Where, then, does the right exist? I am contending for the rights of the living, and against their being willed away and controlled and contracted for by the manuscript assumed authority of the dead, and Mr. Burke is contending for the authority of the dead over the rights and freedom of the living. There was a time when kings disposed of their crowns by will upon their death-beds, and consigned the people, like beasts of the field, to whatever successor they appointed. This is now so exploded as scarcely to be remembered, and so monstrous as hardly to be believed. But the Parliamentary clauses upon which Mr. Burke builds his political church are of the same nature.

The laws of every country must be analogous to some common principle. In England no parent or master, nor all the authority of Parliament, omnipotent as it has called itself, can bind or control the personal freedom even of an individual beyond the age of twenty-one years. On what ground of right, then, could the Parliament of 1688, or any other Parliament, bind all posterity for ever?

Those who have quitted the world, and those who have not yet arrived at it, are as remote from each other as the utmost stretch of mortal imagination can conceive. What possible obligation, then, can exist between them—what rule or principle can be laid down that of two nonentities, the one out of existence and the other not in, and who never can meet in this world, the one should control the other to the end of time?

In England it is said that money cannot be taken out of the pockets of the people without their consent. But who authorised, or who could authorise, the Parliament of 1688 to control and take away the freedom of posterity (who were not in existence to give or to withhold their consent) and limit and confine their right of acting in certain cases for ever?

A greater absurdity cannot present itself to the understanding of man than what Mr. Burke offers to his readers. He tells them, and he tells the world to come, that a certain body of men who existed a hundred years ago made a law, and that there does not exist in the nation, nor ever will, nor ever can, a power to alter it. Under how many subtilties or absurdities has the divine

right to govern been imposed on the credulity of mankind? Mr. Burke has discovered a new one, and he has shortened his journey to Rome by appealing to the power of this infallible Parliament of former days, and he produces what it has done as of divine authority, for that power must certainly be more than human which no human power to the end of time can alter.

But Mr. Burke has done some service—not to his cause, but to his country—by bringing those clauses into public view. They serve to demonstrate how necessary it is at all times to watch against the attempted encroachment of power, and to prevent its running to excess. It is somewhat extraordinary that the offence for which James II. was expelled, that of setting up power by assumption, should be re-acted, under another shape and form, by the Parliament that expelled him. It shows that the Rights of Man were but imperfectly understood at the Revolution, for certain it is that the right which that Parliament set up by assumption (for by the delegation it had not, and could not have it, because none could give it) over the persons and freedom of posterity for ever was of the same tyrannical unfounded kind which James attempted to set up over the Parliament and the nation, and for which he was expelled. The only difference is (for in principle they differ not) that the one was an usurper over living, and the other over the unborn; and as the one has no better authority to stand upon than the other, both of them must be equally null and void, and of no effect.

From what, or from whence, does Mr. Burke prove the right of any human power to bind posterity for ever? He has produced his clauses, but he must produce also his proofs that such a right existed, and show how it existed. If it ever existed it must now exist, for whatever appertains to the nature of man cannot be annihilated by man. It is the nature of man to die, and he will continue to die as long as he continues to be born. But Mr. Burke has set up a sort of political Adam, in whom all posterity are bound for ever. He must, therefore, prove that his Adam possessed such a power, or such a right.

The weaker any cord is, the less will it bear to be stretched, and the worse is the policy to stretch it, unless it is intended to break it. Had anyone proposed the overthrow of Mr. Burke's positions, he would have proceeded as Mr. Burke has done. He would have magnified the authorities, on

purpose to have called the right of them into question; and the instant the question of right was started, the authorities must have been given up.

It requires but a very small glance of thought to perceive that although laws made in one generation often continue in force through succeeding generations, yet they continue to derive their force from the consent of the living. A law not repealed continues in force, not because it cannot be repealed, but because it is not repealed; and the non-repealing passes for consent.

But Mr. Burke's clauses have not even this qualification in their favour. They become null, by attempting to become immortal. The nature of them precludes consent. They destroy the right which they might have, by grounding it on a right which they cannot have. Immortal power is not a human right, and therefore cannot be a right of Parliament. The Parliament of 1688 might as well have passed an act to have authorised themselves to live for ever, as to make their authority live for ever. All, therefore, that can be said of those clauses is that they are a formality of words, of as much import as if those who used them had addressed a congratulation to themselves, and in the oriental style of antiquity had said: O Parliament, live for ever!

The circumstances of the world are continually changing, and the opinions of men change also; and as government is for the living, and not for the dead, it is the living only that has any right in it. That which may be thought right and found convenient in one age may be thought wrong and found inconvenient in another. In such cases, who is to decide, the living or the dead?

As almost one hundred pages of Mr. Burke's book are employed upon these clauses, it will consequently follow that if the clauses themselves, so far as they set up an assumed usurped dominion over posterity for ever, are unauthoritative, and in their nature null and void; that all his voluminous inferences, and declamation drawn therefrom, or founded thereon, are null and void also; and on this ground I rest the matter.

We now come more particularly to the affairs of France. Mr. Burke's book has the appearance of being written as instruction to the French nation; but if I may permit myself the use of an extravagant metaphor, suited to the extravagance of the case, it is darkness attempting to illuminate light.

While I am writing this there are accidentally before me some proposals for a declaration of rights by the Marquis de la Fayette (I ask his pardon for using his former address, and do it only for distinction's sake) to the National Assembly, on the 11th of July, 1789, three days before the taking of the Bastille, and I cannot but remark with astonishment how opposite the sources are from which that gentleman and Mr. Burke draw their principles. Instead of referring to musty records and mouldy parchments to prove that the rights of the living are lost, "renounced and abdicated for ever," by those who are now no more, as Mr. Burke has done, M. de la Fayette applies to the living world, and emphatically says: "Call to mind the sentiments which nature has engraved on the heart of every citizen, and which take a new force when they are solemnly recognised by all:—For a nation to love liberty, it is sufficient that she knows it; and to be free, it is sufficient that she wills it." How dry, barren, and obscure is the source from which Mr. Burke labors! and how ineffectual, though gay with flowers, are all his declamation and his arguments compared with these clear, concise, and soul-animating sentiments! Few and short as they are, they lead on to a vast field of generous and manly thinking, and do not finish, like Mr. Burke's periods, with music in the ear, and nothing in the heart.

As I have introduced M. de la Fayette, I will take the liberty of adding an anecdote respecting his farewell address to the Congress of America in 1783, and which occurred fresh to my mind, when I saw Mr. Burke's thundering attack on the French Revolution. M. de la Fayette went to America at the early period of the war, and continued a volunteer in her service to the end. His conduct through the whole of that enterprise is one of the most extraordinary that is to be found in the history of a young man, scarcely twenty years of age. Situated in a country that was like the lap of sensual pleasure, and with the means of enjoying it, how few are there to be found who would exchange such a scene for the woods and wildernesses of America, and pass the flowery years of youth in unprofitable danger and hardship! but such is the fact. When the war ended, and he was on the point of taking his final departure, he presented himself to Congress, and contemplating in his affectionate farewell the Revolution he had seen, expressed himself in these words: "May this great monument raised to liberty serve as a lesson to the oppressor, and an example to the oppressed!" When this address came to the hands of Dr. Franklin, who was then in France, he applied to Count Vergennes to have it inserted in the French

Gazette, but never could obtain his consent. The fact was that Count Vergennes was an aristocratical despot at home, and dreaded the example of the American Revolution in France, as certain other persons now dread the example of the French Revolution in England, and Mr. Burke's tribute of fear (for in this light his book must be considered) runs parallel with Count Vergennes' refusal. But to return more particularly to his work.

"We have seen," says Mr. Burke, "the French rebel against a mild and lawful monarch, with more fury, outrage, and insult, than any people has been known to rise against the most illegal usurper, or the most sanguinary tyrant." This is one among a thousand other instances, in which Mr. Burke shows that he is ignorant of the springs and principles of the French Revolution.

It was not against Louis XVI. but against the despotic principles of the Government, that the nation revolted. These principles had not their origin in him, but in the original establishment, many centuries back: and they were become too deeply rooted to be removed, and the Augean stables of parasites and plunderers too abominably filthy to be cleansed by anything short of a complete and universal Revolution. When it becomes necessary to do anything, the whole heart and soul should go into the measure, or not attempt it. That crisis was then arrived, and there remained no choice but to act with determined vigor, or not to act at all. The king was known to be the friend of the nation, and this circumstance was favorable to the enterprise. Perhaps no man bred up in the style of an absolute king, ever possessed a heart so little disposed to the exercise of that species of power as the present King of France. But the principles of the Government itself still remained the same. The Monarch and the Monarchy were distinct and separate things; and it was against the established despotism of the latter, and not against the person or principles of the former, that the revolt commenced, and the Revolution has been carried.

Mr. Burke does not attend to the distinction between men and principles, and, therefore, he does not see that a revolt may take place against the despotism of the latter, while there lies no charge of despotism against the former.

The natural moderation of Louis XVI. contributed nothing to alter the hereditary despotism of the monarchy. All the tyrannies of former reigns, acted under that hereditary despotism, were still liable to be revived in the

hands of a successor. It was not the respite of a reign that would satisfy France, enlightened as she was then become. A casual discontinuance of the practice of despotism, is not a discontinuance of its principles: the former depends on the virtue of the individual who is in immediate possession of the power; the latter, on the virtue and fortitude of the nation. In the case of Charles I. and James II. of England, the revolt was against the personal despotism of the men; whereas in France, it was against the hereditary despotism of the established Government. But men who can consign over the rights of posterity for ever on the authority of a mouldy parchment, like Mr. Burke, are not qualified to judge of this Revolution. It takes in a field too vast for their views to explore, and proceeds with a mightiness of reason they cannot keep pace with.

But there are many points of view in which this Revolution may be considered. When despotism has established itself for ages in a country, as in France, it is not in the person of the king only that it resides. It has the appearance of being so in show, and in nominal authority; but it is not so in practice and in fact. It has its standard everywhere. Every office and department has its despotism, founded upon custom and usage. Every place has its Bastille, and every Bastille its despot. The original hereditary despotism resident in the person of the king, divides and sub-divides itself into a thousand shapes and forms, till at last the whole of it is acted by deputation. This was the case in France; and against this species of despotism, proceeding on through an endless labyrinth of office till the source of it is scarcely perceptible, there is no mode of redress. It strengthens itself by assuming the appearance of duty, and tyrannizes under the pretence of obeying.

When a man reflects on the condition which France was in from the nature of her government, he will see other causes for revolt than those which immediately connect themselves with the person or character of Louis XVI. There were, if I may so express it, a thousand despotisms to be reformed in France, which had grown up under the hereditary despotism of the monarchy, and became so rooted as to be in a great measure independent of it. Between the Monarchy, the Parliament, and the Church there was a rivalry of despotism; besides the feudal despotism operating locally, and the ministerial despotism operating everywhere. But Mr. Burke, by considering the king as the only possible object of a revolt, speaks as if France was a village, in which everything that passed must be known to its

commanding officer, and no oppression could be acted but what he could immediately control. Mr. Burke might have been in the Bastille his whole life, as well under Louis XVI. as Louis XIV., and neither the one nor the other have known that such a man as Burke existed. The despotic principles of the government were the same in both reigns, though the dispositions of the men were as remote as tyranny and benevolence.

What Mr. Burke considers as a reproach to the French Revolution (that of bringing it forward under a reign more mild than the preceding ones) is one of its highest honors. The Revolutions that have taken place in other European countries, have been excited by personal hatred. The rage was against the man, and he became the victim. But, in the instance of France we see a Revolution generated in the rational contemplation of the Rights of Man, and distinguishing from the beginning between persons and principles.

But Mr. Burke appears to have no idea of principles when he is contemplating Governments. "Ten years ago," says he, "I could have felicitated France on her having a Government, without inquiring what the nature of that Government was, or how it was administered." Is this the language of a rational man? Is it the language of a heart feeling as it ought to feel for the rights and happiness of the human race? On this ground, Mr. Burke must compliment all the Governments in the world, while the victims who suffer under them, whether sold into slavery, or tortured out of existence, are wholly forgotten. It is power, and not principles, that Mr. Burke venerates; and under this abominable depravity he is disqualified to judge between them. Thus much for his opinion as to the occasions of the French Revolution. I now proceed to other considerations.

I know a place in America called Point-no-Point, because as you proceed along the shore, gay and flowery as Mr. Burke's language, it continually recedes and presents itself at a distance before you; but when you have got as far as you can go, there is no point at all. Just thus it is with Mr. Burke's three hundred and sixty-six pages. It is therefore difficult to reply to him. But as the points he wishes to establish may be inferred from what he abuses, it is in his paradoxes that we must look for his arguments.

As to the tragic paintings by which Mr. Burke has outraged his own imagination, and seeks to work upon that of his readers, they are very well calculated for theatrical representation, where facts are manufactured for

the sake of show, and accommodated to produce, through the weakness of sympathy, a weeping effect. But Mr. Burke should recollect that he is writing history, and not plays, and that his readers will expect truth, and not the spouting rant of high-toned exclamation.

When we see a man dramatically lamenting in a publication intended to be believed that "The age of chivalry is gone! that The glory of Europe is extinguished for ever! that The unbought grace of life (if anyone knows what it is), the cheap defence of nations, the nurse of manly sentiment and heroic enterprise is gone!" and all this because the Quixot age of chivalry nonsense is gone, what opinion can we form of his judgment, or what regard can we pay to his facts? In the rhapsody of his imagination he has discovered a world of wind mills, and his sorrows are that there are no Quixots to attack them. But if the age of aristocracy, like that of chivalry, should fall (and they had originally some connection) Mr. Burke, the trumpeter of the Order, may continue his parody to the end, and finish with exclaiming: "Othello's occupation's gone!"

Notwithstanding Mr. Burke's horrid paintings, when the French Revolution is compared with the Revolutions of other countries, the astonishment will be that it is marked with so few sacrifices; but this astonishment will cease when we reflect that principles, and not persons, were the meditated objects of destruction. The mind of the nation was acted upon by a higher stimulus than what the consideration of persons could inspire, and sought a higher conquest than could be produced by the downfall of an enemy. Among the few who fell there do not appear to be any that were intentionally singled out. They all of them had their fate in the circumstances of the moment, and were not pursued with that long, cold-blooded unabated revenge which pursued the unfortunate Scotch in the affair of 1745.

Through the whole of Mr. Burke's book I do not observe that the Bastille is mentioned more than once, and that with a kind of implication as if he were sorry it was pulled down, and wished it were built up again. "We have rebuilt Newgate," says he, "and tenanted the mansion; and we have prisons almost as strong as the Bastille for those who dare to libel the queens of France."*² As to what a madman like the person called Lord George Gordon might say, and to whom Newgate is rather a bedlam than a prison, it is unworthy a rational consideration. It was a madman that libelled, and

that is sufficient apology; and it afforded an opportunity for confining him, which was the thing that was wished for. But certain it is that Mr. Burke, who does not call himself a madman (whatever other people may do), has libelled in the most unprovoked manner, and in the grossest style of the most vulgar abuse, the whole representative authority of France, and yet Mr. Burke takes his seat in the British House of Commons! From his violence and his grief, his silence on some points and his excess on others, it is difficult not to believe that Mr. Burke is sorry, extremely sorry, that arbitrary power, the power of the Pope and the Bastille, are pulled down.

Not one glance of compassion, not one commiserating reflection that I can find throughout his book, has he bestowed on those who lingered out the most wretched of lives, a life without hope in the most miserable of prisons. It is painful to behold a man employing his talents to corrupt himself. Nature has been kinder to Mr. Burke than he is to her. He is not affected by the reality of distress touching his heart, but by the showy resemblance of it striking his imagination. He pities the plumage, but forgets the dying bird. Accustomed to kiss the aristocratical hand that hath purloined him from himself, he degenerates into a composition of art, and the genuine soul of nature forsakes him. His hero or his heroine must be a tragedy-victim expiring in show, and not the real prisoner of misery, sliding into death in the silence of a dungeon.

As Mr. Burke has passed over the whole transaction of the Bastille (and his silence is nothing in his favour), and has entertained his readers with refectations on supposed facts distorted into real falsehoods, I will give, since he has not, some account of the circumstances which preceded that transaction. They will serve to show that less mischief could scarcely have accompanied such an event when considered with the treacherous and hostile aggravations of the enemies of the Revolution.

The mind can hardly picture to itself a more tremendous scene than what the city of Paris exhibited at the time of taking the Bastille, and for two days before and after, nor perceive the possibility of its quieting so soon. At a distance this transaction has appeared only as an act of heroism standing on itself, and the close political connection it had with the Revolution is lost in the brilliancy of the achievement. But we are to consider it as the strength of the parties brought man to man, and contending for the issue. The Bastille was to be either the prize or the prison of the assailants. The

downfall of it included the idea of the downfall of despotism, and this compounded image was become as figuratively united as Bunyan's Doubting Castle and Giant Despair.

The National Assembly, before and at the time of taking the Bastille, was sitting at Versailles, twelve miles distant from Paris. About a week before the rising of the Partisans, and their taking the Bastille, it was discovered that a plot was forming, at the head of which was the Count D'Artois, the king's youngest brother, for demolishing the National Assembly, seizing its members, and thereby crushing, by a coup de main, all hopes and prospects of forming a free government. For the sake of humanity, as well as freedom, it is well this plan did not succeed. Examples are not wanting to show how dreadfully vindictive and cruel are all old governments, when they are successful against what they call a revolt.

This plan must have been some time in contemplation; because, in order to carry it into execution, it was necessary to collect a large military force round Paris, and cut off the communication between that city and the National Assembly at Versailles. The troops destined for this service were chiefly the foreign troops in the pay of France, and who, for this particular purpose, were drawn from the distant provinces where they were then stationed. When they were collected to the amount of between twenty-five and thirty thousand, it was judged time to put the plan into execution. The ministry who were then in office, and who were friendly to the Revolution, were instantly dismissed and a new ministry formed of those who had concerted the project, among whom was Count de Broglio, and to his share was given the command of those troops. The character of this man as described to me in a letter which I communicated to Mr. Burke before he began to write his book, and from an authority which Mr. Burke well knows was good, was that of "a high-flying aristocrat, cool, and capable of every mischief."

While these matters were agitating, the National Assembly stood in the most perilous and critical situation that a body of men can be supposed to act in. They were the devoted victims, and they knew it. They had the hearts and wishes of their country on their side, but military authority they had none. The guards of Broglio surrounded the hall where the Assembly sat, ready, at the word of command, to seize their persons, as had been done the year before to the Parliament of Paris. Had the National Assembly deserted

their trust, or had they exhibited signs of weakness or fear, their enemies had been encouraged and their country depressed. When the situation they stood in, the cause they were engaged in, and the crisis then ready to burst, which should determine their personal and political fate and that of their country, and probably of Europe, are taken into one view, none but a heart callous with prejudice or corrupted by dependence can avoid interesting itself in their success.

The Archbishop of Vienne was at this time President of the National Assembly—a person too old to undergo the scene that a few days or a few hours might bring forth. A man of more activity and bolder fortitude was necessary, and the National Assembly chose (under the form of a Vice-President, for the Presidency still resided in the Archbishop) M. de la Fayette; and this is the only instance of a Vice-President being chosen. It was at the moment that this storm was pending (July 11th) that a declaration of rights was brought forward by M. de la Fayette, and is the same which is alluded to earlier. It was hastily drawn up, and makes only a part of the more extensive declaration of rights agreed upon and adopted afterwards by the National Assembly. The particular reason for bringing it forward at this moment (M. de la Fayette has since informed me) was that, if the National Assembly should fall in the threatened destruction that then surrounded it, some trace of its principles might have the chance of surviving the wreck.

Everything now was drawing to a crisis. The event was freedom or slavery. On one side, an army of nearly thirty thousand men; on the other, an unarmed body of citizens—for the citizens of Paris, on whom the National Assembly must then immediately depend, were as unarmed and as undisciplined as the citizens of London are now. The French guards had given strong symptoms of their being attached to the national cause; but their numbers were small, not a tenth part of the force that Broglio commanded, and their officers were in the interest of Broglio.

Matters being now ripe for execution, the new ministry made their appearance in office. The reader will carry in his mind that the Bastille was taken the 14th July; the point of time I am now speaking of is the 12th. Immediately on the news of the change of ministry reaching Paris, in the afternoon, all the playhouses and places of entertainment, shops and houses, were shut up. The change of ministry was considered as the prelude of hostilities, and the opinion was rightly founded.

The foreign troops began to advance towards the city. The Prince de Lambesc, who commanded a body of German cavalry, approached by the Place of Louis XV., which connects itself with some of the streets. In his march, he insulted and struck an old man with a sword. The French are remarkable for their respect to old age; and the insolence with which it appeared to be done, uniting with the general fermentation they were in, produced a powerful effect, and a cry of "To arms! to arms!" spread itself in a moment over the city.

Arms they had none, nor scarcely anyone who knew the use of them; but desperate resolution, when every hope is at stake, supplies, for a while, the want of arms. Near where the Prince de Lambesc was drawn up, were large piles of stones collected for building the new bridge, and with these the people attacked the cavalry. A party of French guards upon hearing the firing, rushed from their quarters and joined the people; and night coming on, the cavalry retreated.

The streets of Paris, being narrow, are favourable for defence, and the loftiness of the houses, consisting of many stories, from which great annoyance might be given, secured them against nocturnal enterprises; and the night was spent in providing themselves with every sort of weapon they could make or procure: guns, swords, blacksmiths' hammers, carpenters' axes, iron crows, pikes, halberts, pitchforks, spits, clubs, etc., etc. The incredible numbers in which they assembled the next morning, and the still more incredible resolution they exhibited, embarrassed and astonished their enemies. Little did the new ministry expect such a salute. Accustomed to slavery themselves, they had no idea that liberty was capable of such inspiration, or that a body of unarmed citizens would dare to face the military force of thirty thousand men. Every moment of this day was employed in collecting arms, concerting plans, and arranging themselves into the best order which such an instantaneous movement could afford. Broglie continued lying round the city, but made no further advances this day, and the succeeding night passed with as much tranquility as such a scene could possibly produce.

But defence only was not the object of the citizens. They had a cause at stake, on which depended their freedom or their slavery. They every moment expected an attack, or to hear of one made on the National Assembly; and in such a situation, the most prompt measures are sometimes

the best. The object that now presented itself was the Bastille; and the eclat of carrying such a fortress in the face of such an army, could not fail to strike terror into the new ministry, who had scarcely yet had time to meet. By some intercepted correspondence this morning, it was discovered that the Mayor of Paris, M. Defflesselles, who appeared to be in the interest of the citizens, was betraying them; and from this discovery, there remained no doubt that Broglio would reinforce the Bastille the ensuing evening. It was therefore necessary to attack it that day; but before this could be done, it was first necessary to procure a better supply of arms than they were then possessed of.

There was, adjoining to the city a large magazine of arms deposited at the Hospital of the Invalids, which the citizens summoned to surrender; and as the place was neither defensible, nor attempted much defence, they soon succeeded. Thus supplied, they marched to attack the Bastille; a vast mixed multitude of all ages, and of all degrees, armed with all sorts of weapons. Imagination would fail in describing to itself the appearance of such a procession, and of the anxiety of the events which a few hours or a few minutes might produce. What plans the ministry were forming, were as unknown to the people within the city, as what the citizens were doing was unknown to the ministry; and what movements Broglio might make for the support or relief of the place, were to the citizens equally as unknown. All was mystery and hazard.

That the Bastille was attacked with an enthusiasm of heroism, such only as the highest animation of liberty could inspire, and carried in the space of a few hours, is an event which the world is fully possessed of. I am not undertaking the detail of the attack, but bringing into view the conspiracy against the nation which provoked it, and which fell with the Bastille. The prison to which the new ministry were dooming the National Assembly, in addition to its being the high altar and castle of despotism, became the proper object to begin with. This enterprise broke up the new ministry, who began now to fly from the ruin they had prepared for others. The troops of Broglio dispersed, and himself fled also.

Mr. Burke has spoken a great deal about plots, but he has never once spoken of this plot against the National Assembly, and the liberties of the nation; and that he might not, he has passed over all the circumstances that might throw it in his way. The exiles who have fled from France, whose

case he so much interests himself in, and from whom he has had his lesson, fled in consequence of the miscarriage of this plot. No plot was formed against them; they were plotting against others; and those who fell, met, not unjustly, the punishment they were preparing to execute. But will Mr. Burke say that if this plot, contrived with the subtilty of an ambuscade, had succeeded, the successful party would have restrained their wrath so soon? Let the history of all governments answer the question.

Whom has the National Assembly brought to the scaffold? None. They were themselves the devoted victims of this plot, and they have not retaliated; why, then, are they charged with revenge they have not acted? In the tremendous breaking forth of a whole people, in which all degrees, tempers and characters are confounded, delivering themselves, by a miracle of exertion, from the destruction meditated against them, is it to be expected that nothing will happen? When men are sore with the sense of oppressions, and menaced with the prospects of new ones, is the calmness of philosophy or the palsy of insensibility to be looked for? Mr. Burke exclaims against outrage; yet the greatest is that which himself has committed. His book is a volume of outrage, not apologised for by the impulse of a moment, but cherished through a space of ten months; yet Mr. Burke had no provocation—no life, no interest, at stake.

More of the citizens fell in this struggle than of their opponents: but four or five persons were seized by the populace, and instantly put to death; the Governor of the Bastille, and the Mayor of Paris, who was detected in the act of betraying them; and afterwards Foulon, one of the new ministry, and Berthier, his son-in-law, who had accepted the office of intendant of Paris. Their heads were stuck upon spikes, and carried about the city; and it is upon this mode of punishment that Mr. Burke builds a great part of his tragic scene. Let us therefore examine how men came by the idea of punishing in this manner.

They learn it from the governments they live under; and retaliate the punishments they have been accustomed to behold. The heads stuck upon spikes, which remained for years upon Temple Bar, differed nothing in the horror of the scene from those carried about upon spikes at Paris; yet this was done by the English Government. It may perhaps be said that it signifies nothing to a man what is done to him after he is dead; but it signifies much to the living; it either tortures their feelings or hardens their

hearts, and in either case it instructs them how to punish when power falls into their hands.

Lay then the axe to the root, and teach governments humanity. It is their sanguinary punishments which corrupt mankind. In England the punishment in certain cases is by hanging, drawing and quartering; the heart of the sufferer is cut out and held up to the view of the populace. In France, under the former Government, the punishments were not less barbarous. Who does not remember the execution of Damien, torn to pieces by horses? The effect of those cruel spectacles exhibited to the populace is to destroy tenderness or excite revenge; and by the base and false idea of governing men by terror, instead of reason, they become precedents. It is over the lowest class of mankind that government by terror is intended to operate, and it is on them that it operates to the worst effect. They have sense enough to feel they are the objects aimed at; and they inflict in their turn the examples of terror they have been instructed to practise.

There is in all European countries a large class of people of that description, which in England is called the "mob." Of this class were those who committed the burnings and devastations in London in 1780, and of this class were those who carried the heads on iron spikes in Paris. Foulon and Berthier were taken up in the country, and sent to Paris, to undergo their examination at the Hotel de Ville; for the National Assembly, immediately on the new ministry coming into office, passed a decree, which they communicated to the King and Cabinet, that they (the National Assembly) would hold the ministry, of which Foulon was one, responsible for the measures they were advising and pursuing; but the mob, incensed at the appearance of Foulon and Berthier, tore them from their conductors before they were carried to the Hotel de Ville, and executed them on the spot. Why then does Mr. Burke charge outrages of this kind on a whole people? As well may he charge the riots and outrages of 1780 on all the people of London, or those in Ireland on all his countrymen.

But everything we see or hear offensive to our feelings and derogatory to the human character should lead to other reflections than those of reproach. Even the beings who commit them have some claim to our consideration. How then is it that such vast classes of mankind as are distinguished by the appellation of the vulgar, or the ignorant mob, are so numerous in all old countries? The instant we ask ourselves this question, reflection feels an

answer. They rise, as an unavoidable consequence, out of the ill construction of all old governments in Europe, England included with the rest. It is by distortedly exalting some men, that others are distortedly debased, till the whole is out of nature. A vast mass of mankind are degradedly thrown into the back-ground of the human picture, to bring forward, with greater glare, the puppet-show of state and aristocracy. In the commencement of a revolution, those men are rather the followers of the camp than of the standard of liberty, and have yet to be instructed how to reverence it.

I give to Mr. Burke all his theatrical exaggerations for facts, and I then ask him if they do not establish the certainty of what I here lay down? Admitting them to be true, they show the necessity of the French Revolution, as much as any one thing he could have asserted. These outrages were not the effect of the principles of the Revolution, but of the degraded mind that existed before the Revolution, and which the Revolution is calculated to reform. Place them then to their proper cause, and take the reproach of them to your own side.

It is the honour of the National Assembly and the city of Paris that, during such a tremendous scene of arms and confusion, beyond the control of all authority, they have been able, by the influence of example and exhortation, to restrain so much. Never were more pains taken to instruct and enlighten mankind, and to make them see that their interest consisted in their virtue, and not in their revenge, than have been displayed in the Revolution of France. I now proceed to make some remarks on Mr. Burke's account of the expedition to Versailles, October the 5th and 6th.

I can consider Mr. Burke's book in scarcely any other light than a dramatic performance; and he must, I think, have considered it in the same light himself, by the poetical liberties he has taken of omitting some facts, distorting others, and making the whole machinery bend to produce a stage effect. Of this kind is his account of the expedition to Versailles. He begins this account by omitting the only facts which as causes are known to be true; everything beyond these is conjecture, even in Paris; and he then works up a tale accommodated to his own passions and prejudices.

It is to be observed throughout Mr. Burke's book that he never speaks of plots against the Revolution; and it is from those plots that all the mischiefs have arisen. It suits his purpose to exhibit the consequences without their

causes. It is one of the arts of the drama to do so. If the crimes of men were exhibited with their sufferings, stage effect would sometimes be lost, and the audience would be inclined to approve where it was intended they should commiserate.

After all the investigations that have been made into this intricate affair (the expedition to Versailles), it still remains enveloped in all that kind of mystery which ever accompanies events produced more from a concurrence of awkward circumstances than from fixed design. While the characters of men are forming, as is always the case in revolutions, there is a reciprocal suspicion, and a disposition to misinterpret each other; and even parties directly opposite in principle will sometimes concur in pushing forward the same movement with very different views, and with the hopes of its producing very different consequences. A great deal of this may be discovered in this embarrassed affair, and yet the issue of the whole was what nobody had in view.

The only things certainly known are that considerable uneasiness was at this time excited at Paris by the delay of the King in not sanctioning and forwarding the decrees of the National Assembly, particularly that of the Declaration of the Rights of Man, and the decrees of the fourth of August, which contained the foundation principles on which the constitution was to be erected. The kindest, and perhaps the fairest conjecture upon this matter is, that some of the ministers intended to make remarks and observations upon certain parts of them before they were finally sanctioned and sent to the provinces; but be this as it may, the enemies of the Revolution derived hope from the delay, and the friends of the Revolution uneasiness.

During this state of suspense, the Garde du Corps, which was composed as such regiments generally are, of persons much connected with the Court, gave an entertainment at Versailles (October 1) to some foreign regiments then arrived; and when the entertainment was at the height, on a signal given, the Garde du Corps tore the national cockade from their hats, trampled it under foot, and replaced it with a counter-cockade prepared for the purpose. An indignity of this kind amounted to defiance. It was like declaring war; and if men will give challenges they must expect consequences. But all this Mr. Burke has carefully kept out of sight. He begins his account by saying: "History will record that on the morning of the 6th October, 1789, the King and Queen of France, after a day of

confusion, alarm, dismay, and slaughter, lay down under the pledged security of public faith to indulge nature in a few hours of respite, and troubled melancholy repose." This is neither the sober style of history, nor the intention of it. It leaves everything to be guessed at and mistaken. One would at least think there had been a battle; and a battle there probably would have been had it not been for the moderating prudence of those whom Mr. Burke involves in his censures. By his keeping the Garde du Corps out of sight Mr. Burke has afforded himself the dramatic licence of putting the King and Queen in their places, as if the object of the expedition was against them. But to return to my account this conduct of the Garde du Corps, as might well be expected, alarmed and enraged the Partisans. The colors of the cause, and the cause itself, were become too united to mistake the intention of the insult, and the Partisans were determined to call the Garde du Corps to an account. There was certainly nothing of the cowardice of assassination in marching in the face of the day to demand satisfaction, if such a phrase may be used, of a body of armed men who had voluntarily given defiance. But the circumstance which serves to throw this affair into embarrassment is, that the enemies of the Revolution appear to have encouraged it as well as its friends. The one hoped to prevent a civil war by checking it in time, and the other to make one. The hopes of those opposed to the Revolution rested in making the King of their party, and getting him from Versailles to Metz, where they expected to collect a force and set up a standard. We have, therefore, two different objects presenting themselves at the same time, and to be accomplished by the same means: the one to chastise the Garde du Corps, which was the object of the Partisans; the other to render the confusion of such a scene an inducement to the King to set off for Metz.

On the 5th of October a very numerous body of women, and men in the disguise of women, collected around the Hotel de Ville or town-hall at Paris, and set off for Versailles. Their professed object was the Garde du Corps; but prudent men readily recollect that mischief is more easily begun than ended; and this impressed itself with the more force from the suspicions already stated, and the irregularity of such a cavalcade. As soon, therefore, as a sufficient force could be collected, M. de la Fayette, by orders from the civil authority of Paris, set off after them at the head of twenty thousand of the Paris militia. The Revolution could derive no benefit from confusion, and its opposers might. By an amiable and spirited manner

of address he had hitherto been fortunate in calming disquietudes, and in this he was extraordinarily successful; to frustrate, therefore, the hopes of those who might seek to improve this scene into a sort of justifiable necessity for the King's quitting Versailles and withdrawing to Metz, and to prevent at the same time the consequences that might ensue between the Garde du Corps and this phalanx of men and women, he forwarded expresses to the King, that he was on his march to Versailles, by the orders of the civil authority of Paris, for the purpose of peace and protection, expressing at the same time the necessity of restraining the Garde du Corps from firing upon the people.*[3](#)

He arrived at Versailles between ten and eleven at night. The Garde du Corps was drawn up, and the people had arrived some time before, but everything had remained suspended. Wisdom and policy now consisted in changing a scene of danger into a happy event. M. de la Fayette became the mediator between the enraged parties; and the King, to remove the uneasiness which had arisen from the delay already stated, sent for the President of the National Assembly, and signed the Declaration of the Rights of Man, and such other parts of the constitution as were in readiness.

It was now about one in the morning. Everything appeared to be composed, and a general congratulation took place. By the beat of a drum a proclamation was made that the citizens of Versailles would give the hospitality of their houses to their fellow-citizens of Paris. Those who could not be accommodated in this manner remained in the streets, or took up their quarters in the churches; and at two o'clock the King and Queen retired.

In this state matters passed till the break of day, when a fresh disturbance arose from the censurable conduct of some of both parties, for such characters there will be in all such scenes. One of the Garde du Corps appeared at one of the windows of the palace, and the people who had remained during the night in the streets accosted him with reviling and provocative language. Instead of retiring, as in such a case prudence would have dictated, he presented his musket, fired, and killed one of the Paris militia. The peace being thus broken, the people rushed into the palace in quest of the offender. They attacked the quarters of the Garde du Corps within the palace, and pursued them throughout the avenues of it, and to the apartments of the King. On this tumult, not the Queen only, as Mr. Burke

has represented it, but every person in the palace, was awakened and alarmed; and M. de la Fayette had a second time to interpose between the parties, the event of which was that the Garde du Corps put on the national cockade, and the matter ended as by oblivion, after the loss of two or three lives.

During the latter part of the time in which this confusion was acting, the King and Queen were in public at the balcony, and neither of them concealed for safety's sake, as Mr. Burke insinuates. Matters being thus appeased, and tranquility restored, a general acclamation broke forth of *Le Roi a Paris—Le Roi a Paris—The King to Paris*. It was the shout of peace, and immediately accepted on the part of the King. By this measure all future projects of trappanning the King to Metz, and setting up the standard of opposition to the constitution, were prevented, and the suspicions extinguished. The King and his family reached Paris in the evening, and were congratulated on their arrival by M. Bailly, the Mayor of Paris, in the name of the citizens. Mr. Burke, who throughout his book confounds things, persons, and principles, as in his remarks on M. Bailly's address, confounded time also. He censures M. Bailly for calling it "*un bon jour*," a good day. Mr. Burke should have informed himself that this scene took up the space of two days, the day on which it began with every appearance of danger and mischief, and the day on which it terminated without the mischiefs that threatened; and that it is to this peaceful termination that M. Bailly alludes, and to the arrival of the King at Paris. Not less than three hundred thousand persons arranged themselves in the procession from Versailles to Paris, and not an act of molestation was committed during the whole march.

Mr. Burke on the authority of M. Lally Tollendal, a deserter from the National Assembly, says that on entering Paris, the people shouted "*Tous les eveques a la lanterne*." All Bishops to be hanged at the lanthorn or lamp-posts. It is surprising that nobody could hear this but Lally Tollendal, and that nobody should believe it but Mr. Burke. It has not the least connection with any part of the transaction, and is totally foreign to every circumstance of it. The Bishops had never been introduced before into any scene of Mr. Burke's drama: why then are they, all at once, and altogether, *tout a coup*, *et tous ensemble*, introduced now? Mr. Burke brings forward his Bishops and his lanthorn-like figures in a magic lanthorn, and raises his scenes by contrast instead of connection. But it serves to show, with the rest of his

book what little credit ought to be given where even probability is set at defiance, for the purpose of defaming; and with this reflection, instead of a soliloquy in praise of chivalry, as Mr. Burke has done, I close the account of the expedition to Versailles.*[4](#)

I have now to follow Mr. Burke through a pathless wilderness of rhapsodies, and a sort of descant upon governments, in which he asserts whatever he pleases, on the presumption of its being believed, without offering either evidence or reasons for so doing.

Before anything can be reasoned upon to a conclusion, certain facts, principles, or data, to reason from, must be established, admitted, or denied. Mr. Burke with his usual outrage, abused the Declaration of the Rights of Man, published by the National Assembly of France, as the basis on which the constitution of France is built. This he calls "paltry and blurred sheets of paper about the rights of man." Does Mr. Burke mean to deny that man has any rights? If he does, then he must mean that there are no such things as rights anywhere, and that he has none himself; for who is there in the world but man? But if Mr. Burke means to admit that man has rights, the question then will be: What are those rights, and how man came by them originally?

The error of those who reason by precedents drawn from antiquity, respecting the rights of man, is that they do not go far enough into antiquity. They do not go the whole way. They stop in some of the intermediate stages of an hundred or a thousand years, and produce what was then done, as a rule for the present day. This is no authority at all. If we travel still farther into antiquity, we shall find a direct contrary opinion and practice prevailing; and if antiquity is to be authority, a thousand such authorities may be produced, successively contradicting each other; but if we proceed on, we shall at last come out right; we shall come to the time when man came from the hand of his Maker. What was he then? Man. Man was his high and only title, and a higher cannot be given him. But of titles I shall speak hereafter.

We are now got at the origin of man, and at the origin of his rights. As to the manner in which the world has been governed from that day to this, it is no farther any concern of ours than to make a proper use of the errors or the improvements which the history of it presents. Those who lived an hundred or a thousand years ago, were then moderns, as we are now. They had their ancients, and those ancients had others, and we also shall be ancients in our

turn. If the mere name of antiquity is to govern in the affairs of life, the people who are to live an hundred or a thousand years hence, may as well take us for a precedent, as we make a precedent of those who lived an hundred or a thousand years ago. The fact is, that portions of antiquity, by proving everything, establish nothing. It is authority against authority all the way, till we come to the divine origin of the rights of man at the creation. Here our enquiries find a resting-place, and our reason finds a home. If a dispute about the rights of man had arisen at the distance of an hundred years from the creation, it is to this source of authority they must have referred, and it is to this same source of authority that we must now refer.

Though I mean not to touch upon any sectarian principle of religion, yet it may be worth observing, that the genealogy of Christ is traced to Adam. Why then not trace the rights of man to the creation of man? I will answer the question. Because there have been upstart governments, thrusting themselves between, and presumptuously working to un-make man.

If any generation of men ever possessed the right of dictating the mode by which the world should be governed for ever, it was the first generation that existed; and if that generation did it not, no succeeding generation can show any authority for doing it, nor can set any up. The illuminating and divine principle of the equal rights of man (for it has its origin from the Maker of man) relates, not only to the living individuals, but to generations of men succeeding each other. Every generation is equal in rights to generations which preceded it, by the same rule that every individual is born equal in rights with his contemporary.

Every history of the creation, and every traditionary account, whether from the lettered or unlettered world, however they may vary in their opinion or belief of certain particulars, all agree in establishing one point, the unity of man; by which I mean that men are all of one degree, and consequently that all men are born equal, and with equal natural right, in the same manner as if posterity had been continued by creation instead of generation, the latter being the only mode by which the former is carried forward; and consequently every child born into the world must be considered as deriving its existence from God. The world is as new to him as it was to the first man that existed, and his natural right in it is of the same kind.

The Mosaic account of the creation, whether taken as divine authority or merely historical, is full to this point, the unity or equality of man. The expression admits of no controversy. "And God said, Let us make man in our own image. In the image of God created he him; male and female created he them." The distinction of sexes is pointed out, but no other distinction is even implied. If this be not divine authority, it is at least historical authority, and shows that the equality of man, so far from being a modern doctrine, is the oldest upon record.

It is also to be observed that all the religions known in the world are founded, so far as they relate to man, on the unity of man, as being all of one degree. Whether in heaven or in hell, or in whatever state man may be supposed to exist hereafter, the good and the bad are the only distinctions. Nay, even the laws of governments are obliged to slide into this principle, by making degrees to consist in crimes and not in persons.

It is one of the greatest of all truths, and of the highest advantage to cultivate. By considering man in this light, and by instructing him to consider himself in this light, it places him in a close connection with all his duties, whether to his Creator or to the creation, of which he is a part; and it is only when he forgets his origin, or, to use a more fashionable phrase, his birth and family, that he becomes dissolute. It is not among the least of the evils of the present existing governments in all parts of Europe that man, considered as man, is thrown back to a vast distance from his Maker, and the artificial chasm filled up with a succession of barriers, or sort of turnpike gates, through which he has to pass. I will quote Mr. Burke's catalogue of barriers that he has set up between man and his Maker. Putting himself in the character of a herald, he says: "We fear God—we look with awe to kings—with affection to Parliaments with duty to magistrates—with reverence to priests, and with respect to nobility." Mr. Burke has forgotten to put in "chivalry." He has also forgotten to put in Peter.

The duty of man is not a wilderness of turnpike gates, through which he is to pass by tickets from one to the other. It is plain and simple, and consists but of two points. His duty to God, which every man must feel; and with respect to his neighbor, to do as he would be done by. If those to whom power is delegated do well, they will be respected: if not, they will be despised; and with regard to those to whom no power is delegated, but who assume it, the rational world can know nothing of them.

Hitherto we have spoken only (and that but in part) of the natural rights of man. We have now to consider the civil rights of man, and to show how the one originates from the other. Man did not enter into society to become worse than he was before, nor to have fewer rights than he had before, but to have those rights better secured. His natural rights are the foundation of all his civil rights. But in order to pursue this distinction with more precision, it will be necessary to mark the different qualities of natural and civil rights.

A few words will explain this. Natural rights are those which appertain to man in right of his existence. Of this kind are all the intellectual rights, or rights of the mind, and also all those rights of acting as an individual for his own comfort and happiness, which are not injurious to the natural rights of others. Civil rights are those which appertain to man in right of his being a member of society. Every civil right has for its foundation some natural right pre-existing in the individual, but to the enjoyment of which his individual power is not, in all cases, sufficiently competent. Of this kind are all those which relate to security and protection.

From this short review it will be easy to distinguish between that class of natural rights which man retains after entering into society and those which he throws into the common stock as a member of society.

The natural rights which he retains are all those in which the Power to execute is as perfect in the individual as the right itself. Among this class, as is before mentioned, are all the intellectual rights, or rights of the mind; consequently religion is one of those rights. The natural rights which are not retained, are all those in which, though the right is perfect in the individual, the power to execute them is defective. They answer not his purpose. A man, by natural right, has a right to judge in his own cause; and so far as the right of the mind is concerned, he never surrenders it. But what availeth it him to judge, if he has not power to redress? He therefore deposits this right in the common stock of society, and takes the ann of society, of which he is a part, in preference and in addition to his own. Society grants him nothing. Every man is a proprietor in society, and draws on the capital as a matter of right.

From these premisses two or three certain conclusions will follow:

First, That every civil right grows out of a natural right; or, in other words, is a natural right exchanged.

Secondly, That civil power properly considered as such is made up of the aggregate of that class of the natural rights of man, which becomes defective in the individual in point of power, and answers not his purpose, but when collected to a focus becomes competent to the Purpose of every one.

Thirdly, That the power produced from the aggregate of natural rights, imperfect in power in the individual, cannot be applied to invade the natural rights which are retained in the individual, and in which the power to execute is as perfect as the right itself.

We have now, in a few words, traced man from a natural individual to a member of society, and shown, or endeavoured to show, the quality of the natural rights retained, and of those which are exchanged for civil rights. Let us now apply these principles to governments.

In casting our eyes over the world, it is extremely easy to distinguish the governments which have arisen out of society, or out of the social compact, from those which have not; but to place this in a clearer light than what a single glance may afford, it will be proper to take a review of the several sources from which governments have arisen and on which they have been founded.

They may be all comprehended under three heads.

First, Superstition.

Secondly, Power.

Thirdly, The common interest of society and the common rights of man.

The first was a government of priestcraft, the second of conquerors, and the third of reason.

When a set of artful men pretended, through the medium of oracles, to hold intercourse with the Deity, as familiarly as they now march up the back-stairs in European courts, the world was completely under the government of superstition. The oracles were consulted, and whatever they were made to say became the law; and this sort of government lasted as long as this sort of superstition lasted.

After these a race of conquerors arose, whose government, like that of William the Conqueror, was founded in power, and the sword assumed the name of a sceptre. Governments thus established last as long as the power to support them lasts; but that they might avail themselves of every engine

in their favor, they united fraud to force, and set up an idol which they called Divine Right, and which, in imitation of the Pope, who affects to be spiritual and temporal, and in contradiction to the Founder of the Christian religion, twisted itself afterwards into an idol of another shape, called Church and State. The key of St. Peter and the key of the Treasury became quartered on one another, and the wondering cheated multitude worshipped the invention.

When I contemplate the natural dignity of man, when I feel (for Nature has not been kind enough to me to blunt my feelings) for the honour and happiness of its character, I become irritated at the attempt to govern mankind by force and fraud, as if they were all knaves and fools, and can scarcely avoid disgust at those who are thus imposed upon.

We have now to review the governments which arise out of society, in contradistinction to those which arose out of superstition and conquest.

It has been thought a considerable advance towards establishing the principles of Freedom to say that Government is a compact between those who govern and those who are governed; but this cannot be true, because it is putting the effect before the cause; for as man must have existed before governments existed, there necessarily was a time when governments did not exist, and consequently there could originally exist no governors to form such a compact with.

The fact therefore must be that the individuals themselves, each in his own personal and sovereign right, entered into a compact with each other to produce a government: and this is the only mode in which governments have a right to arise, and the only principle on which they have a right to exist.

To possess ourselves of a clear idea of what government is, or ought to be, we must trace it to its origin. In doing this we shall easily discover that governments must have arisen either out of the people or over the people. Mr. Burke has made no distinction. He investigates nothing to its source, and therefore he confounds everything; but he has signified his intention of undertaking, at some future opportunity, a comparison between the constitution of England and France. As he thus renders it a subject of controversy by throwing the gauntlet, I take him upon his own ground. It is in high challenges that high truths have the right of appearing; and I accept it with the more readiness because it affords me, at the same time, an

opportunity of pursuing the subject with respect to governments arising out of society.

But it will be first necessary to define what is meant by a Constitution. It is not sufficient that we adopt the word; we must fix also a standard signification to it.

A constitution is not a thing in name only, but in fact. It has not an ideal, but a real existence; and wherever it cannot be produced in a visible form, there is none. A constitution is a thing antecedent to a government, and a government is only the creature of a constitution. The constitution of a country is not the act of its government, but of the people constituting its government. It is the body of elements, to which you can refer, and quote article by article; and which contains the principles on which the government shall be established, the manner in which it shall be organised, the powers it shall have, the mode of elections, the duration of Parliaments, or by what other name such bodies may be called; the powers which the executive part of the government shall have; and in fine, everything that relates to the complete organisation of a civil government, and the principles on which it shall act, and by which it shall be bound. A constitution, therefore, is to a government what the laws made afterwards by that government are to a court of judicature. The court of judicature does not make the laws, neither can it alter them; it only acts in conformity to the laws made: and the government is in like manner governed by the constitution.

Can, then, Mr. Burke produce the English Constitution? If he cannot, we may fairly conclude that though it has been so much talked about, no such thing as a constitution exists, or ever did exist, and consequently that the people have yet a constitution to form.

Mr. Burke will not, I presume, deny the position I have already advanced—namely, that governments arise either out of the people or over the people. The English Government is one of those which arose out of a conquest, and not out of society, and consequently it arose over the people; and though it has been much modified from the opportunity of circumstances since the time of William the Conqueror, the country has never yet regenerated itself, and is therefore without a constitution.

I readily perceive the reason why Mr. Burke declined going into the comparison between the English and French constitutions, because he could

not but perceive, when he sat down to the task, that no such a thing as a constitution existed on his side the question. His book is certainly bulky enough to have contained all he could say on this subject, and it would have been the best manner in which people could have judged of their separate merits. Why then has he declined the only thing that was worth while to write upon? It was the strongest ground he could take, if the advantages were on his side, but the weakest if they were not; and his declining to take it is either a sign that he could not possess it or could not maintain it.

Mr. Burke said, in a speech last winter in Parliament, "that when the National Assembly first met in three Orders (the Tiers Etat, the Clergy, and the Noblesse), France had then a good constitution." This shows, among numerous other instances, that Mr. Burke does not understand what a constitution is. The persons so met were not a constitution, but a convention, to make a constitution.

The present National Assembly of France is, strictly speaking, the personal social compact. The members of it are the delegates of the nation in its original character; future assemblies will be the delegates of the nation in its organised character. The authority of the present Assembly is different from what the authority of future Assemblies will be. The authority of the present one is to form a constitution; the authority of future assemblies will be to legislate according to the principles and forms prescribed in that constitution; and if experience should hereafter show that alterations, amendments, or additions are necessary, the constitution will point out the mode by which such things shall be done, and not leave it to the discretionary power of the future government.

A government on the principles on which constitutional governments arising out of society are established, cannot have the right of altering itself. If it had, it would be arbitrary. It might make itself what it pleased; and wherever such a right is set up, it shows there is no constitution. The act by which the English Parliament empowered itself to sit seven years, shows there is no constitution in England. It might, by the same self-authority, have sat any great number of years, or for life. The bill which the present Mr. Pitt brought into Parliament some years ago, to reform Parliament, was on the same erroneous principle. The right of reform is in the nation in its original character, and the constitutional method would be by a general

convention elected for the purpose. There is, moreover, a paradox in the idea of vitiated bodies reforming themselves.

From these preliminaries I proceed to draw some comparisons. I have already spoken of the declaration of rights; and as I mean to be as concise as possible, I shall proceed to other parts of the French Constitution.

The constitution of France says that every man who pays a tax of sixty sous per annum (2s. 6d. English) is an elector. What article will Mr. Burke place against this? Can anything be more limited, and at the same time more capricious, than the qualification of electors is in England? Limited—because not one man in an hundred (I speak much within compass) is admitted to vote. Capricious—because the lowest character that can be supposed to exist, and who has not so much as the visible means of an honest livelihood, is an elector in some places: while in other places, the man who pays very large taxes, and has a known fair character, and the farmer who rents to the amount of three or four hundred pounds a year, with a property on that farm to three or four times that amount, is not admitted to be an elector. Everything is out of nature, as Mr. Burke says on another occasion, in this strange chaos, and all sorts of follies are blended with all sorts of crimes. William the Conqueror and his descendants parcelled out the country in this manner, and bribed some parts of it by what they call charters to hold the other parts of it the better subjected to their will. This is the reason why so many of those charters abound in Cornwall; the people were averse to the Government established at the Conquest, and the towns were garrisoned and bribed to enslave the country. All the old charters are the badges of this conquest, and it is from this source that the capriciousness of election arises.

The French Constitution says that the number of representatives for any place shall be in a ratio to the number of taxable inhabitants or electors. What article will Mr. Burke place against this? The county of York, which contains nearly a million of souls, sends two county members; and so does the county of Rutland, which contains not an hundredth part of that number. The old town of Sarum, which contains not three houses, sends two members; and the town of Manchester, which contains upward of sixty thousand souls, is not admitted to send any. Is there any principle in these things? It is admitted that all this is altered, but there is much to be done yet, before we have a fair representation of the people. Is there anything by

which you can trace the marks of freedom, or discover those of wisdom? No wonder then Mr. Burke has declined the comparison, and endeavored to lead his readers from the point by a wild, unsystematical display of paradoxical rhapsodies.

The French Constitution says that the National Assembly shall be elected every two years. What article will Mr. Burke place against this? Why, that the nation has no right at all in the case; that the government is perfectly arbitrary with respect to this point; and he can quote for his authority the precedent of a former Parliament.

The French Constitution says there shall be no game laws, that the farmer on whose lands wild game shall be found (for it is by the produce of his lands they are fed) shall have a right to what he can take; that there shall be no monopolies of any kind—that all trades shall be free and every man free to follow any occupation by which he can procure an honest livelihood, and in any place, town, or city throughout the nation. What will Mr. Burke say to this? In England, game is made the property of those at whose expense it is not fed; and with respect to monopolies, the country is cut up into monopolies. Every chartered town is an aristocratical monopoly in itself, and the qualification of electors proceeds out of those chartered monopolies. Is this freedom? Is this what Mr. Burke means by a constitution?

In these chartered monopolies, a man coming from another part of the country is hunted from them as if he were a foreign enemy. An Englishman is not free of his own country; every one of those places presents a barrier in his way, and tells him he is not a freeman—that he has no rights. Within these monopolies are other monopolies. In a city, such for instance as Bath, which contains between twenty and thirty thousand inhabitants, the right of electing representatives to Parliament is monopolised by about thirty-one persons. And within these monopolies are still others. A man even of the same town, whose parents were not in circumstances to give him an occupation, is debarred, in many cases, from the natural right of acquiring one, be his genius or industry what it may.

Are these things examples to hold out to a country regenerating itself from slavery, like France? Certainly they are not, and certain am I, that when the people of England come to reflect upon them they will, like France, annihilate those badges of ancient oppression, those traces of a

conquered nation. Had Mr. Burke possessed talents similar to the author of "On the Wealth of Nations." he would have comprehended all the parts which enter into, and, by assemblage, form a constitution. He would have reasoned from minutiae to magnitude. It is not from his prejudices only, but from the disorderly cast of his genius, that he is unfitted for the subject he writes upon. Even his genius is without a constitution. It is a genius at random, and not a genius constituted. But he must say something. He has therefore mounted in the air like a balloon, to draw the eyes of the multitude from the ground they stand upon.

Much is to be learned from the French Constitution. Conquest and tyranny transplanted themselves with William the Conqueror from Normandy into England, and the country is yet disfigured with the marks. May, then, the example of all France contribute to regenerate the freedom which a province of it destroyed!

The French Constitution says that to preserve the national representation from being corrupt, no member of the National Assembly shall be an officer of the government, a placeman or a pensioner. What will Mr. Burke place against this? I will whisper his answer: Loaves and Fishes. Ah! this government of loaves and fishes has more mischief in it than people have yet reflected on. The National Assembly has made the discovery, and it holds out the example to the world. Had governments agreed to quarrel on purpose to fleece their countries by taxes, they could not have succeeded better than they have done.

Everything in the English government appears to me the reverse of what it ought to be, and of what it is said to be. The Parliament, imperfectly and capriciously elected as it is, is nevertheless supposed to hold the national purse in trust for the nation; but in the manner in which an English Parliament is constructed it is like a man being both mortgagor and mortgagee, and in the case of misapplication of trust it is the criminal sitting in judgment upon himself. If those who vote the supplies are the same persons who receive the supplies when voted, and are to account for the expenditure of those supplies to those who voted them, it is themselves accountable to themselves, and the Comedy of Errors concludes with the pantomime of Hush. Neither the Ministerial party nor the Opposition will touch upon this case. The national purse is the common hack which each

mounts upon. It is like what the country people call "Ride and tie—you ride a little way, and then I."*⁵ They order these things better in France.

The French Constitution says that the right of war and peace is in the nation. Where else should it reside but in those who are to pay the expense?

In England this right is said to reside in a metaphor shown at the Tower for sixpence or a shilling a piece: so are the lions; and it would be a step nearer to reason to say it resided in them, for any inanimate metaphor is no more than a hat or a cap. We can all see the absurdity of worshipping Aaron's molten calf, or Nebuchadnezzar's golden image; but why do men continue to practise themselves the absurdities they despise in others?

It may with reason be said that in the manner the English nation is represented it signifies not where the right resides, whether in the Crown or in the Parliament. War is the common harvest of all those who participate in the division and expenditure of public money, in all countries. It is the art of conquering at home; the object of it is an increase of revenue; and as revenue cannot be increased without taxes, a pretence must be made for expenditure. In reviewing the history of the English Government, its wars and its taxes, a bystander, not blinded by prejudice nor warped by interest, would declare that taxes were not raised to carry on wars, but that wars were raised to carry on taxes.

Mr. Burke, as a member of the House of Commons, is a part of the English Government; and though he professes himself an enemy to war, he abuses the French Constitution, which seeks to explode it. He holds up the English Government as a model, in all its parts, to France; but he should first know the remarks which the French make upon it. They contend in favor of their own, that the portion of liberty enjoyed in England is just enough to enslave a country more productively than by despotism, and that as the real object of all despotism is revenue, a government so formed obtains more than it could do either by direct despotism, or in a full state of freedom, and is, therefore on the ground of interest, opposed to both. They account also for the readiness which always appears in such governments for engaging in wars by remarking on the different motives which produced them. In despotic governments wars are the effect of pride; but in those governments in which they become the means of taxation, they acquire thereby a more permanent promptitude.

The French Constitution, therefore, to provide against both these evils, has taken away the power of declaring war from kings and ministers, and placed the right where the expense must fall.

When the question of the right of war and peace was agitating in the National Assembly, the people of England appeared to be much interested in the event, and highly to applaud the decision. As a principle it applies as much to one country as another. William the Conqueror, as a conqueror, held this power of war and peace in himself, and his descendants have ever since claimed it under him as a right.

Although Mr. Burke has asserted the right of the Parliament at the Revolution to bind and control the nation and posterity for ever, he denies at the same time that the Parliament or the nation had any right to alter what he calls the succession of the crown in anything but in part, or by a sort of modification. By his taking this ground he throws the case back to the Norman Conquest, and by thus running a line of succession springing from William the Conqueror to the present day, he makes it necessary to enquire who and what William the Conqueror was, and where he came from, and into the origin, history and nature of what are called prerogatives. Everything must have had a beginning, and the fog of time and antiquity should be penetrated to discover it. Let, then, Mr. Burke bring forward his William of Normandy, for it is to this origin that his argument goes. It also unfortunately happens, in running this line of succession, that another line parallel thereto presents itself, which is that if the succession runs in the line of the conquest, the nation runs in the line of being conquered, and it ought to rescue itself from this reproach.

But it will perhaps be said that though the power of declaring war descends in the heritage of the conquest, it is held in check by the right of Parliament to withhold the supplies. It will always happen when a thing is originally wrong that amendments do not make it right, and it often happens that they do as much mischief one way as good the other, and such is the case here, for if the one rashly declares war as a matter of right, and the other peremptorily withholds the supplies as a matter of right, the remedy becomes as bad, or worse, than the disease. The one forces the nation to a combat, and the other ties its hands; but the more probable issue is that the contest will end in a collusion between the parties, and be made a screen to both.

On this question of war, three things are to be considered. First, the right of declaring it: secondly, the expense of supporting it: thirdly, the mode of conducting it after it is declared. The French Constitution places the right where the expense must fall, and this union can only be in the nation. The mode of conducting it after it is declared, it consigns to the executive department. Were this the case in all countries, we should hear but little more of wars.

Before I proceed to consider other parts of the French Constitution, and by way of relieving the fatigue of argument, I will introduce an anecdote which I had from Dr. Franklin.

While the Doctor resided in France as Minister from America, during the war, he had numerous proposals made to him by projectors of every country and of every kind, who wished to go to the land that floweth with milk and honey, America; and among the rest, there was one who offered himself to be king. He introduced his proposal to the Doctor by letter, which is now in the hands of M. Beaumarchais, of Paris—stating, first, that as the Americans had dismissed or sent away*[6](#) their King, that they would want another. Secondly, that himself was a Norman. Thirdly, that he was of a more ancient family than the Dukes of Normandy, and of a more honorable descent, his line having never been bastardised. Fourthly, that there was already a precedent in England of kings coming out of Normandy, and on these grounds he rested his offer, enjoining that the Doctor would forward it to America. But as the Doctor neither did this, nor yet sent him an answer, the projector wrote a second letter, in which he did not, it is true, threaten to go over and conquer America, but only with great dignity proposed that if his offer was not accepted, an acknowledgment of about L30,000 might be made to him for his generosity! Now, as all arguments respecting succession must necessarily connect that succession with some beginning, Mr. Burke's arguments on this subject go to show that there is no English origin of kings, and that they are descendants of the Norman line in right of the Conquest. It may, therefore, be of service to his doctrine to make this story known, and to inform him, that in case of that natural extinction to which all mortality is subject, Kings may again be had from Normandy, on more reasonable terms than William the Conqueror; and consequently, that the good people of England, at the revolution of 1688, might have done much better, had such a generous Norman as this known their wants, and they had known his. The chivalric character which Mr. Burke so much

admires, is certainly much easier to make a bargain with than a hard dealing Dutchman. But to return to the matters of the constitution: The French Constitution says, There shall be no titles; and, of consequence, all that class of equivocal generation which in some countries is called "aristocracy" and in others "nobility," is done away, and the peer is exalted into the Man.

Titles are but nicknames, and every nickname is a title. The thing is perfectly harmless in itself, but it marks a sort of foppery in the human character, which degrades it. It reduces man into the diminutive of man in things which are great, and the counterfeit of women in things which are little. It talks about its fine blue ribbon like a girl, and shows its new garter like a child. A certain writer, of some antiquity, says: "When I was a child, I thought as a child; but when I became a man, I put away childish things."

It is, properly, from the elevated mind of France that the folly of titles has fallen. It has outgrown the baby clothes of Count and Duke, and breeched itself in manhood. France has not levelled, it has exalted. It has put down the dwarf, to set up the man. The punyism of a senseless word like Duke, Count or Earl has ceased to please. Even those who possessed them have disowned the gibberish, and as they outgrew the rickets, have despised the rattle. The genuine mind of man, thirsting for its native home, society, contemns the gewgaws that separate him from it. Titles are like circles drawn by the magician's wand, to contract the sphere of man's felicity. He lives immured within the Bastille of a word, and surveys at a distance the envied life of man.

Is it, then, any wonder that titles should fall in France? Is it not a greater wonder that they should be kept up anywhere? What are they? What is their worth, and "what is their amount?" When we think or speak of a Judge or a General, we associate with it the ideas of office and character; we think of gravity in one and bravery in the other; but when we use the word merely as a title, no ideas associate with it. Through all the vocabulary of Adam there is not such an animal as a Duke or a Count; neither can we connect any certain ideas with the words. Whether they mean strength or weakness, wisdom or folly, a child or a man, or the rider or the horse, is all equivocal. What respect then can be paid to that which describes nothing, and which means nothing? Imagination has given figure and character to centaurs,

satyrs, and down to all the fairy tribe; but titles baffle even the powers of fancy, and are a chimerical nondescript.

But this is not all. If a whole country is disposed to hold them in contempt, all their value is gone, and none will own them. It is common opinion only that makes them anything, or nothing, or worse than nothing. There is no occasion to take titles away, for they take themselves away when society concurs to ridicule them. This species of imaginary consequence has visibly declined in every part of Europe, and it hastens to its exit as the world of reason continues to rise. There was a time when the lowest class of what are called nobility was more thought of than the highest is now, and when a man in armour riding throughout Christendom in quest of adventures was more stared at than a modern Duke. The world has seen this folly fall, and it has fallen by being laughed at, and the farce of titles will follow its fate. The patriots of France have discovered in good time that rank and dignity in society must take a new ground. The old one has fallen through. It must now take the substantial ground of character, instead of the chimerical ground of titles; and they have brought their titles to the altar, and made of them a burnt-offering to Reason.

If no mischief had annexed itself to the folly of titles they would not have been worth a serious and formal destruction, such as the National Assembly have decreed them; and this makes it necessary to enquire farther into the nature and character of aristocracy.

That, then, which is called aristocracy in some countries and nobility in others arose out of the governments founded upon conquest. It was originally a military order for the purpose of supporting military government (for such were all governments founded in conquest); and to keep up a succession of this order for the purpose for which it was established, all the younger branches of those families were disinherited and the law of primogenitureship set up.

The nature and character of aristocracy shows itself to us in this law. It is the law against every other law of nature, and Nature herself calls for its destruction. Establish family justice, and aristocracy falls. By the aristocratical law of primogenitureship, in a family of six children five are exposed. Aristocracy has never more than one child. The rest are begotten to be devoured. They are thrown to the cannibal for prey, and the natural parent prepares the unnatural repast.

As everything which is out of nature in man affects, more or less, the interest of society, so does this. All the children which the aristocracy disowns (which are all except the eldest) are, in general, cast like orphans on a parish, to be provided for by the public, but at a greater charge. Unnecessary offices and places in governments and courts are created at the expense of the public to maintain them.

With what kind of parental reflections can the father or mother contemplate their younger offspring? By nature they are children, and by marriage they are heirs; but by aristocracy they are bastards and orphans. They are the flesh and blood of their parents in the one line, and nothing akin to them in the other. To restore, therefore, parents to their children, and children to their parents relations to each other, and man to society—and to exterminate the monster aristocracy, root and branch—the French Constitution has destroyed the law of Primogeniture. Here then lies the monster; and Mr. Burke, if he pleases, may write its epitaph.

Hitherto we have considered aristocracy chiefly in one point of view. We have now to consider it in another. But whether we view it before or behind, or sideways, or any way else, domestically or publicly, it is still a monster.

In France aristocracy had one feature less in its countenance than what it has in some other countries. It did not compose a body of hereditary legislators. It was not "a corporation of aristocracy," for such I have heard M. de la Fayette describe an English House of Peers. Let us then examine the grounds upon which the French Constitution has resolved against having such a House in France.

Because, in the first place, as is already mentioned, aristocracy is kept up by family tyranny and injustice.

Secondly. Because there is an unnatural unfitness in an aristocracy to be legislators for a nation. Their ideas of distributive justice are corrupted at the very source. They begin life by trampling on all their younger brothers and sisters, and relations of every kind, and are taught and educated so to do. With what ideas of justice or honour can that man enter a house of legislation, who absorbs in his own person the inheritance of a whole family of children or doles out to them some pitiful portion with the insolence of a gift?

Thirdly. Because the idea of hereditary legislators is as inconsistent as that of hereditary judges, or hereditary juries; and as absurd as an hereditary

mathematician, or an hereditary wise man; and as ridiculous as an hereditary poet laureate.

Fourthly. Because a body of men, holding themselves accountable to nobody, ought not to be trusted by anybody.

Fifthly. Because it is continuing the uncivilised principle of governments founded in conquest, and the base idea of man having property in man, and governing him by personal right.

Sixthly. Because aristocracy has a tendency to deteriorate the human species. By the universal economy of nature it is known, and by the instance of the Jews it is proved, that the human species has a tendency to degenerate, in any small number of persons, when separated from the general stock of society, and inter-marrying constantly with each other. It defeats even its pretended end, and becomes in time the opposite of what is noble in man. Mr. Burke talks of nobility; let him show what it is. The greatest characters the world have known have arisen on the democratic floor. Aristocracy has not been able to keep a proportionate pace with democracy. The artificial Noble shrinks into a dwarf before the Noble of Nature; and in the few instances of those (for there are some in all countries) in whom nature, as by a miracle, has survived in aristocracy, Those Men Despise It.—But it is time to proceed to a new subject.

The French Constitution has reformed the condition of the clergy. It has raised the income of the lower and middle classes, and taken from the higher. None are now less than twelve hundred livres (fifty pounds sterling), nor any higher than two or three thousand pounds. What will Mr. Burke place against this? Hear what he says.

He says: "That the people of England can see without pain or grudging, an archbishop precede a duke; they can see a Bishop of Durham, or a Bishop of Winchester in possession of L10,000 a-year; and cannot see why it is in worse hands than estates to a like amount, in the hands of this earl or that squire." And Mr. Burke offers this as an example to France.

As to the first part, whether the archbishop precedes the duke, or the duke the bishop, it is, I believe, to the people in general, somewhat like Sternhold and Hopkins, or Hopkins and Sternhold; you may put which you please first; and as I confess that I do not understand the merits of this case, I will not contest it with Mr. Burke.

But with respect to the latter, I have something to say. Mr. Burke has not put the case right. The comparison is out of order, by being put between the bishop and the earl or the squire. It ought to be put between the bishop and the curate, and then it will stand thus:—"The people of England can see without pain or grudging, a Bishop of Durham, or a Bishop of Winchester, in possession of ten thousand pounds a-year, and a curate on thirty or forty pounds a-year, or less." No, sir, they certainly do not see those things without great pain or grudging. It is a case that applies itself to every man's sense of justice, and is one among many that calls aloud for a constitution.

In France the cry of "the church! the church!" was repeated as often as in Mr. Burke's book, and as loudly as when the Dissenters' Bill was before the English Parliament; but the generality of the French clergy were not to be deceived by this cry any longer. They knew that whatever the pretence might be, it was they who were one of the principal objects of it. It was the cry of the high beneficed clergy, to prevent any regulation of income taking place between those of ten thousand pounds a-year and the parish priest. They therefore joined their case to those of every other oppressed class of men, and by this union obtained redress.

The French Constitution has abolished tythes, that source of perpetual discontent between the tythe-holder and the parishioner. When land is held on tythe, it is in the condition of an estate held between two parties; the one receiving one-tenth, and the other nine-tenths of the produce: and consequently, on principles of equity, if the estate can be improved, and made to produce by that improvement double or treble what it did before, or in any other ratio, the expense of such improvement ought to be borne in like proportion between the parties who are to share the produce. But this is not the case in tythes: the farmer bears the whole expense, and the tythe-holder takes a tenth of the improvement, in addition to the original tenth, and by this means gets the value of two-tenths instead of one. This is another case that calls for a constitution.

The French Constitution hath abolished or renounced Toleration and Intolerance also, and hath established Universal Right Of Conscience.

Toleration is not the opposite of Intolerance, but is the counterfeit of it. Both are despotisms. The one assumes to itself the right of withholding Liberty of Conscience, and the other of granting it. The one is the Pope armed with fire and faggot, and the other is the Pope selling or granting

indulgences. The former is church and state, and the latter is church and traffic.

But Toleration may be viewed in a much stronger light. Man worships not himself, but his Maker; and the liberty of conscience which he claims is not for the service of himself, but of his God. In this case, therefore, we must necessarily have the associated idea of two things; the mortal who renders the worship, and the Immortal Being who is worshipped. Toleration, therefore, places itself, not between man and man, nor between church and church, nor between one denomination of religion and another, but between God and man; between the being who worships, and the Being who is worshipped; and by the same act of assumed authority which it tolerates man to pay his worship, it presumptuously and blasphemously sets itself up to tolerate the Almighty to receive it.

Were a bill brought into any Parliament, entitled, "An Act to tolerate or grant liberty to the Almighty to receive the worship of a Jew or Turk," or "to prohibit the Almighty from receiving it," all men would startle and call it blasphemy. There would be an uproar. The presumption of toleration in religious matters would then present itself unmasked; but the presumption is not the less because the name of "Man" only appears to those laws, for the associated idea of the worshipper and the worshipped cannot be separated. Who then art thou, vain dust and ashes! by whatever name thou art called, whether a King, a Bishop, a Church, or a State, a Parliament, or anything else, that obtrudest thine insignificance between the soul of man and its Maker? Mind thine own concerns. If he believes not as thou believest, it is a proof that thou believest not as he believes, and there is no earthly power can determine between you.

With respect to what are called denominations of religion, if every one is left to judge of its own religion, there is no such thing as a religion that is wrong; but if they are to judge of each other's religion, there is no such thing as a religion that is right; and therefore all the world is right, or all the world is wrong. But with respect to religion itself, without regard to names, and as directing itself from the universal family of mankind to the Divine object of all adoration, it is man bringing to his Maker the fruits of his heart; and though those fruits may differ from each other like the fruits of the earth, the grateful tribute of every one is accepted.

A Bishop of Durham, or a Bishop of Winchester, or the archbishop who heads the dukes, will not refuse a tythe-sheaf of wheat because it is not a cock of hay, nor a cock of hay because it is not a sheaf of wheat; nor a pig, because it is neither one nor the other; but these same persons, under the figure of an established church, will not permit their Maker to receive the varied tythes of man's devotion.

One of the continual choruses of Mr. Burke's book is "Church and State." He does not mean some one particular church, or some one particular state, but any church and state; and he uses the term as a general figure to hold forth the political doctrine of always uniting the church with the state in every country, and he censures the National Assembly for not having done this in France. Let us bestow a few thoughts on this subject.

All religions are in their nature kind and benign, and united with principles of morality. They could not have made proselytes at first by professing anything that was vicious, cruel, persecuting, or immoral. Like everything else, they had their beginning; and they proceeded by persuasion, exhortation, and example. How then is it that they lose their native mildness, and become morose and intolerant?

It proceeds from the connection which Mr. Burke recommends. By engendering the church with the state, a sort of mule-animal, capable only of destroying, and not of breeding up, is produced, called the Church established by Law. It is a stranger, even from its birth, to any parent mother, on whom it is begotten, and whom in time it kicks out and destroys.

The inquisition in Spain does not proceed from the religion originally professed, but from this mule-animal, engendered between the church and the state. The burnings in Smithfield proceeded from the same heterogeneous production; and it was the regeneration of this strange animal in England afterwards, that renewed rancour and irreligion among the inhabitants, and that drove the people called Quakers and Dissenters to America. Persecution is not an original feature in any religion; but it is always the strongly-marked feature of all law-religions, or religions established by law. Take away the law-establishment, and every religion re-assumes its original benignity. In America, a catholic priest is a good citizen, a good character, and a good neighbour; an episcopalian minister is of the same description: and this proceeds independently of the men, from there being no law-establishment in America.

If also we view this matter in a temporal sense, we shall see the ill effects it has had on the prosperity of nations. The union of church and state has impoverished Spain. The revoking the edict of Nantes drove the silk manufacture from that country into England; and church and state are now driving the cotton manufacture from England to America and France. Let then Mr. Burke continue to preach his antipolitical doctrine of Church and State. It will do some good. The National Assembly will not follow his advice, but will benefit by his folly. It was by observing the ill effects of it in England, that America has been warned against it; and it is by experiencing them in France, that the National Assembly have abolished it, and, like America, have established Universal Right Of Conscience, And Universal Right Of Citizenship.*[7](#)

I will here cease the comparison with respect to the principles of the French Constitution, and conclude this part of the subject with a few observations on the organisation of the formal parts of the French and English governments.

The executive power in each country is in the hands of a person styled the King; but the French Constitution distinguishes between the King and the Sovereign: It considers the station of King as official, and places Sovereignty in the nation.

The representatives of the nation, who compose the National Assembly, and who are the legislative power, originate in and from the people by election, as an inherent right in the people.—In England it is otherwise; and this arises from the original establishment of what is called its monarchy; for, as by the conquest all the rights of the people or the nation were absorbed into the hands of the Conqueror, and who added the title of King to that of Conqueror, those same matters which in France are now held as rights in the people, or in the nation, are held in England as grants from what is called the crown. The Parliament in England, in both its branches, was erected by patents from the descendants of the Conqueror. The House of Commons did not originate as a matter of right in the people to delegate or elect, but as a grant or boon.

By the French Constitution the nation is always named before the king. The third article of the declaration of rights says: "The nation is essentially the source (or fountain) of all sovereignty." Mr. Burke argues that in England a king is the fountain—that he is the fountain of all honour. But as

this idea is evidently descended from the conquest I shall make no other remark upon it, than that it is the nature of conquest to turn everything upside down; and as Mr. Burke will not be refused the privilege of speaking twice, and as there are but two parts in the figure, the fountain and the spout, he will be right the second time.

The French Constitution puts the legislative before the executive, the law before the king; *la loi, le roi*. This also is in the natural order of things, because laws must have existence before they can have execution.

A king in France does not, in addressing himself to the National Assembly, say, "My Assembly," similar to the phrase used in England of my "Parliament"; neither can he use it consistently with the constitution, nor could it be admitted. There may be propriety in the use of it in England, because as is before mentioned, both Houses of Parliament originated from what is called the crown by patent or boon—and not from the inherent rights of the people, as the National Assembly does in France, and whose name designates its origin.

The President of the National Assembly does not ask the King to grant to the Assembly liberty of speech, as is the case with the English House of Commons. The constitutional dignity of the National Assembly cannot debase itself. Speech is, in the first place, one of the natural rights of man always retained; and with respect to the National Assembly the use of it is their duty, and the nation is their authority. They were elected by the greatest body of men exercising the right of election the European world ever saw. They sprung not from the filth of rotten boroughs, nor are they the vassal representatives of aristocratical ones. Feeling the proper dignity of their character they support it. Their Parliamentary language, whether for or against a question, is free, bold and manly, and extends to all the parts and circumstances of the case. If any matter or subject respecting the executive department or the person who presides in it (the king) comes before them it is debated on with the spirit of men, and in the language of gentlemen; and their answer or their address is returned in the same style. They stand not aloof with the gaping vacuity of vulgar ignorance, nor bend with the cringe of sycophantic insignificance. The graceful pride of truth knows no extremes, and preserves, in every latitude of life, the right-angled character of man.

Let us now look to the other side of the question. In the addresses of the English Parliaments to their kings we see neither the intrepid spirit of the old Parliaments of France, nor the serene dignity of the present National Assembly; neither do we see in them anything of the style of English manners, which border somewhat on bluntness. Since then they are neither of foreign extraction, nor naturally of English production, their origin must be sought for elsewhere, and that origin is the Norman Conquest. They are evidently of the vassalage class of manners, and emphatically mark the prostrate distance that exists in no other condition of men than between the conqueror and the conquered. That this vassalage idea and style of speaking was not got rid of even at the Revolution of 1688, is evident from the declaration of Parliament to William and Mary in these words: "We do most humbly and faithfully submit ourselves, our heirs and posterities, for ever." Submission is wholly a vassalage term, repugnant to the dignity of freedom, and an echo of the language used at the Conquest.

As the estimation of all things is given by comparison, the Revolution of 1688, however from circumstances it may have been exalted beyond its value, will find its level. It is already on the wane, eclipsed by the enlarging orb of reason, and the luminous revolutions of America and France. In less than another century it will go, as well as Mr. Burke's labours, "to the family vault of all the Capulets." Mankind will then scarcely believe that a country calling itself free would send to Holland for a man, and clothe him with power on purpose to put themselves in fear of him, and give him almost a million sterling a year for leave to submit themselves and their posterity, like bondmen and bondwomen, for ever.

But there is a truth that ought to be made known; I have had the opportunity of seeing it; which is, that notwithstanding appearances, there is not any description of men that despise monarchy so much as courtiers. But they well know, that if it were seen by others, as it is seen by them, the juggle could not be kept up; they are in the condition of men who get their living by a show, and to whom the folly of that show is so familiar that they ridicule it; but were the audience to be made as wise in this respect as themselves, there would be an end to the show and the profits with it. The difference between a republican and a courtier with respect to monarchy, is that the one opposes monarchy, believing it to be something; and the other laughs at it, knowing it to be nothing.

As I used sometimes to correspond with Mr. Burke believing him then to be a man of sounder principles than his book shows him to be, I wrote to him last winter from Paris, and gave him an account how prosperously matters were going on. Among other subjects in that letter, I referred to the happy situation the National Assembly were placed in; that they had taken ground on which their moral duty and their political interest were united. They have not to hold out a language which they do not themselves believe, for the fraudulent purpose of making others believe it. Their station requires no artifice to support it, and can only be maintained by enlightening mankind. It is not their interest to cherish ignorance, but to dispel it. They are not in the case of a ministerial or an opposition party in England, who, though they are opposed, are still united to keep up the common mystery. The National Assembly must throw open a magazine of light. It must show man the proper character of man; and the nearer it can bring him to that standard, the stronger the National Assembly becomes.

In contemplating the French Constitution, we see in it a rational order of things. The principles harmonise with the forms, and both with their origin. It may perhaps be said as an excuse for bad forms, that they are nothing more than forms; but this is a mistake. Forms grow out of principles, and operate to continue the principles they grow from. It is impossible to practise a bad form on anything but a bad principle. It cannot be ingrafted on a good one; and wherever the forms in any government are bad, it is a certain indication that the principles are bad also.

I will here finally close this subject. I began it by remarking that Mr. Burke had voluntarily declined going into a comparison of the English and French Constitutions. He apologises (in page 241) for not doing it, by saying that he had not time. Mr. Burke's book was upwards of eight months in hand, and is extended to a volume of three hundred and sixty-six pages. As his omission does injury to his cause, his apology makes it worse; and men on the English side of the water will begin to consider, whether there is not some radical defect in what is called the English constitution, that made it necessary for Mr. Burke to suppress the comparison, to avoid bringing it into view.

As Mr. Burke has not written on constitutions so neither has he written on the French Revolution. He gives no account of its commencement or its progress. He only expresses his wonder. "It looks," says he, "to me, as if I

were in a great crisis, not of the affairs of France alone, but of all Europe, perhaps of more than Europe. All circumstances taken together, the French Revolution is the most astonishing that has hitherto happened in the world."

As wise men are astonished at foolish things, and other people at wise ones, I know not on which ground to account for Mr. Burke's astonishment; but certain it is, that he does not understand the French Revolution. It has apparently burst forth like a creation from a chaos, but it is no more than the consequence of a mental revolution priorly existing in France. The mind of the nation had changed beforehand, and the new order of things has naturally followed the new order of thoughts. I will here, as concisely as I can, trace out the growth of the French Revolution, and mark the circumstances that have contributed to produce it.

The despotism of Louis XIV., united with the gaiety of his Court, and the gaudy ostentation of his character, had so humbled, and at the same time so fascinated the mind of France, that the people appeared to have lost all sense of their own dignity, in contemplating that of their Grand Monarch; and the whole reign of Louis XV., remarkable only for weakness and effeminacy, made no other alteration than that of spreading a sort of lethargy over the nation, from which it showed no disposition to rise.

The only signs which appeared to the spirit of Liberty during those periods, are to be found in the writings of the French philosophers. Montesquieu, President of the Parliament of Bordeaux, went as far as a writer under a despotic government could well proceed; and being obliged to divide himself between principle and prudence, his mind often appears under a veil, and we ought to give him credit for more than he has expressed.

Voltaire, who was both the flatterer and the satirist of despotism, took another line. His forte lay in exposing and ridiculing the superstitions which priest-craft, united with state-craft, had interwoven with governments. It was not from the purity of his principles, or his love of mankind (for satire and philanthropy are not naturally concordant), but from his strong capacity of seeing folly in its true shape, and his irresistible propensity to expose it, that he made those attacks. They were, however, as formidable as if the motive had been virtuous; and he merits the thanks rather than the esteem of mankind.

On the contrary, we find in the writings of Rousseau, and the Abbe Raynal, a loveliness of sentiment in favour of liberty, that excites respect, and elevates the human faculties; but having raised this animation, they do not direct its operation, and leave the mind in love with an object, without describing the means of possessing it.

The writings of Quesnay, Turgot, and the friends of those authors, are of the serious kind; but they laboured under the same disadvantage with Montesquieu; their writings abound with moral maxims of government, but are rather directed to economise and reform the administration of the government, than the government itself.

But all those writings and many others had their weight; and by the different manner in which they treated the subject of government, Montesquieu by his judgment and knowledge of laws, Voltaire by his wit, Rousseau and Raynal by their animation, and Quesnay and Turgot by their moral maxims and systems of economy, readers of every class met with something to their taste, and a spirit of political inquiry began to diffuse itself through the nation at the time the dispute between England and the then colonies of America broke out.

In the war which France afterwards engaged in, it is very well known that the nation appeared to be before-hand with the French ministry. Each of them had its view; but those views were directed to different objects; the one sought liberty, and the other retaliation on England. The French officers and soldiers who after this went to America, were eventually placed in the school of Freedom, and learned the practice as well as the principles of it by heart.

As it was impossible to separate the military events which took place in America from the principles of the American Revolution, the publication of those events in France necessarily connected themselves with the principles which produced them. Many of the facts were in themselves principles; such as the declaration of American Independence, and the treaty of alliance between France and America, which recognised the natural rights of man, and justified resistance to oppression.

The then Minister of France, Count Vergennes, was not the friend of America; and it is both justice and gratitude to say, that it was the Queen of France who gave the cause of America a fashion at the French Court. Count Vergennes was the personal and social friend of Dr. Franklin; and the

Doctor had obtained, by his sensible gracefulness, a sort of influence over him; but with respect to principles Count Vergennes was a despot.

The situation of Dr. Franklin, as Minister from America to France, should be taken into the chain of circumstances. The diplomatic character is of itself the narrowest sphere of society that man can act in. It forbids intercourse by the reciprocity of suspicion; and a diplomatic is a sort of unconnected atom, continually repelling and repelled. But this was not the case with Dr. Franklin. He was not the diplomatic of a Court, but of Man. His character as a philosopher had been long established, and his circle of society in France was universal.

Count Vergennes resisted for a considerable time the publication in France of American constitutions, translated into the French language: but even in this he was obliged to give way to public opinion, and a sort of propriety in admitting to appear what he had undertaken to defend. The American constitutions were to liberty what a grammar is to language: they define its parts of speech, and practically construct them into syntax.

The peculiar situation of the then Marquis de la Fayette is another link in the great chain. He served in America as an American officer under a commission of Congress, and by the universality of his acquaintance was in close friendship with the civil government of America, as well as with the military line. He spoke the language of the country, entered into the discussions on the principles of government, and was always a welcome friend at any election.

When the war closed, a vast reinforcement to the cause of Liberty spread itself over France, by the return of the French officers and soldiers. A knowledge of the practice was then joined to the theory; and all that was wanting to give it real existence was opportunity. Man cannot, properly speaking, make circumstances for his purpose, but he always has it in his power to improve them when they occur, and this was the case in France.

M. Neckar was displaced in May, 1781; and by the ill-management of the finances afterwards, and particularly during the extravagant administration of M. Calonne, the revenue of France, which was nearly twenty-four millions sterling per year, was become unequal to the expenditure, not because the revenue had decreased, but because the expenses had increased; and this was a circumstance which the nation laid hold of to bring forward a Revolution. The English Minister, Mr. Pitt, has frequently alluded to the

state of the French finances in his budgets, without understanding the subject. Had the French Parliaments been as ready to register edicts for new taxes as an English Parliament is to grant them, there had been no derangement in the finances, nor yet any Revolution; but this will better explain itself as I proceed.

It will be necessary here to show how taxes were formerly raised in France. The King, or rather the Court or Ministry acting under the use of that name, framed the edicts for taxes at their own discretion, and sent them to the Parliaments to be registered; for until they were registered by the Parliaments they were not operative. Disputes had long existed between the Court and the Parliaments with respect to the extent of the Parliament's authority on this head. The Court insisted that the authority of Parliaments went no farther than to remonstrate or show reasons against the tax, reserving to itself the right of determining whether the reasons were well or ill-founded; and in consequence thereof, either to withdraw the edict as a matter of choice, or to order it to be unregistered as a matter of authority. The Parliaments on their part insisted that they had not only a right to remonstrate, but to reject; and on this ground they were always supported by the nation.

But to return to the order of my narrative. M. Calonne wanted money: and as he knew the sturdy disposition of the Parliaments with respect to new taxes, he ingeniously sought either to approach them by a more gentle means than that of direct authority, or to get over their heads by a manoeuvre; and for this purpose he revived the project of assembling a body of men from the several provinces, under the style of an "Assembly of the Notables," or men of note, who met in 1787, and who were either to recommend taxes to the Parliaments, or to act as a Parliament themselves. An Assembly under this name had been called in 1617.

As we are to view this as the first practical step towards the Revolution, it will be proper to enter into some particulars respecting it. The Assembly of the Notables has in some places been mistaken for the States-General, but was wholly a different body, the States-General being always by election. The persons who composed the Assembly of the Notables were all nominated by the king, and consisted of one hundred and forty members. But as M. Calonne could not depend upon a majority of this Assembly in his favour, he very ingeniously arranged them in such a manner as to make

forty-four a majority of one hundred and forty; to effect this he disposed of them into seven separate committees, of twenty members each. Every general question was to be decided, not by a majority of persons, but by a majority of committee, and as eleven votes would make a majority in a committee, and four committees a majority of seven, M. Calonne had good reason to conclude that as forty-four would determine any general question he could not be outvoted. But all his plans deceived him, and in the event became his overthrow.

The then Marquis de la Fayette was placed in the second committee, of which the Count D'Artois was president, and as money matters were the object, it naturally brought into view every circumstance connected with it. M. de la Fayette made a verbal charge against Calonne for selling crown lands to the amount of two millions of livres, in a manner that appeared to be unknown to the king. The Count D'Artois (as if to intimidate, for the Bastille was then in being) asked the Marquis if he would render the charge in writing? He replied that he would. The Count D'Artois did not demand it, but brought a message from the king to that purport. M. de la Fayette then delivered in his charge in writing, to be given to the king, undertaking to support it. No farther proceedings were had upon this affair, but M. Calonne was soon after dismissed by the king and set off to England.

As M. de la Fayette, from the experience of what he had seen in America, was better acquainted with the science of civil government than the generality of the members who composed the Assembly of the Notables could then be, the brunt of the business fell considerably to his share. The plan of those who had a constitution in view was to contend with the Court on the ground of taxes, and some of them openly professed their object. Disputes frequently arose between Count D'Artois and M. de la Fayette upon various subjects. With respect to the arrears already incurred the latter proposed to remedy them by accommodating the expenses to the revenue instead of the revenue to the expenses; and as objects of reform he proposed to abolish the Bastille and all the State prisons throughout the nation (the keeping of which was attended with great expense), and to suppress Lettres de Cachet; but those matters were not then much attended to, and with respect to Lettres de Cachet, a majority of the Nobles appeared to be in favour of them.

On the subject of supplying the Treasury by new taxes the Assembly declined taking the matter on themselves, concurring in the opinion that they had not authority. In a debate on this subject M. de la Fayette said that raising money by taxes could only be done by a National Assembly, freely elected by the people, and acting as their representatives. Do you mean, said the Count D'Artois, the States-General? M. de la Fayette replied that he did. Will you, said the Count D'Artois, sign what you say to be given to the king? The other replied that he would not only do this but that he would go farther, and say that the effectual mode would be for the king to agree to the establishment of a constitution.

As one of the plans had thus failed, that of getting the Assembly to act as a Parliament, the other came into view, that of recommending. On this subject the Assembly agreed to recommend two new taxes to be unregistered by the Parliament: the one a stamp-tax and the other a territorial tax, or sort of land-tax. The two have been estimated at about five millions sterling per annum. We have now to turn our attention to the Parliaments, on whom the business was again devolving.

The Archbishop of Thoulouse (since Archbishop of Sens, and now a Cardinal), was appointed to the administration of the finances soon after the dismissal of Calonne. He was also made Prime Minister, an office that did not always exist in France. When this office did not exist, the chief of each of the principal departments transacted business immediately with the King, but when a Prime Minister was appointed they did business only with him. The Archbishop arrived to more state authority than any minister since the Duke de Choiseul, and the nation was strongly disposed in his favour; but by a line of conduct scarcely to be accounted for he perverted every opportunity, turned out a despot, and sunk into disgrace, and a Cardinal.

The Assembly of the Notables having broken up, the minister sent the edicts for the two new taxes recommended by the Assembly to the Parliaments to be unregistered. They of course came first before the Parliament of Paris, who returned for answer: "that with such a revenue as the nation then supported the name of taxes ought not to be mentioned but for the purpose of reducing them"; and threw both the edicts out.*[8](#) On this refusal the Parliament was ordered to Versailles, where, in the usual form, the King held what under the old government was called a Bed of justice; and the two edicts were unregistered in presence of the Parliament by an

order of State, in the manner mentioned, earlier. On this the Parliament immediately returned to Paris, renewed their session in form, and ordered the enregistering to be struck out, declaring that everything done at Versailles was illegal. All the members of the Parliament were then served with Lettres de Cachet, and exiled to Troyes; but as they continued as inflexible in exile as before, and as vengeance did not supply the place of taxes, they were after a short time recalled to Paris.

The edicts were again tendered to them, and the Count D'Artois undertook to act as representative of the King. For this purpose he came from Versailles to Paris, in a train of procession; and the Parliament were assembled to receive him. But show and parade had lost their influence in France; and whatever ideas of importance he might set off with, he had to return with those of mortification and disappointment. On alighting from his carriage to ascend the steps of the Parliament House, the crowd (which was numerously collected) threw out trite expressions, saying: "This is Monsieur D'Artois, who wants more of our money to spend." The marked disapprobation which he saw impressed him with apprehensions, and the word *Aux armes!* (To arms!) was given out by the officer of the guard who attended him. It was so loudly vociferated, that it echoed through the avenues of the house, and produced a temporary confusion. I was then standing in one of the apartments through which he had to pass, and could not avoid reflecting how wretched was the condition of a disrespected man.

He endeavoured to impress the Parliament by great words, and opened his authority by saying, "The King, our Lord and Master." The Parliament received him very coolly, and with their usual determination not to register the taxes: and in this manner the interview ended.

After this a new subject took place: In the various debates and contests which arose between the Court and the Parliaments on the subject of taxes, the Parliament of Paris at last declared that although it had been customary for Parliaments to enregister edicts for taxes as a matter of convenience, the right belonged only to the States-General; and that, therefore, the Parliament could no longer with propriety continue to debate on what it had not authority to act. The King after this came to Paris and held a meeting with the Parliament, in which he continued from ten in the morning till about six in the evening, and, in a manner that appeared to proceed from

him as if unconsulted upon with the Cabinet or Ministry, gave his word to the Parliament that the States-General should be convened.

But after this another scene arose, on a ground different from all the former. The Minister and the Cabinet were averse to calling the States-General. They well knew that if the States-General were assembled, themselves must fall; and as the King had not mentioned any time, they hit on a project calculated to elude, without appearing to oppose.

For this purpose, the Court set about making a sort of constitution itself. It was principally the work of M. Lamoignon, the Keeper of the Seals, who afterwards shot himself. This new arrangement consisted in establishing a body under the name of a Cour Plenièrè, or Full Court, in which were invested all the powers that the Government might have occasion to make use of. The persons composing this Court were to be nominated by the King; the contended right of taxation was given up on the part of the King, and a new criminal code of laws and law proceedings was substituted in the room of the former. The thing, in many points, contained better principles than those upon which the Government had hitherto been administered; but with respect to the Cour Plenièrè, it was no other than a medium through which despotism was to pass, without appearing to act directly from itself.

The Cabinet had high expectations from their new contrivance. The people who were to compose the Cour Plenièrè were already nominated; and as it was necessary to carry a fair appearance, many of the best characters in the nation were appointed among the number. It was to commence on May 8, 1788; but an opposition arose to it on two grounds the one as to principle, the other as to form.

On the ground of Principle it was contended that Government had not a right to alter itself, and that if the practice was once admitted it would grow into a principle and be made a precedent for any future alterations the Government might wish to establish: that the right of altering the Government was a national right, and not a right of Government. And on the ground of form it was contended that the Cour Plenièrè was nothing more than a larger Cabinet.

The then Duke de la Rochefoucault, Luxembourg, De Noailles, and many others, refused to accept the nomination, and strenuously opposed the whole plan. When the edict for establishing this new court was sent to the Parliaments to be unregistered and put into execution, they resisted also.

The Parliament of Paris not only refused, but denied the authority; and the contest renewed itself between the Parliament and the Cabinet more strongly than ever. While the Parliament were sitting in debate on this subject, the Ministry ordered a regiment of soldiers to surround the House and form a blockade. The members sent out for beds and provisions, and lived as in a besieged citadel: and as this had no effect, the commanding officer was ordered to enter the Parliament House and seize them, which he did, and some of the principal members were shut up in different prisons. About the same time a deputation of persons arrived from the province of Brittany to remonstrate against the establishment of the Cour Pleniere, and those the archbishop sent to the Bastille. But the spirit of the nation was not to be overcome, and it was so fully sensible of the strong ground it had taken—that of withholding taxes—that it contented itself with keeping up a sort of quiet resistance, which effectually overthrew all the plans at that time formed against it. The project of the Cour Pleniere was at last obliged to be given up, and the Prime Minister not long afterwards followed its fate, and M. Neckar was recalled into office.

The attempt to establish the Cour Pleniere had an effect upon the nation which itself did not perceive. It was a sort of new form of government that insensibly served to put the old one out of sight and to unhinge it from the superstitious authority of antiquity. It was Government dethroning Government; and the old one, by attempting to make a new one, made a chasm.

The failure of this scheme renewed the subject of convening the State-General; and this gave rise to a new series of politics. There was no settled form for convening the States-General: all that it positively meant was a deputation from what was then called the Clergy, the Noblesse, and the Commons; but their numbers or their proportions had not been always the same. They had been convened only on extraordinary occasions, the last of which was in 1614; their numbers were then in equal proportions, and they voted by orders.

It could not well escape the sagacity of M. Neckar, that the mode of 1614 would answer neither the purpose of the then government nor of the nation. As matters were at that time circumstanced it would have been too contentious to agree upon anything. The debates would have been endless upon privileges and exemptions, in which neither the wants of the

Government nor the wishes of the nation for a Constitution would have been attended to. But as he did not choose to take the decision upon himself, he summoned again the Assembly of the Notables and referred it to them. This body was in general interested in the decision, being chiefly of aristocracy and high-paid clergy, and they decided in favor of the mode of 1614. This decision was against the sense of the Nation, and also against the wishes of the Court; for the aristocracy opposed itself to both and contended for privileges independent of either. The subject was then taken up by the Parliament, who recommended that the number of the Commons should be equal to the other two: and they should all sit in one house and vote in one body. The number finally determined on was 1,200; 600 to be chosen by the Commons (and this was less than their proportion ought to have been when their worth and consequence is considered on a national scale), 300 by the Clergy, and 300 by the Aristocracy; but with respect to the mode of assembling themselves, whether together or apart, or the manner in which they should vote, those matters were referred.*[9](#)

The election that followed was not a contested election, but an animated one. The candidates were not men, but principles. Societies were formed in Paris, and committees of correspondence and communication established throughout the nation, for the purpose of enlightening the people, and explaining to them the principles of civil government; and so orderly was the election conducted, that it did not give rise even to the rumour of tumult.

The States-General were to meet at Versailles in April 1789, but did not assemble till May. They situated themselves in three separate chambers, or rather the Clergy and Aristocracy withdrew each into a separate chamber. The majority of the Aristocracy claimed what they called the privilege of voting as a separate body, and of giving their consent or their negative in that manner; and many of the bishops and the high-beneficed clergy claimed the same privilege on the part of their Order.

The Tiers Etat (as they were then called) disowned any knowledge of artificial orders and artificial privileges; and they were not only resolute on this point, but somewhat disdainful. They began to consider the Aristocracy as a kind of fungus growing out of the corruption of society, that could not be admitted even as a branch of it; and from the disposition the Aristocracy had shown by upholding Lettres de Cachet, and in sundry other instances, it

was manifest that no constitution could be formed by admitting men in any other character than as National Men.

After various altercations on this head, the Tiers Etat or Commons (as they were then called) declared themselves (on a motion made for that purpose by the Abbe Sieyes) "The Representative Of The Nation; and that the two Orders could be considered but as deputies of corporations, and could only have a deliberate voice when they assembled in a national character with the national representatives." This proceeding extinguished the style of Etats Generaux, or States-General, and erected it into the style it now bears, that of L'Assemblee Nationale, or National Assembly.

This motion was not made in a precipitate manner. It was the result of cool deliberation, and concerned between the national representatives and the patriotic members of the two chambers, who saw into the folly, mischief, and injustice of artificial privileged distinctions. It was become evident, that no constitution, worthy of being called by that name, could be established on anything less than a national ground. The Aristocracy had hitherto opposed the despotism of the Court, and affected the language of patriotism; but it opposed it as its rival (as the English Barons opposed King John) and it now opposed the nation from the same motives.

On carrying this motion, the national representatives, as had been concerted, sent an invitation to the two chambers, to unite with them in a national character, and proceed to business. A majority of the clergy, chiefly of the parish priests, withdrew from the clerical chamber, and joined the nation; and forty-five from the other chamber joined in like manner. There is a sort of secret history belonging to this last circumstance, which is necessary to its explanation; it was not judged prudent that all the patriotic members of the chamber styling itself the Nobles, should quit it at once; and in consequence of this arrangement, they drew off by degrees, always leaving some, as well to reason the case, as to watch the suspected. In a little time the numbers increased from forty-five to eighty, and soon after to a greater number; which, with the majority of the clergy, and the whole of the national representatives, put the malcontents in a very diminutive condition.

The King, who, very different from the general class called by that name, is a man of a good heart, showed himself disposed to recommend a union of the three chambers, on the ground the National Assembly had taken; but the

malcontents exerted themselves to prevent it, and began now to have another project in view. Their numbers consisted of a majority of the aristocratical chamber, and the minority of the clerical chamber, chiefly of bishops and high-beneficed clergy; and these men were determined to put everything to issue, as well by strength as by stratagem. They had no objection to a constitution; but it must be such a one as themselves should dictate, and suited to their own views and particular situations. On the other hand, the Nation disowned knowing anything of them but as citizens, and was determined to shut out all such up-start pretensions. The more aristocracy appeared, the more it was despised; there was a visible imbecility and want of intellects in the majority, a sort of *je ne sais quoi*, that while it affected to be more than citizen, was less than man. It lost ground from contempt more than from hatred; and was rather jeered at as an ass, than dreaded as a lion. This is the general character of aristocracy, or what are called Nobles or Nobility, or rather No-ability, in all countries.

The plan of the malcontents consisted now of two things; either to deliberate and vote by chambers (or orders), more especially on all questions respecting a Constitution (by which the aristocratical chamber would have had a negative on any article of the Constitution); or, in case they could not accomplish this object, to overthrow the National Assembly entirely.

To effect one or other of these objects they began to cultivate a friendship with the despotism they had hitherto attempted to rival, and the Count D'Artois became their chief. The king (who has since declared himself deceived into their measures) held, according to the old form, a Bed of Justice, in which he accorded to the deliberation and vote *par tete* (by head) upon several subjects; but reserved the deliberation and vote upon all questions respecting a constitution to the three chambers separately. This declaration of the king was made against the advice of M. Neckar, who now began to perceive that he was growing out of fashion at Court, and that another minister was in contemplation.

As the form of sitting in separate chambers was yet apparently kept up, though essentially destroyed, the national representatives immediately after this declaration of the King resorted to their own chambers to consult on a protest against it; and the minority of the chamber (calling itself the Nobles), who had joined the national cause, retired to a private house to

consult in like manner. The malcontents had by this time concerted their measures with the court, which the Count D'Artois undertook to conduct; and as they saw from the discontent which the declaration excited, and the opposition making against it, that they could not obtain a control over the intended constitution by a separate vote, they prepared themselves for their final object—that of conspiring against the National Assembly, and overthrowing it.

The next morning the door of the chamber of the National Assembly was shut against them, and guarded by troops; and the members were refused admittance. On this they withdrew to a tennis-ground in the neighbourhood of Versailles, as the most convenient place they could find, and, after renewing their session, took an oath never to separate from each other, under any circumstance whatever, death excepted, until they had established a constitution. As the experiment of shutting up the house had no other effect than that of producing a closer connection in the members, it was opened again the next day, and the public business recommenced in the usual place.

We are now to have in view the forming of the new ministry, which was to accomplish the overthrow of the National Assembly. But as force would be necessary, orders were issued to assemble thirty thousand troops, the command of which was given to Broglio, one of the intended new ministry, who was recalled from the country for this purpose. But as some management was necessary to keep this plan concealed till the moment it should be ready for execution, it is to this policy that a declaration made by Count D'Artois must be attributed, and which is here proper to be introduced.

It could not but occur while the malcontents continued to resort to their chambers separate from the National Assembly, more jealousy would be excited than if they were mixed with it, and that the plot might be suspected. But as they had taken their ground, and now wanted a pretence for quitting it, it was necessary that one should be devised. This was effectually accomplished by a declaration made by the Count D'Artois: "That if they took not a Part in the National Assembly, the life of the king would be endangered": on which they quitted their chambers, and mixed with the Assembly, in one body.

At the time this declaration was made, it was generally treated as a piece of absurdity in Count D'Artois calculated merely to relieve the outstanding members of the two chambers from the diminutive situation they were put in; and if nothing more had followed, this conclusion would have been good. But as things best explain themselves by their events, this apparent union was only a cover to the machinations which were secretly going on; and the declaration accommodated itself to answer that purpose. In a little time the National Assembly found itself surrounded by troops, and thousands more were daily arriving. On this a very strong declaration was made by the National Assembly to the King, remonstrating on the impropriety of the measure, and demanding the reason. The King, who was not in the secret of this business, as himself afterwards declared, gave substantially for answer, that he had no other object in view than to preserve the public tranquility, which appeared to be much disturbed.

But in a few days from this time the plot unravelled itself M. Neckar and the ministry were displaced, and a new one formed of the enemies of the Revolution; and Broglio, with between twenty-five and thirty thousand foreign troops, was arrived to support them. The mask was now thrown off, and matters were come to a crisis. The event was that in a space of three days the new ministry and their abettors found it prudent to fly the nation; the Bastille was taken, and Broglio and his foreign troops dispersed, as is already related in the former part of this work.

There are some curious circumstances in the history of this short-lived ministry, and this short-lived attempt at a counter-revolution. The Palace of Versailles, where the Court was sitting, was not more than four hundred yards distant from the hall where the National Assembly was sitting. The two places were at this moment like the separate headquarters of two combatant armies; yet the Court was as perfectly ignorant of the information which had arrived from Paris to the National Assembly, as if it had resided at an hundred miles distance. The then Marquis de la Fayette, who (as has been already mentioned) was chosen to preside in the National Assembly on this particular occasion, named by order of the Assembly three successive deputations to the king, on the day and up to the evening on which the Bastille was taken, to inform and confer with him on the state of affairs; but the ministry, who knew not so much as that it was attacked, precluded all communication, and were solacing themselves how dextrously they had succeeded; but in a few hours the accounts arrived so thick and

fast that they had to start from their desks and run. Some set off in one disguise, and some in another, and none in their own character. Their anxiety now was to outride the news, lest they should be stopt, which, though it flew fast, flew not so fast as themselves.

It is worth remarking that the National Assembly neither pursued those fugitive conspirators, nor took any notice of them, nor sought to retaliate in any shape whatever. Occupied with establishing a constitution founded on the Rights of Man and the Authority of the People, the only authority on which Government has a right to exist in any country, the National Assembly felt none of those mean passions which mark the character of impertinent governments, founding themselves on their own authority, or on the absurdity of hereditary succession. It is the faculty of the human mind to become what it contemplates, and to act in unison with its object.

The conspiracy being thus dispersed, one of the first works of the National Assembly, instead of vindictive proclamations, as has been the case with other governments, was to publish a declaration of the Rights of Man, as the basis on which the new constitution was to be built, and which is here subjoined:

*Declaration
Of The
Rights Of Man And Of Citizens
By The National Assembly Of France*

The representatives of the people of France, formed into a National Assembly, considering that ignorance, neglect, or contempt of human rights, are the sole causes of public misfortunes and corruptions of Government, have resolved to set forth in a solemn declaration, these natural, imprescriptible, and inalienable rights: that this declaration being constantly present to the minds of the members of the body social, they may be forever kept attentive to their rights and their duties; that the acts of the legislative and executive powers of Government, being capable of being every moment compared with the end of political institutions, may be more respected; and also, that the future claims of the citizens, being directed by simple and incontestable principles, may always tend to the maintenance of the Constitution, and the general happiness.

For these reasons the National Assembly doth recognize and declare, in the presence of the Supreme Being, and with the hope of his blessing and favour, the following sacred rights of men and of citizens:

One: Men are born, and always continue, free and equal in respect of their Rights. Civil distinctions, therefore, can be founded only on Public Utility.

Two: The end of all Political associations is the Preservation of the Natural and Imprescriptible Rights of Man; and these rights are Liberty, Property, Security, and Resistance of Oppression.

Three: The Nation is essentially the source of all Sovereignty; nor can any individual, or any body of Men, be entitled to any authority which is not expressly derived from it.

Four: Political Liberty consists in the power of doing whatever does not Injure another. The exercise of the Natural Rights of every Man, has no other limits than those which are necessary to secure to every other Man the Free exercise of the same Rights; and these limits are determinable only by the Law.

Five: The Law ought to Prohibit only actions hurtful to Society. What is not Prohibited by the Law should not be hindered; nor should anyone be compelled to that which the Law does not Require.

Six: the Law is an expression of the Will of the Community. All Citizens have a right to concur, either personally or by their Representatives, in its formation. It Should be the same to all, whether it protects or punishes; and all being equal in its sight, are equally eligible to all Honours, Places, and employments, according to their different abilities, without any other distinction than that created by their Virtues and talents.

Seven: No Man should be accused, arrested, or held in confinement, except in cases determined by the Law, and according to the forms which it has prescribed. All who promote, solicit, execute, or cause to be executed, arbitrary orders, ought to be punished, and every Citizen called upon, or apprehended by virtue of the Law, ought immediately to obey, and renders himself culpable by resistance.

Eight: The Law ought to impose no other penalties but such as are absolutely and evidently necessary; and no one ought to be punished, but in virtue of a Law promulgated before the offence, and Legally applied.

Nine: Every Man being presumed innocent till he has been convicted, whenever his detention becomes indispensable, all rigour to him, more than is necessary to secure his person, ought to be provided against by the Law.

Ten: No Man ought to be molested on account of his opinions, not even on account of his Religious opinions, provided his avowal of them does not disturb the Public Order established by the Law.

Eleven: The unrestrained communication of thoughts and opinions being one of the Most Precious Rights of Man, every Citizen may speak, write, and publish freely, provided he is responsible for the abuse of this Liberty, in cases determined by the Law.

Twelve: A Public force being necessary to give security to the Rights of Men and of Citizens, that force is instituted for the benefit of the Community and not for the particular benefit of the persons to whom it is intrusted.

Thirteen: A common contribution being necessary for the support of the Public force, and for defraying the other expenses of Government, it ought to be divided equally among the Members of the Community, according to their abilities.

Fourteen: every Citizen has a Right, either by himself or his Representative, to a free voice in determining the necessity of Public Contributions, the appropriation of them, and their amount, mode of assessment, and duration.

Fifteen: every Community has a Right to demand of all its agents an account of their conduct.

Sixteen: every Community in which a Separation of Powers and a Security of Rights is not Provided for, wants a Constitution.

Seventeen: The Right to Property being inviolable and sacred, no one ought to be deprived of it, except in cases of evident Public necessity, legally ascertained, and on condition of a previous just Indemnity.

OBSERVATIONS ON THE DECLARATION OF RIGHTS

The first three articles comprehend in general terms the whole of a Declaration of Rights, all the succeeding articles either originate from them or follow as elucidations. The 4th, 5th, and 6th define more particularly what is only generally expressed in the 1st, 2nd, and 3rd.

The 7th, 8th, 9th, 10th, and 11th articles are declaratory of principles upon which laws shall be constructed, conformable to rights already declared. But it is questioned by some very good people in France, as well as in other countries, whether the 10th article sufficiently guarantees the right it is intended to accord with; besides which it takes off from the divine dignity of religion, and weakens its operative force upon the mind, to make it a subject of human laws. It then presents itself to man like light intercepted by a cloudy medium, in which the source of it is obscured from his sight, and he sees nothing to reverence in the dusky ray.*[10](#)

The remaining articles, beginning with the twelfth, are substantially contained in the principles of the preceding articles; but in the particular situation in which France then was, having to undo what was wrong, as well as to set up what was right, it was proper to be more particular than what in another condition of things would be necessary.

While the Declaration of Rights was before the National Assembly some of its members remarked that if a declaration of rights were published it should be accompanied by a Declaration of Duties. The observation discovered a mind that reflected, and it only erred by not reflecting far enough. A Declaration of Rights is, by reciprocity, a Declaration of Duties also. Whatever is my right as a man is also the right of another; and it becomes my duty to guarantee as well as to possess.

The three first articles are the base of Liberty, as well individual as national; nor can any country be called free whose government does not take its beginning from the principles they contain, and continue to preserve them pure; and the whole of the Declaration of Rights is of more value to

the world, and will do more good, than all the laws and statutes that have yet been promulgated.

In the declaratory exordium which prefaces the Declaration of Rights we see the solemn and majestic spectacle of a nation opening its commission, under the auspices of its Creator, to establish a Government, a scene so new, and so transcendantly unequalled by anything in the European world, that the name of a Revolution is diminutive of its character, and it rises into a Regeneration of man. What are the present Governments of Europe but a scene of iniquity and oppression? What is that of England? Do not its own inhabitants say it is a market where every man has his price, and where corruption is common traffic at the expense of a deluded people? No wonder, then, that the French Revolution is traduced. Had it confined itself merely to the destruction of flagrant despotism perhaps Mr. Burke and some others had been silent. Their cry now is, "It has gone too far"—that is, it has gone too far for them. It stares corruption in the face, and the venal tribe are all alarmed. Their fear discovers itself in their outrage, and they are but publishing the groans of a wounded vice. But from such opposition the French Revolution, instead of suffering, receives an homage. The more it is struck the more sparks it will emit; and the fear is it will not be struck enough. It has nothing to dread from attacks; truth has given it an establishment, and time will record it with a name as lasting as his own.

Having now traced the progress of the French Revolution through most of its principal stages, from its commencement to the taking of the Bastille, and its establishment by the Declaration of Rights, I will close the subject with the energetic apostrophe of M. de la Fayette, "May this great monument, raised to Liberty, serve as a lesson to the oppressor, and an example to the oppressed!"*[11](#)

MISCELLANEOUS CHAPTER

To prevent interrupting the argument in the preceding part of this work, or the narrative that follows it, I reserved some observations to be thrown together in a Miscellaneous Chapter; by which variety might not be censured for confusion. Mr. Burke's book is all Miscellany. His intention was to make an attack on the French Revolution; but instead of proceeding with an orderly arrangement, he has stormed it with a mob of ideas tumbling over and destroying one another.

But this confusion and contradiction in Mr. Burke's Book is easily accounted for.—When a man in a wrong cause attempts to steer his course by anything else than some polar truth or principle, he is sure to be lost. It is beyond the compass of his capacity to keep all the parts of an argument together, and make them unite in one issue, by any other means than having this guide always in view. Neither memory nor invention will supply the want of it. The former fails him, and the latter betrays him.

Notwithstanding the nonsense, for it deserves no better name, that Mr. Burke has asserted about hereditary rights, and hereditary succession, and that a Nation has not a right to form a Government of itself; it happened to fall in his way to give some account of what Government is. "Government," says he, "is a contrivance of human wisdom."

Admitting that government is a contrivance of human wisdom, it must necessarily follow, that hereditary succession, and hereditary rights (as they are called), can make no part of it, because it is impossible to make wisdom hereditary; and on the other hand, that cannot be a wise contrivance, which in its operation may commit the government of a nation to the wisdom of an idiot. The ground which Mr. Burke now takes is fatal to every part of his cause. The argument changes from hereditary rights to hereditary wisdom; and the question is, Who is the wisest man? He must now show that every one in the line of hereditary succession was a Solomon, or his title is not good to be a king. What a stroke has Mr. Burke now made! To use a sailor's phrase, he has swabbed the deck, and scarcely left a name legible in the list of Kings; and he has mowed down and thinned the House of Peers, with a scythe as formidable as Death and Time.

But Mr. Burke appears to have been aware of this retort; and he has taken care to guard against it, by making government to be not only a contrivance of human wisdom, but a monopoly of wisdom. He puts the nation as fools on one side, and places his government of wisdom, all wise men of Gotham, on the other side; and he then proclaims, and says that "Men have a Right that their Wants should be provided for by this wisdom." Having thus made proclamation, he next proceeds to explain to them what their wants are, and also what their rights are. In this he has succeeded dextrously, for he makes their wants to be a want of wisdom; but as this is cold comfort, he then informs them, that they have a right (not to any of the wisdom) but to be governed by it; and in order to impress them with a

solemn reverence for this monopoly-government of wisdom, and of its vast capacity for all purposes, possible or impossible, right or wrong, he proceeds with astrological mysterious importance, to tell to them its powers in these words: "The rights of men in government are their advantages; and these are often in balance between differences of good; and in compromises sometimes between good and evil, and sometimes between evil and evil. Political reason is a computing principle; adding—subtracting—multiplying—and dividing, morally and not metaphysically or mathematically, true moral denominations."

As the wondering audience, whom Mr. Burke supposes himself talking to, may not understand all this learned jargon, I will undertake to be its interpreter. The meaning, then, good people, of all this, is: That government is governed by no principle whatever; that it can make evil good, or good evil, just as it pleases. In short, that government is arbitrary power.

But there are some things which Mr. Burke has forgotten. First, he has not shown where the wisdom originally came from: and secondly, he has not shown by what authority it first began to act. In the manner he introduces the matter, it is either government stealing wisdom, or wisdom stealing government. It is without an origin, and its powers without authority. In short, it is usurpation.

Whether it be from a sense of shame, or from a consciousness of some radical defect in a government necessary to be kept out of sight, or from both, or from any other cause, I undertake not to determine, but so it is, that a monarchical reasoner never traces government to its source, or from its source. It is one of the shibboleths by which he may be known. A thousand years hence, those who shall live in America or France, will look back with contemplative pride on the origin of their government, and say, This was the work of our glorious ancestors! But what can a monarchical talker say? What has he to exult in? Alas he has nothing. A certain something forbids him to look back to a beginning, lest some robber, or some Robin Hood, should rise from the long obscurity of time and say, I am the origin. Hard as Mr. Burke laboured at the Regency Bill and Hereditary Succession two years ago, and much as he dived for precedents, he still had not boldness enough to bring up William of Normandy, and say, There is the head of the list! there is the fountain of honour! the son of a prostitute, and the plunderer of the English nation.

The opinions of men with respect to government are changing fast in all countries. The Revolutions of America and France have thrown a beam of light over the world, which reaches into man. The enormous expense of governments has provoked people to think, by making them feel; and when once the veil begins to rend, it admits not of repair. Ignorance is of a peculiar nature: once dispelled, it is impossible to re-establish it. It is not originally a thing of itself, but is only the absence of knowledge; and though man may be kept ignorant, he cannot be made ignorant. The mind, in discovering truth, acts in the same manner as it acts through the eye in discovering objects; when once any object has been seen, it is impossible to put the mind back to the same condition it was in before it saw it. Those who talk of a counter-revolution in France, show how little they understand of man. There does not exist in the compass of language an arrangement of words to express so much as the means of effecting a counter-revolution. The means must be an obliteration of knowledge; and it has never yet been discovered how to make man unknow his knowledge, or unthink his thoughts.

Mr. Burke is labouring in vain to stop the progress of knowledge; and it comes with the worse grace from him, as there is a certain transaction known in the city which renders him suspected of being a pensioner in a fictitious name. This may account for some strange doctrine he has advanced in his book, which though he points it at the Revolution Society, is effectually directed against the whole nation.

"The King of England," says he, "holds his crown (for it does not belong to the Nation, according to Mr. Burke) in contempt of the choice of the Revolution Society, who have not a single vote for a king among them either individually or collectively; and his Majesty's heirs each in their time and order, will come to the Crown with the same contempt of their choice, with which his Majesty has succeeded to that which he now wears."

As to who is King in England, or elsewhere, or whether there is any King at all, or whether the people choose a Cherokee chief, or a Hessian hussar for a King, it is not a matter that I trouble myself about—be that to themselves; but with respect to the doctrine, so far as it relates to the Rights of Men and Nations, it is as abominable as anything ever uttered in the most enslaved country under heaven. Whether it sounds worse to my ear, by not being accustomed to hear such despotism, than what it does to another

person, I am not so well a judge of; but of its abominable principle I am at no loss to judge.

It is not the Revolution Society that Mr. Burke means; it is the Nation, as well in its original as in its representative character; and he has taken care to make himself understood, by saying that they have not a vote either collectively or individually. The Revolution Society is composed of citizens of all denominations, and of members of both the Houses of Parliament; and consequently, if there is not a right to a vote in any of the characters, there can be no right to any either in the nation or in its Parliament. This ought to be a caution to every country how to import foreign families to be kings. It is somewhat curious to observe, that although the people of England had been in the habit of talking about kings, it is always a Foreign House of Kings; hating Foreigners yet governed by them.—It is now the House of Brunswick, one of the petty tribes of Germany.

It has hitherto been the practice of the English Parliaments to regulate what was called the succession (taking it for granted that the Nation then continued to accord to the form of annexing a monarchical branch of its government; for without this the Parliament could not have had authority to have sent either to Holland or to Hanover, or to impose a king upon the nation against its will). And this must be the utmost limit to which Parliament can go upon this case; but the right of the Nation goes to the whole case, because it has the right of changing its whole form of government. The right of a Parliament is only a right in trust, a right by delegation, and that but from a very small part of the Nation; and one of its Houses has not even this. But the right of the Nation is an original right, as universal as taxation. The nation is the paymaster of everything, and everything must conform to its general will.

I remember taking notice of a speech in what is called the English House of Peers, by the then Earl of Shelburne, and I think it was at the time he was Minister, which is applicable to this case. I do not directly charge my memory with every particular; but the words and the purport, as nearly as I remember, were these: "That the form of a Government was a matter wholly at the will of the Nation at all times, that if it chose a monarchical form, it had a right to have it so; and if it afterwards chose to be a Republic, it had a right to be a Republic, and to say to a King, 'We have no longer any occasion for you.'"

When Mr. Burke says that "His Majesty's heirs and successors, each in their time and order, will come to the crown with the same content of their choice with which His Majesty had succeeded to that he wears," it is saying too much even to the humblest individual in the country; part of whose daily labour goes towards making up the million sterling a-year, which the country gives the person it styles a king. Government with insolence is despotism; but when contempt is added it becomes worse; and to pay for contempt is the excess of slavery. This species of government comes from Germany; and reminds me of what one of the Brunswick soldiers told me, who was taken prisoner by, the Americans in the late war: "Ah!" said he, "America is a fine free country, it is worth the people's fighting for; I know the difference by knowing my own: in my country, if the prince says eat straw, we eat straw." God help that country, thought I, be it England or elsewhere, whose liberties are to be protected by German principles of government, and Princes of Brunswick!

As Mr. Burke sometimes speaks of England, sometimes of France, and sometimes of the world, and of government in general, it is difficult to answer his book without apparently meeting him on the same ground. Although principles of Government are general subjects, it is next to impossible, in many cases, to separate them from the idea of place and circumstance, and the more so when circumstances are put for arguments, which is frequently the case with Mr. Burke.

In the former part of his book, addressing himself to the people of France, he says: "No experience has taught us (meaning the English), that in any other course or method than that of a hereditary crown, can our liberties be regularly perpetuated and preserved sacred as our hereditary right." I ask Mr. Burke, who is to take them away? M. de la Fayette, in speaking to France, says: "For a Nation to be free, it is sufficient that she wills it." But Mr. Burke represents England as wanting capacity to take care of itself, and that its liberties must be taken care of by a King holding it in "contempt." If England is sunk to this, it is preparing itself to eat straw, as in Hanover, or in Brunswick. But besides the folly of the declaration, it happens that the facts are all against Mr. Burke. It was by the government being hereditary, that the liberties of the people were endangered. Charles I. and James II. are instances of this truth; yet neither of them went so far as to hold the Nation in contempt.

As it is sometimes of advantage to the people of one country to hear what those of other countries have to say respecting it, it is possible that the people of France may learn something from Mr. Burke's book, and that the people of England may also learn something from the answers it will occasion. When Nations fall out about freedom, a wide field of debate is opened. The argument commences with the rights of war, without its evils, and as knowledge is the object contended for, the party that sustains the defeat obtains the prize.

Mr. Burke talks about what he calls an hereditary crown, as if it were some production of Nature; or as if, like Time, it had a power to operate, not only independently, but in spite of man; or as if it were a thing or a subject universally consented to. Alas! it has none of those properties, but is the reverse of them all. It is a thing in imagination, the propriety of which is more than doubted, and the legality of which in a few years will be denied.

But, to arrange this matter in a clearer view than what general expression can heads under which (what is called) an hereditary crown, or more properly speaking, an hereditary succession to the Government of a Nation, can be considered; which are:

First, The right of a particular Family to establish itself.

Secondly, The right of a Nation to establish a particular Family.

With respect to the first of these heads, that of a Family establishing itself with hereditary powers on its own authority, and independent of the consent of a Nation, all men will concur in calling it despotism; and it would be trespassing on their understanding to attempt to prove it.

But the second head, that of a Nation establishing a particular Family with hereditary powers, does not present itself as despotism on the first reflection; but if men will permit it a second reflection to take place, and carry that reflection forward but one remove out of their own persons to that of their offspring, they will then see that hereditary succession becomes in its consequences the same despotism to others, which they reprobated for themselves. It operates to preclude the consent of the succeeding generations; and the preclusion of consent is despotism. When the person who at any time shall be in possession of a Government, or those who stand in succession to him, shall say to a Nation, I hold this power in "contempt" of you, it signifies not on what authority he pretends to say it. It is no relief, but an aggravation to a person in slavery, to reflect that he was sold by his

parent; and as that which heightens the criminality of an act cannot be produced to prove the legality of it, hereditary succession cannot be established as a legal thing.

In order to arrive at a more perfect decision on this head, it will be proper to consider the generation which undertakes to establish a Family with hereditary powers, apart and separate from the generations which are to follow; and also to consider the character in which the first generation acts with respect to succeeding generations.

The generation which first selects a person, and puts him at the head of its Government, either with the title of King, or any other distinction, acts on its own choice, be it wise or foolish, as a free agent for itself. The person so set up is not hereditary, but selected and appointed; and the generation who sets him up, does not live under a hereditary government, but under a government of its own choice and establishment. Were the generation who sets him up, and the person so set up, to live for ever, it never could become hereditary succession; and of consequence hereditary succession can only follow on the death of the first parties.

As, therefore, hereditary succession is out of the question with respect to the first generation, we have now to consider the character in which that generation acts with respect to the commencing generation, and to all succeeding ones.

It assumes a character, to which it has neither right nor title. It changes itself from a Legislator to a Testator, and effects to make its Will, which is to have operation after the demise of the makers, to bequeath the Government; and it not only attempts to bequeath, but to establish on the succeeding generation, a new and different form of Government under which itself lived. Itself, as already observed, lived not under a hereditary Government but under a Government of its own choice and establishment; and it now attempts, by virtue of a will and testament (and which it has not authority to make), to take from the commencing generation, and all future ones, the rights and free agency by which itself acted.

But, exclusive of the right which any generation has to act collectively as a testator, the objects to which it applies itself in this case, are not within the compass of any law, or of any will or testament.

The rights of men in society, are neither devisable or transferable, nor annihilable, but are descendable only, and it is not in the power of any

generation to intercept finally, and cut off the descent. If the present generation, or any other, are disposed to be slaves, it does not lessen the right of the succeeding generation to be free. Wrongs cannot have a legal descent. When Mr. Burke attempts to maintain that the English nation did at the Revolution of 1688, most solemnly renounce and abdicate their rights for themselves, and for all their posterity for ever, he speaks a language that merits not reply, and which can only excite contempt for his prostitute principles, or pity for his ignorance.

In whatever light hereditary succession, as growing out of the will and testament of some former generation, presents itself, it is an absurdity. A cannot make a will to take from B the property of B, and give it to C; yet this is the manner in which (what is called) hereditary succession by law operates. A certain former generation made a will, to take away the rights of the commencing generation, and all future ones, and convey those rights to a third person, who afterwards comes forward, and tells them, in Mr. Burke's language, that they have no rights, that their rights are already bequeathed to him and that he will govern in contempt of them. From such principles, and such ignorance, good Lord deliver the world!

But, after all, what is this metaphor called a crown, or rather what is monarchy? Is it a thing, or is it a name, or is it a fraud? Is it a "contrivance of human wisdom," or of human craft to obtain money from a nation under specious pretences? Is it a thing necessary to a nation? If it is, in what does that necessity consist, what service does it perform, what is its business, and what are its merits? Does the virtue consist in the metaphor, or in the man? Doth the goldsmith that makes the crown, make the virtue also? Doth it operate like Fortunatus's wishing-cap, or Harlequin's wooden sword? Doth it make a man a conjurer? In fine, what is it? It appears to be something going much out of fashion, falling into ridicule, and rejected in some countries, both as unnecessary and expensive. In America it is considered as an absurdity; and in France it has so far declined, that the goodness of the man, and the respect for his personal character, are the only things that preserve the appearance of its existence.

If government be what Mr. Burke describes it, "a contrivance of human wisdom" I might ask him, if wisdom was at such a low ebb in England, that it was become necessary to import it from Holland and from Hanover? But I will do the country the justice to say, that was not the case; and even if it

was it mistook the cargo. The wisdom of every country, when properly exerted, is sufficient for all its purposes; and there could exist no more real occasion in England to have sent for a Dutch Stadtholder, or a German Elector, than there was in America to have done a similar thing. If a country does not understand its own affairs, how is a foreigner to understand them, who knows neither its laws, its manners, nor its language? If there existed a man so transcendently wise above all others, that his wisdom was necessary to instruct a nation, some reason might be offered for monarchy; but when we cast our eyes about a country, and observe how every part understands its own affairs; and when we look around the world, and see that of all men in it, the race of kings are the most insignificant in capacity, our reason cannot fail to ask us—What are those men kept for?

If there is anything in monarchy which we people of America do not understand, I wish Mr. Burke would be so kind as to inform us. I see in America, a government extending over a country ten times as large as England, and conducted with regularity, for a fortieth part of the expense which Government costs in England. If I ask a man in America if he wants a King, he retorts, and asks me if I take him for an idiot? How is it that this difference happens? are we more or less wise than others? I see in America the generality of people living in a style of plenty unknown in monarchical countries; and I see that the principle of its government, which is that of the equal Rights of Man, is making a rapid progress in the world.

If monarchy is a useless thing, why is it kept up anywhere? and if a necessary thing, how can it be dispensed with? That civil government is necessary, all civilized nations will agree; but civil government is republican government. All that part of the government of England which begins with the office of constable, and proceeds through the department of magistrate, quarter-sessions, and general assize, including trial by jury, is republican government. Nothing of monarchy appears in any part of it, except in the name which William the Conqueror imposed upon the English, that of obliging them to call him "Their Sovereign Lord the King."

It is easy to conceive that a band of interested men, such as Placemen, Pensioners, Lords of the bed-chamber, Lords of the kitchen, Lords of the necessary-house, and the Lord knows what besides, can find as many reasons for monarchy as their salaries, paid at the expense of the country, amount to; but if I ask the farmer, the manufacturer, the merchant, the

tradesman, and down through all the occupations of life to the common labourer, what service monarchy is to him? he can give me no answer. If I ask him what monarchy is, he believes it is something like a sinecure.

Notwithstanding the taxes of England amount to almost seventeen millions a year, said to be for the expenses of Government, it is still evident that the sense of the Nation is left to govern itself, and does govern itself, by magistrates and juries, almost at its own charge, on republican principles, exclusive of the expense of taxes. The salaries of the judges are almost the only charge that is paid out of the revenue. Considering that all the internal government is executed by the people, the taxes of England ought to be the lightest of any nation in Europe; instead of which, they are the contrary. As this cannot be accounted for on the score of civil government, the subject necessarily extends itself to the monarchical part.

When the people of England sent for George the First (and it would puzzle a wiser man than Mr. Burke to discover for what he could be wanted, or what service he could render), they ought at least to have conditioned for the abandonment of Hanover. Besides the endless German intrigues that must follow from a German Elector being King of England, there is a natural impossibility of uniting in the same person the principles of Freedom and the principles of Despotism, or as it is usually called in England Arbitrary Power. A German Elector is in his electorate a despot; how then could it be expected that he should be attached to principles of liberty in one country, while his interest in another was to be supported by despotism? The union cannot exist; and it might easily have been foreseen that German Electors would make German Kings, or in Mr. Burke's words, would assume government with "contempt." The English have been in the habit of considering a King of England only in the character in which he appears to them; whereas the same person, while the connection lasts, has a home-seat in another country, the interest of which is different to their own, and the principles of the governments in opposition to each other. To such a person England will appear as a town-residence, and the Electorate as the estate. The English may wish, as I believe they do, success to the principles of liberty in France, or in Germany; but a German Elector trembles for the fate of despotism in his electorate; and the Duchy of Mecklenburgh, where the present Queen's family governs, is under the same wretched state of arbitrary power, and the people in slavish vassalage.

There never was a time when it became the English to watch continental intrigues more circumspectly than at the present moment, and to distinguish the politics of the Electorate from the politics of the Nation. The Revolution of France has entirely changed the ground with respect to England and France, as nations; but the German despots, with Prussia at their head, are combining against liberty; and the fondness of Mr. Pitt for office, and the interest which all his family connections have obtained, do not give sufficient security against this intrigue.

As everything which passes in the world becomes matter for history, I will now quit this subject, and take a concise review of the state of parties and politics in England, as Mr. Burke has done in France.

Whether the present reign commenced with contempt, I leave to Mr. Burke: certain, however, it is, that it had strongly that appearance. The animosity of the English nation, it is very well remembered, ran high; and, had the true principles of Liberty been as well understood then as they now promise to be, it is probable the Nation would not have patiently submitted to so much. George the First and Second were sensible of a rival in the remains of the Stuarts; and as they could not but consider themselves as standing on their good behaviour, they had prudence to keep their German principles of government to themselves; but as the Stuart family wore away, the prudence became less necessary.

The contest between rights, and what were called prerogatives, continued to heat the nation till some time after the conclusion of the American War, when all at once it fell a calm—Execration exchanged itself for applause, and Court popularity sprung up like a mushroom in a night.

To account for this sudden transition, it is proper to observe that there are two distinct species of popularity; the one excited by merit, and the other by resentment. As the Nation had formed itself into two parties, and each was extolling the merits of its parliamentary champions for and against prerogative, nothing could operate to give a more general shock than an immediate coalition of the champions themselves. The partisans of each being thus suddenly left in the lurch, and mutually heated with disgust at the measure, felt no other relief than uniting in a common execration against both. A higher stimulus or resentment being thus excited than what the contest on prerogatives occasioned, the nation quitted all former objects of rights and wrongs, and sought only that of gratification. The indignation

at the Coalition so effectually superseded the indignation against the Court as to extinguish it; and without any change of principles on the part of the Court, the same people who had reprobated its despotism united with it to revenge themselves on the Coalition Parliament. The case was not, which they liked best, but which they hated most; and the least hated passed for love. The dissolution of the Coalition Parliament, as it afforded the means of gratifying the resentment of the Nation, could not fail to be popular; and from hence arose the popularity of the Court.

Transitions of this kind exhibit a Nation under the government of temper, instead of a fixed and steady principle; and having once committed itself, however rashly, it feels itself urged along to justify by continuance its first proceeding. Measures which at other times it would censure it now approves, and acts persuasion upon itself to suffocate its judgment.

On the return of a new Parliament, the new Minister, Mr. Pitt, found himself in a secure majority; and the Nation gave him credit, not out of regard to himself, but because it had resolved to do it out of resentment to another. He introduced himself to public notice by a proposed Reform of Parliament, which in its operation would have amounted to a public justification of corruption. The Nation was to be at the expense of buying up the rotten boroughs, whereas it ought to punish the persons who deal in the traffic.

Passing over the two bubbles of the Dutch business and the million a-year to sink the national debt, the matter which most presents itself, is the affair of the Regency. Never, in the course of my observation, was delusion more successfully acted, nor a nation more completely deceived. But, to make this appear, it will be necessary to go over the circumstances.

Mr. Fox had stated in the House of Commons, that the Prince of Wales, as heir in succession, had a right in himself to assume the Government. This was opposed by Mr. Pitt; and, so far as the opposition was confined to the doctrine, it was just. But the principles which Mr. Pitt maintained on the contrary side were as bad, or worse in their extent, than those of Mr. Fox; because they went to establish an aristocracy over the nation, and over the small representation it has in the House of Commons.

Whether the English form of Government be good or bad, is not in this case the question; but, taking it as it stands, without regard to its merits or demerits, Mr. Pitt was farther from the point than Mr. Fox.

It is supposed to consist of three parts:—while therefore the Nation is disposed to continue this form, the parts have a national standing, independent of each other, and are not the creatures of each other. Had Mr. Fox passed through Parliament, and said that the person alluded to claimed on the ground of the Nation, Mr. Pitt must then have contended what he called the right of the Parliament against the right of the Nation.

By the appearance which the contest made, Mr. Fox took the hereditary ground, and Mr. Pitt the Parliamentary ground; but the fact is, they both took hereditary ground, and Mr. Pitt took the worst of the two.

What is called the Parliament is made up of two Houses, one of which is more hereditary, and more beyond the control of the Nation than what the Crown (as it is called) is supposed to be. It is an hereditary aristocracy, assuming and asserting indefeasible, irrevocable rights and authority, wholly independent of the Nation. Where, then, was the merited popularity of exalting this hereditary power over another hereditary power less independent of the Nation than what itself assumed to be, and of absorbing the rights of the Nation into a House over which it has neither election nor control?

The general impulse of the Nation was right; but it acted without reflection. It approved the opposition made to the right set up by Mr. Fox, without perceiving that Mr. Pitt was supporting another indefeasible right more remote from the Nation, in opposition to it.

With respect to the House of Commons, it is elected but by a small part of the Nation; but were the election as universal as taxation, which it ought to be, it would still be only the organ of the Nation, and cannot possess inherent rights.—When the National Assembly of France resolves a matter, the resolve is made in right of the Nation; but Mr. Pitt, on all national questions, so far as they refer to the House of Commons, absorbs the rights of the Nation into the organ, and makes the organ into a Nation, and the Nation itself into a cypher.

In a few words, the question on the Regency was a question of a million a-year, which is appropriated to the executive department: and Mr. Pitt could not possess himself of any management of this sum, without setting up the supremacy of Parliament; and when this was accomplished, it was indifferent who should be Regent, as he must be Regent at his own cost. Among the curiosities which this contentious debate afforded, was that of

making the Great Seal into a King, the affixing of which to an act was to be royal authority. If, therefore, Royal Authority is a Great Seal, it consequently is in itself nothing; and a good Constitution would be of infinitely more value to the Nation than what the three Nominal Powers, as they now stand, are worth.

The continual use of the word Constitution in the English Parliament shows there is none; and that the whole is merely a form of government without a Constitution, and constituting itself with what powers it pleases. If there were a Constitution, it certainly could be referred to; and the debate on any constitutional point would terminate by producing the Constitution. One member says this is Constitution, and another says that is Constitution—To-day it is one thing; and to-morrow something else—while the maintaining of the debate proves there is none. Constitution is now the cant word of Parliament, tuning itself to the ear of the Nation. Formerly it was the universal supremacy of Parliament—the omnipotence of Parliament: But since the progress of Liberty in France, those phrases have a despotic harshness in their note; and the English Parliament have caught the fashion from the National Assembly, but without the substance, of speaking of Constitution.

As the present generation of the people in England did not make the Government, they are not accountable for any of its defects; but, that sooner or later, it must come into their hands to undergo a constitutional reformation, is as certain as that the same thing has happened in France. If France, with a revenue of nearly twenty-four millions sterling, with an extent of rich and fertile country above four times larger than England, with a population of twenty-four millions of inhabitants to support taxation, with upwards of ninety millions sterling of gold and silver circulating in the nation, and with a debt less than the present debt of England—still found it necessary, from whatever cause, to come to a settlement of its affairs, it solves the problem of funding for both countries.

It is out of the question to say how long what is called the English constitution has lasted, and to argue from thence how long it is to last; the question is, how long can the funding system last? It is a thing but of modern invention, and has not yet continued beyond the life of a man; yet in that short space it has so far accumulated, that, together with the current expenses, it requires an amount of taxes at least equal to the whole landed

rental of the nation in acres to defray the annual expenditure. That a government could not have always gone on by the same system which has been followed for the last seventy years, must be evident to every man; and for the same reason it cannot always go on.

The funding system is not money; neither is it, properly speaking, credit. It, in effect, creates upon paper the sum which it appears to borrow, and lays on a tax to keep the imaginary capital alive by the payment of interest and sends the annuity to market, to be sold for paper already in circulation. If any credit is given, it is to the disposition of the people to pay the tax, and not to the government, which lays it on. When this disposition expires, what is supposed to be the credit of Government expires with it. The instance of France under the former Government shows that it is impossible to compel the payment of taxes by force, when a whole nation is determined to take its stand upon that ground.

Mr. Burke, in his review of the finances of France, states the quantity of gold and silver in France, at about eighty-eight millions sterling. In doing this, he has, I presume, divided by the difference of exchange, instead of the standard of twenty-four livres to a pound sterling; for M. Neckar's statement, from which Mr. Burke's is taken, is two thousand two hundred millions of livres, which is upwards of ninety-one millions and a half sterling.

M. Neckar in France, and Mr. George Chalmers at the Office of Trade and Plantation in England, of which Lord Hawkesbury is president, published nearly about the same time (1786) an account of the quantity of money in each nation, from the returns of the Mint of each nation. Mr. Chalmers, from the returns of the English Mint at the Tower of London, states the quantity of money in England, including Scotland and Ireland, to be twenty millions sterling.*[12](#)

M. Neckar*[13](#) says that the amount of money in France, recoined from the old coin which was called in, was two thousand five hundred millions of livres (upwards of one hundred and four millions sterling); and, after deducting for waste, and what may be in the West Indies and other possible circumstances, states the circulation quantity at home to be ninety-one millions and a half sterling; but, taking it as Mr. Burke has put it, it is sixty-eight millions more than the national quantity in England.

That the quantity of money in France cannot be under this sum, may at once be seen from the state of the French Revenue, without referring to the records of the French Mint for proofs. The revenue of France, prior to the Revolution, was nearly twenty-four millions sterling; and as paper had then no existence in France the whole revenue was collected upon gold and silver; and it would have been impossible to have collected such a quantity of revenue upon a less national quantity than M. Neckar has stated. Before the establishment of paper in England, the revenue was about a fourth part of the national amount of gold and silver, as may be known by referring to the revenue prior to King William, and the quantity of money stated to be in the nation at that time, which was nearly as much as it is now.

It can be of no real service to a nation, to impose upon itself, or to permit itself to be imposed upon; but the prejudices of some, and the imposition of others, have always represented France as a nation possessing but little money—whereas the quantity is not only more than four times what the quantity is in England, but is considerably greater on a proportion of numbers. To account for this deficiency on the part of England, some reference should be had to the English system of funding. It operates to multiply paper, and to substitute it in the room of money, in various shapes; and the more paper is multiplied, the more opportunities are offered to export the specie; and it admits of a possibility (by extending it to small notes) of increasing paper till there is no money left.

I know this is not a pleasant subject to English readers; but the matters I am going to mention, are so important in themselves, as to require the attention of men interested in money transactions of a public nature. There is a circumstance stated by M. Neckar, in his treatise on the administration of the finances, which has never been attended to in England, but which forms the only basis whereon to estimate the quantity of money (gold and silver) which ought to be in every nation in Europe, to preserve a relative proportion with other nations.

Lisbon and Cadiz are the two ports into which (money) gold and silver from South America are imported, and which afterwards divide and spread themselves over Europe by means of commerce, and increase the quantity of money in all parts of Europe. If, therefore, the amount of the annual importation into Europe can be known, and the relative proportion of the foreign commerce of the several nations by which it can be distributed can

be ascertained, they give a rule sufficiently true, to ascertain the quantity of money which ought to be found in any nation, at any given time.

M. Neckar shows from the registers of Lisbon and Cadiz, that the importation of gold and silver into Europe, is five millions sterling annually. He has not taken it on a single year, but on an average of fifteen succeeding years, from 1763 to 1777, both inclusive; in which time, the amount was one thousand eight hundred million livres, which is seventy-five millions sterling.*[14](#)

From the commencement of the Hanover succession in 1714 to the time Mr. Chalmers published, is seventy-two years; and the quantity imported into Europe, in that time, would be three hundred and sixty millions sterling.

If the foreign commerce of Great Britain be stated at a sixth part of what the whole foreign commerce of Europe amounts to (which is probably an inferior estimation to what the gentlemen at the Exchange would allow) the proportion which Britain should draw by commerce of this sum, to keep herself on a proportion with the rest of Europe, would be also a sixth part which is sixty millions sterling; and if the same allowance for waste and accident be made for England which M. Neckar makes for France, the quantity remaining after these deductions would be fifty-two millions; and this sum ought to have been in the nation (at the time Mr. Chalmers published), in addition to the sum which was in the nation at the commencement of the Hanover succession, and to have made in the whole at least sixty-six millions sterling; instead of which there were but twenty millions, which is forty-six millions below its proportionate quantity.

As the quantity of gold and silver imported into Lisbon and Cadiz is more exactly ascertained than that of any commodity imported into England, and as the quantity of money coined at the Tower of London is still more positively known, the leading facts do not admit of controversy. Either, therefore, the commerce of England is unproductive of profit, or the gold and silver which it brings in leak continually away by unseen means at the average rate of about three-quarters of a million a year, which, in the course of seventy-two years, accounts for the deficiency; and its absence is supplied by paper.*[15](#)

The Revolution of France is attended with many novel circumstances, not only in the political sphere, but in the circle of money transactions. Among

others, it shows that a government may be in a state of insolvency and a nation rich. So far as the fact is confined to the late Government of France, it was insolvent; because the nation would no longer support its extravagance, and therefore it could no longer support itself—but with respect to the nation all the means existed. A government may be said to be insolvent every time it applies to the nation to discharge its arrears. The insolvency of the late Government of France and the present of England differed in no other respect than as the dispositions of the people differ. The people of France refused their aid to the old Government; and the people of England submit to taxation without inquiry. What is called the Crown in England has been insolvent several times; the last of which, publicly known, was in May, 1777, when it applied to the nation to discharge upwards of L600,000 private debts, which otherwise it could not pay.

It was the error of Mr. Pitt, Mr. Burke, and all those who were unacquainted with the affairs of France to confound the French nation with the French Government. The French nation, in effect, endeavoured to render the late Government insolvent for the purpose of taking government into its own hands: and it reserved its means for the support of the new Government. In a country of such vast extent and population as France the natural means cannot be wanting, and the political means appear the instant the nation is disposed to permit them. When Mr. Burke, in a speech last winter in the British Parliament, "cast his eyes over the map of Europe, and saw a chasm that once was France," he talked like a dreamer of dreams. The same natural France existed as before, and all the natural means existed with it. The only chasm was that the extinction of despotism had left, and which was to be filled up with the Constitution more formidable in resources than the power which had expired.

Although the French Nation rendered the late Government insolvent, it did not permit the insolvency to act towards the creditors; and the creditors, considering the Nation as the real pay-master, and the Government only as the agent, rested themselves on the nation, in preference to the Government. This appears greatly to disturb Mr. Burke, as the precedent is fatal to the policy by which governments have supposed themselves secure. They have contracted debts, with a view of attaching what is called the monied interest of a Nation to their support; but the example in France shows that the permanent security of the creditor is in the Nation, and not in the Government; and that in all possible revolutions that may happen in

Governments, the means are always with the Nation, and the Nation always in existence. Mr. Burke argues that the creditors ought to have abided the fate of the Government which they trusted; but the National Assembly considered them as the creditors of the Nation, and not of the Government—of the master, and not of the steward.

Notwithstanding the late government could not discharge the current expenses, the present government has paid off a great part of the capital. This has been accomplished by two means; the one by lessening the expenses of government, and the other by the sale of the monastic and ecclesiastical landed estates. The devotees and penitent debauchees, extortioners and misers of former days, to ensure themselves a better world than that they were about to leave, had bequeathed immense property in trust to the priesthood for pious uses; and the priesthood kept it for themselves. The National Assembly has ordered it to be sold for the good of the whole nation, and the priesthood to be decently provided for.

In consequence of the revolution, the annual interest of the debt of France will be reduced at least six millions sterling, by paying off upwards of one hundred millions of the capital; which, with lessening the former expenses of government at least three millions, will place France in a situation worthy the imitation of Europe.

Upon a whole review of the subject, how vast is the contrast! While Mr. Burke has been talking of a general bankruptcy in France, the National Assembly has been paying off the capital of its debt; and while taxes have increased near a million a year in England, they have lowered several millions a year in France. Not a word has either Mr. Burke or Mr. Pitt said about the French affairs, or the state of the French finances, in the present Session of Parliament. The subject begins to be too well understood, and imposition serves no longer.

There is a general enigma running through the whole of Mr. Burke's book. He writes in a rage against the National Assembly; but what is he enraged about? If his assertions were as true as they are groundless, and that France by her Revolution, had annihilated her power, and become what he calls a chasm, it might excite the grief of a Frenchman (considering himself as a national man), and provoke his rage against the National Assembly; but why should it excite the rage of Mr. Burke? Alas! it is not the nation of France that Mr. Burke means, but the Court; and every Court in Europe,

dreading the same fate, is in mourning. He writes neither in the character of a Frenchman nor an Englishman, but in the fawning character of that creature known in all countries, and a friend to none—a courtier. Whether it be the Court of Versailles, or the Court of St. James, or Carlton-House, or the Court in expectation, signifies not; for the caterpillar principle of all Courts and Courtiers are alike. They form a common policy throughout Europe, detached and separate from the interest of Nations: and while they appear to quarrel, they agree to plunder. Nothing can be more terrible to a Court or Courtier than the Revolution of France. That which is a blessing to Nations is bitterness to them: and as their existence depends on the duplicity of a country, they tremble at the approach of principles, and dread the precedent that threatens their overthrow.

CONCLUSION

Reason and Ignorance, the opposites of each other, influence the great bulk of mankind. If either of these can be rendered sufficiently extensive in a country, the machinery of Government goes easily on. Reason obeys itself; and Ignorance submits to whatever is dictated to it.

The two modes of the Government which prevail in the world, are:

First, Government by election and representation.

Secondly, Government by hereditary succession.

The former is generally known by the name of republic; the latter by that of monarchy and aristocracy.

Those two distinct and opposite forms erect themselves on the two distinct and opposite bases of Reason and Ignorance.—As the exercise of Government requires talents and abilities, and as talents and abilities cannot have hereditary descent, it is evident that hereditary succession requires a belief from man to which his reason cannot subscribe, and which can only be established upon his ignorance; and the more ignorant any country is, the better it is fitted for this species of Government.

On the contrary, Government, in a well-constituted republic, requires no belief from man beyond what his reason can give. He sees the rationale of the whole system, its origin and its operation; and as it is best supported when best understood, the human faculties act with boldness, and acquire, under this form of government, a gigantic manliness.

As, therefore, each of those forms acts on a different base, the one moving freely by the aid of reason, the other by ignorance; we have next to consider, what it is that gives motion to that species of Government which is called mixed Government, or, as it is sometimes ludicrously styled, a Government of this, that and t' other.

The moving power in this species of Government is, of necessity, Corruption. However imperfect election and representation may be in mixed Governments, they still give exercise to a greater portion of reason than is convenient to the hereditary Part; and therefore it becomes necessary to buy the reason up. A mixed Government is an imperfect everything, cementing and soldering the discordant parts together by corruption, to act as a whole. Mr. Burke appears highly disgusted that France, since she had resolved on a revolution, did not adopt what he calls "A British Constitution"; and the regretful manner in which he expresses himself on this occasion implies a suspicion that the British Constitution needed something to keep its defects in countenance.

In mixed Governments there is no responsibility: the parts cover each other till responsibility is lost; and the corruption which moves the machine, contrives at the same time its own escape. When it is laid down as a maxim, that a King can do no wrong, it places him in a state of similar security with that of idiots and persons insane, and responsibility is out of the question with respect to himself. It then descends upon the Minister, who shelters himself under a majority in Parliament, which, by places, pensions, and corruption, he can always command; and that majority justifies itself by the same authority with which it protects the Minister. In this rotatory motion, responsibility is thrown off from the parts, and from the whole.

When there is a Part in a Government which can do no wrong, it implies that it does nothing; and is only the machine of another power, by whose advice and direction it acts. What is supposed to be the King in the mixed Governments, is the Cabinet; and as the Cabinet is always a part of the Parliament, and the members justifying in one character what they advise and act in another, a mixed Government becomes a continual enigma; entailing upon a country by the quantity of corruption necessary to solder the parts, the expense of supporting all the forms of government at once, and finally resolving itself into a Government by Committee; in which the

advisers, the actors, the approvers, the justifiers, the persons responsible, and the persons not responsible, are the same persons.

By this pantomimical contrivance, and change of scene and character, the parts help each other out in matters which neither of them singly would assume to act. When money is to be obtained, the mass of variety apparently dissolves, and a profusion of parliamentary praises passes between the parts. Each admires with astonishment, the wisdom, the liberality, the disinterestedness of the other: and all of them breathe a pitying sigh at the burthens of the Nation.

But in a well-constituted republic, nothing of this soldering, praising, and pitying, can take place; the representation being equal throughout the country, and complete in itself, however it may be arranged into legislative and executive, they have all one and the same natural source. The parts are not foreigners to each other, like democracy, aristocracy, and monarchy. As there are no discordant distinctions, there is nothing to corrupt by compromise, nor confound by contrivance. Public measures appeal of themselves to the understanding of the Nation, and, resting on their own merits, disown any flattering applications to vanity. The continual whine of lamenting the burden of taxes, however successfully it may be practised in mixed Governments, is inconsistent with the sense and spirit of a republic. If taxes are necessary, they are of course advantageous; but if they require an apology, the apology itself implies an impeachment. Why, then, is man thus imposed upon, or why does he impose upon himself?

When men are spoken of as kings and subjects, or when Government is mentioned under the distinct and combined heads of monarchy, aristocracy, and democracy, what is it that reasoning man is to understand by the terms? If there really existed in the world two or more distinct and separate elements of human power, we should then see the several origins to which those terms would descriptively apply; but as there is but one species of man, there can be but one element of human power; and that element is man himself. Monarchy, aristocracy, and democracy, are but creatures of imagination; and a thousand such may be contrived as well as three.

From the Revolutions of America and France, and the symptoms that have appeared in other countries, it is evident that the opinion of the world is changing with respect to systems of Government, and that revolutions are not within the compass of political calculations. The progress of time and

circumstances, which men assign to the accomplishment of great changes, is too mechanical to measure the force of the mind, and the rapidity of reflection, by which revolutions are generated: All the old governments have received a shock from those that already appear, and which were once more improbable, and are a greater subject of wonder, than a general revolution in Europe would be now.

When we survey the wretched condition of man, under the monarchical and hereditary systems of Government, dragged from his home by one power, or driven by another, and impoverished by taxes more than by enemies, it becomes evident that those systems are bad, and that a general revolution in the principle and construction of Governments is necessary.

What is government more than the management of the affairs of a Nation? It is not, and from its nature cannot be, the property of any particular man or family, but of the whole community, at whose expense it is supported; and though by force and contrivance it has been usurped into an inheritance, the usurpation cannot alter the right of things. Sovereignty, as a matter of right, appertains to the Nation only, and not to any individual; and a Nation has at all times an inherent indefeasible right to abolish any form of Government it finds inconvenient, and to establish such as accords with its interest, disposition and happiness. The romantic and barbarous distinction of men into Kings and subjects, though it may suit the condition of courtiers, cannot that of citizens; and is exploded by the principle upon which Governments are now founded. Every citizen is a member of the Sovereignty, and, as such, can acknowledge no personal subjection; and his obedience can be only to the laws.

When men think of what Government is, they must necessarily suppose it to possess a knowledge of all the objects and matters upon which its authority is to be exercised. In this view of Government, the republican system, as established by America and France, operates to embrace the whole of a Nation; and the knowledge necessary to the interest of all the parts, is to be found in the center, which the parts by representation form: But the old Governments are on a construction that excludes knowledge as well as happiness; government by Monks, who knew nothing of the world beyond the walls of a Convent, is as consistent as government by Kings.

What were formerly called Revolutions, were little more than a change of persons, or an alteration of local circumstances. They rose and fell like

things of course, and had nothing in their existence or their fate that could influence beyond the spot that produced them. But what we now see in the world, from the Revolutions of America and France, are a renovation of the natural order of things, a system of principles as universal as truth and the existence of man, and combining moral with political happiness and national prosperity.

"I. Men are born, and always continue, free and equal in respect of their rights. Civil distinctions, therefore, can be founded only on public utility.

"II. The end of all political associations is the preservation of the natural and imprescriptible rights of man; and these rights are liberty, property, security, and resistance of oppression.

"III. The nation is essentially the source of all sovereignty; nor can any Individual, or Any Body Of Men, be entitled to any authority which is not expressly derived from it."

In these principles, there is nothing to throw a Nation into confusion by inflaming ambition. They are calculated to call forth wisdom and abilities, and to exercise them for the public good, and not for the emolument or aggrandisement of particular descriptions of men or families. Monarchical sovereignty, the enemy of mankind, and the source of misery, is abolished; and the sovereignty itself is restored to its natural and original place, the Nation. Were this the case throughout Europe, the cause of wars would be taken away.

It is attributed to Henry the Fourth of France, a man of enlarged and benevolent heart, that he proposed, about the year 1610, a plan for abolishing war in Europe. The plan consisted in constituting an European Congress, or as the French authors style it, a Pacific Republic; by appointing delegates from the several Nations who were to act as a Court of arbitration in any disputes that might arise between nation and nation.

Had such a plan been adopted at the time it was proposed, the taxes of England and France, as two of the parties, would have been at least ten millions sterling annually to each Nation less than they were at the commencement of the French Revolution.

To conceive a cause why such a plan has not been adopted (and that instead of a Congress for the purpose of preventing war, it has been called only to terminate a war, after a fruitless expense of several years) it will be

necessary to consider the interest of Governments as a distinct interest to that of Nations.

Whatever is the cause of taxes to a Nation, becomes also the means of revenue to Government. Every war terminates with an addition of taxes, and consequently with an addition of revenue; and in any event of war, in the manner they are now commenced and concluded, the power and interest of Governments are increased. War, therefore, from its productiveness, as it easily furnishes the pretence of necessity for taxes and appointments to places and offices, becomes a principal part of the system of old Governments; and to establish any mode to abolish war, however advantageous it might be to Nations, would be to take from such Government the most lucrative of its branches. The frivolous matters upon which war is made, show the disposition and avidity of Governments to uphold the system of war, and betray the motives upon which they act.

Why are not Republics plunged into war, but because the nature of their Government does not admit of an interest distinct from that of the Nation? Even Holland, though an ill-constructed Republic, and with a commerce extending over the world, existed nearly a century without war: and the instant the form of Government was changed in France, the republican principles of peace and domestic prosperity and economy arose with the new Government; and the same consequences would follow the cause in other Nations.

As war is the system of Government on the old construction, the animosity which Nations reciprocally entertain, is nothing more than what the policy of their Governments excites to keep up the spirit of the system. Each Government accuses the other of perfidy, intrigue, and ambition, as a means of heating the imagination of their respective Nations, and incensing them to hostilities. Man is not the enemy of man, but through the medium of a false system of Government. Instead, therefore, of exclaiming against the ambition of Kings, the exclamation should be directed against the principle of such Governments; and instead of seeking to reform the individual, the wisdom of a Nation should apply itself to reform the system.

Whether the forms and maxims of Governments which are still in practice, were adapted to the condition of the world at the period they were established, is not in this case the question. The older they are, the less correspondence can they have with the present state of things. Time, and

change of circumstances and opinions, have the same progressive effect in rendering modes of Government obsolete as they have upon customs and manners.—Agriculture, commerce, manufactures, and the tranquil arts, by which the prosperity of Nations is best promoted, require a different system of Government, and a different species of knowledge to direct its operations, than what might have been required in the former condition of the world.

As it is not difficult to perceive, from the enlightened state of mankind, that hereditary Governments are verging to their decline, and that Revolutions on the broad basis of national sovereignty and Government by representation, are making their way in Europe, it would be an act of wisdom to anticipate their approach, and produce Revolutions by reason and accommodation, rather than commit them to the issue of convulsions.

From what we now see, nothing of reform in the political world ought to be held improbable. It is an age of Revolutions, in which everything may be looked for. The intrigue of Courts, by which the system of war is kept up, may provoke a confederation of Nations to abolish it: and an European Congress to patronise the progress of free Government, and promote the civilisation of Nations with each other, is an event nearer in probability, than once were the revolutions and alliance of France and America.

END OF PART I.

**RIGHTS OF MAN. PART SECOND,
COMBINING PRINCIPLE AND PRACTICE.**

By Thomas Paine.

FRENCH TRANSLATOR'S PREFACE.

(1792)

THE work of which we offer a translation to the public has created the greatest sensation in England. Paine, that man of freedom, who seems born to preach "Common Sense" to the whole world with the same success as in America, explains in it to the people of England the theory of the practice of the Rights of Man.

Owing to the prejudices that still govern that nation, the author has been obliged to condescend to answer Mr. Burke. He has done so more especially in an extended preface which is nothing but a piece of very tedious controversy, in which he shows himself very sensitive to criticisms that do not really affect him. To translate it seemed an insult to the free French people, and similar reasons have led the editors to suppress also a dedicatory epistle addressed by Paine to Lafayette.

The French can no longer endure dedicatory epistles. A man should write privately to those he esteems: when he publishes a book his thoughts should be offered to the public alone. Paine, that uncorrupted friend of freedom, believed too in the sincerity of Lafayette. So easy is it to deceive men of single-minded purpose! Bred at a distance from courts, that austere American does not seem any more on his guard against the artful ways and speech of courtiers than some Frenchmen who resemble him.

TO

M. DE LA FAYETTE

After an acquaintance of nearly fifteen years in difficult situations in America, and various consultations in Europe, I feel a pleasure in presenting to you this small treatise, in gratitude for your services to my beloved America, and as a testimony of my esteem for the virtues, public and private, which I know you to possess.

The only point upon which I could ever discover that we differed was not as to principles of government, but as to time. For my own part I think it

equally as injurious to good principles to permit them to linger, as to push them on too fast. That which you suppose accomplishable in fourteen or fifteen years, I may believe practicable in a much shorter period. Mankind, as it appears to me, are always ripe enough to understand their true interest, provided it be presented clearly to their understanding, and that in a manner not to create suspicion by anything like self-design, nor offend by assuming too much. Where we would wish to reform we must not reproach.

When the American revolution was established I felt a disposition to sit serenely down and enjoy the calm. It did not appear to me that any object could afterwards arise great enough to make me quit tranquility and feel as I had felt before. But when principle, and not place, is the energetic cause of action, a man, I find, is everywhere the same.

I am now once more in the public world; and as I have not a right to contemplate on so many years of remaining life as you have, I have resolved to labour as fast as I can; and as I am anxious for your aid and your company, I wish you to hasten your principles and overtake me.

If you make a campaign the ensuing spring, which it is most probable there will be no occasion for, I will come and join you. Should the campaign commence, I hope it will terminate in the extinction of German despotism, and in establishing the freedom of all Germany. When France shall be surrounded with revolutions she will be in peace and safety, and her taxes, as well as those of Germany, will consequently become less.

Your sincere,

Affectionate Friend,

Thomas Paine

London, Feb. 9, 1792

PREFACE

When I began the chapter entitled the "Conclusion" in the former part of the RIGHTS OF MAN, published last year, it was my intention to have extended it to a greater length; but in casting the whole matter in my mind, which I wish to add, I found that it must either make the work too bulky, or contract my plan too much. I therefore brought it to a close as soon as the subject would admit, and reserved what I had further to say to another opportunity.

Several other reasons contributed to produce this determination. I wished to know the manner in which a work, written in a style of thinking and expression different to what had been customary in England, would be received before I proceeded farther. A great field was opening to the view of mankind by means of the French Revolution. Mr. Burke's outrageous opposition thereto brought the controversy into England. He attacked principles which he knew (from information) I would contest with him, because they are principles I believe to be good, and which I have contributed to establish, and conceive myself bound to defend. Had he not urged the controversy, I had most probably been a silent man.

Another reason for deferring the remainder of the work was, that Mr. Burke promised in his first publication to renew the subject at another opportunity, and to make a comparison of what he called the English and French Constitutions. I therefore held myself in reserve for him. He has published two works since, without doing this: which he certainly would not have omitted, had the comparison been in his favour.

In his last work, his "Appeal from the New to the Old Whigs," he has quoted about ten pages from the RIGHTS OF MAN, and having given himself the trouble of doing this, says he "shall not attempt in the smallest degree to refute them," meaning the principles therein contained. I am enough acquainted with Mr. Burke to know that he would if he could. But instead of contesting them, he immediately after consoles himself with saying that "he has done his part."—He has not done his part. He has not performed his promise of a comparison of constitutions. He started the

controversy, he gave the challenge, and has fled from it; and he is now a case in point with his own opinion that "the age of chivalry is gone!"

The title, as well as the substance of his last work, his "Appeal," is his condemnation. Principles must stand on their own merits, and if they are good they certainly will. To put them under the shelter of other men's authority, as Mr. Burke has done, serves to bring them into suspicion. Mr. Burke is not very fond of dividing his honours, but in this case he is artfully dividing the disgrace.

But who are those to whom Mr. Burke has made his appeal? A set of childish thinkers, and half-way politicians born in the last century, men who went no farther with any principle than as it suited their purposes as a party; the nation was always left out of the question; and this has been the character of every party from that day to this. The nation sees nothing of such works, or such politics, worthy its attention. A little matter will move a party, but it must be something great that moves a nation.

Though I see nothing in Mr. Burke's "Appeal" worth taking much notice of, there is, however, one expression upon which I shall offer a few remarks. After quoting largely from the RIGHTS OF MAN, and declining to contest the principles contained in that work, he says: "This will most probably be done (if such writings shall be thought to deserve any other refutation than that of criminal justice) by others, who may think with Mr. Burke and with the same zeal."

In the first place, it has not yet been done by anybody. Not less, I believe, than eight or ten pamphlets intended as answers to the former part of the RIGHTS OF MAN have been published by different persons, and not one of them to my knowledge, has extended to a second edition, nor are even the titles of them so much as generally remembered. As I am averse to unnecessary multiplying publications, I have answered none of them. And as I believe that a man may write himself out of reputation when nobody else can do it, I am careful to avoid that rock.

But as I would decline unnecessary publications on the one hand, so would I avoid everything that might appear like sullen pride on the other. If Mr. Burke, or any person on his side the question, will produce an answer to the RIGHTS OF MAN that shall extend to a half, or even to a fourth part of the number of copies to which the Rights Of Man extended, I will reply to his work. But until this be done, I shall so far take the sense of the public

for my guide (and the world knows I am not a flatterer) that what they do not think worth while to read, is not worth mine to answer. I suppose the number of copies to which the first part of the RIGHTS OF MAN extended, taking England, Scotland, and Ireland, is not less than between forty and fifty thousand.

I now come to remark on the remaining part of the quotation I have made from Mr. Burke.

"If," says he, "such writings shall be thought to deserve any other refutation than that of criminal justice."

Pardoning the pun, it must be criminal justice indeed that should condemn a work as a substitute for not being able to refute it. The greatest condemnation that could be passed upon it would be a refutation. But in proceeding by the method Mr. Burke alludes to, the condemnation would, in the final event, pass upon the criminality of the process and not upon the work, and in this case, I had rather be the author, than be either the judge or the jury that should condemn it.

But to come at once to the point. I have differed from some professional gentlemen on the subject of prosecutions, and I since find they are falling into my opinion, which I will here state as fully, but as concisely as I can.

I will first put a case with respect to any law, and then compare it with a government, or with what in England is, or has been, called a constitution.

It would be an act of despotism, or what in England is called arbitrary power, to make a law to prohibit investigating the principles, good or bad, on which such a law, or any other is founded.

If a law be bad it is one thing to oppose the practice of it, but it is quite a different thing to expose its errors, to reason on its defects, and to show cause why it should be repealed, or why another ought to be substituted in its place. I have always held it an opinion (making it also my practice) that it is better to obey a bad law, making use at the same time of every argument to show its errors and procure its repeal, than forcibly to violate it; because the precedent of breaking a bad law might weaken the force, and lead to a discretionary violation, of those which are good.

The case is the same with respect to principles and forms of government, or to what are called constitutions and the parts of which they are, composed.

It is for the good of nations and not for the emolument or aggrandisement of particular individuals, that government ought to be established, and that mankind are at the expense of supporting it. The defects of every government and constitution both as to principle and form, must, on a parity of reasoning, be as open to discussion as the defects of a law, and it is a duty which every man owes to society to point them out. When those defects, and the means of remedying them, are generally seen by a nation, that nation will reform its government or its constitution in the one case, as the government repealed or reformed the law in the other. The operation of government is restricted to the making and the administering of laws; but it is to a nation that the right of forming or reforming, generating or regenerating constitutions and governments belong; and consequently those subjects, as subjects of investigation, are always before a country as a matter of right, and cannot, without invading the general rights of that country, be made subjects for prosecution. On this ground I will meet Mr. Burke whenever he please. It is better that the whole argument should come out than to seek to stifle it. It was himself that opened the controversy, and he ought not to desert it.

I do not believe that monarchy and aristocracy will continue seven years longer in any of the enlightened countries in Europe. If better reasons can be shown for them than against them, they will stand; if the contrary, they will not. Mankind are not now to be told they shall not think, or they shall not read; and publications that go no farther than to investigate principles of government, to invite men to reason and to reflect, and to show the errors and excellences of different systems, have a right to appear. If they do not excite attention, they are not worth the trouble of a prosecution; and if they do, the prosecution will amount to nothing, since it cannot amount to a prohibition of reading. This would be a sentence on the public, instead of the author, and would also be the most effectual mode of making or hastening revolution.

On all cases that apply universally to a nation, with respect to systems of government, a jury of twelve men is not competent to decide. Where there are no witnesses to be examined, no facts to be proved, and where the whole matter is before the whole public, and the merits or demerits of it resting on their opinion; and where there is nothing to be known in a court, but what every body knows out of it, every twelve men is equally as good a jury as the other, and would most probably reverse each other's verdict; or,

from the variety of their opinions, not be able to form one. It is one case, whether a nation approve a work, or a plan; but it is quite another case, whether it will commit to any such jury the power of determining whether that nation have a right to, or shall reform its government or not. I mention those cases that Mr. Burke may see I have not written on Government without reflecting on what is Law, as well as on what are Rights.—The only effectual jury in such cases would be a convention of the whole nation fairly elected; for in all such cases the whole nation is the vicinage. If Mr. Burke will propose such a jury, I will waive all privileges of being the citizen of another country, and, defending its principles, abide the issue, provided he will do the same; for my opinion is, that his work and his principles would be condemned instead of mine.

As to the prejudices which men have from education and habit, in favour of any particular form or system of government, those prejudices have yet to stand the test of reason and reflection. In fact, such prejudices are nothing. No man is prejudiced in favour of a thing, knowing it to be wrong. He is attached to it on the belief of its being right; and when he sees it is not so, the prejudice will be gone. We have but a defective idea of what prejudice is. It might be said, that until men think for themselves the whole is prejudice, and not opinion; for that only is opinion which is the result of reason and reflection. I offer this remark, that Mr. Burke may not confide too much in what have been the customary prejudices of the country.

I do not believe that the people of England have ever been fairly and candidly dealt by. They have been imposed upon by parties, and by men assuming the character of leaders. It is time that the nation should rise above those trifles. It is time to dismiss that inattention which has so long been the encouraging cause of stretching taxation to excess. It is time to dismiss all those songs and toasts which are calculated to enslave, and operate to suffocate reflection. On all such subjects men have but to think, and they will neither act wrong nor be misled. To say that any people are not fit for freedom, is to make poverty their choice, and to say they had rather be loaded with taxes than not. If such a case could be proved, it would equally prove that those who govern are not fit to govern them, for they are a part of the same national mass.

But admitting governments to be changed all over Europe; it certainly may be done without convulsion or revenge. It is not worth making changes

or revolutions, unless it be for some great national benefit: and when this shall appear to a nation, the danger will be, as in America and France, to those who oppose; and with this reflection I close my Preface.

THOMAS PAINE

London, Feb. 9, 1792

RIGHTS OF MAN PART II.

INTRODUCTION.

What Archimedes said of the mechanical powers, may be applied to Reason and Liberty. "Had we," said he, "a place to stand upon, we might raise the world."

The revolution of America presented in politics what was only theory in mechanics. So deeply rooted were all the governments of the old world, and so effectually had the tyranny and the antiquity of habit established itself over the mind, that no beginning could be made in Asia, Africa, or Europe, to reform the political condition of man. Freedom had been hunted round the globe; reason was considered as rebellion; and the slavery of fear had made men afraid to think.

But such is the irresistible nature of truth, that all it asks,—and all it wants,—is the liberty of appearing. The sun needs no inscription to distinguish him from darkness; and no sooner did the American governments display themselves to the world, than despotism felt a shock and man began to contemplate redress.

The independence of America, considered merely as a separation from England, would have been a matter but of little importance, had it not been accompanied by a revolution in the principles and practice of governments. She made a stand, not for herself only, but for the world, and looked beyond the advantages herself could receive. Even the Hessian, though hired to fight against her, may live to bless his defeat; and England, condemning the viciousness of its government, rejoice in its miscarriage.

As America was the only spot in the political world where the principle of universal reformation could begin, so also was it the best in the natural world. An assemblage of circumstances conspired, not only to give birth, but to add gigantic maturity to its principles. The scene which that country presents to the eye of a spectator, has something in it which generates and encourages great ideas. Nature appears to him in magnitude. The mighty objects he beholds, act upon his mind by enlarging it, and he partakes of the greatness he contemplates.—Its first settlers were emigrants from different European nations, and of diversified professions of religion, retiring from

the governmental persecutions of the old world, and meeting in the new, not as enemies, but as brothers. The wants which necessarily accompany the cultivation of a wilderness produced among them a state of society, which countries long harassed by the quarrels and intrigues of governments, had neglected to cherish. In such a situation man becomes what he ought. He sees his species, not with the inhuman idea of a natural enemy, but as kindred; and the example shows to the artificial world, that man must go back to Nature for information.

From the rapid progress which America makes in every species of improvement, it is rational to conclude that, if the governments of Asia, Africa, and Europe had begun on a principle similar to that of America, or had not been very early corrupted therefrom, those countries must by this time have been in a far superior condition to what they are. Age after age has passed away, for no other purpose than to behold their wretchedness. Could we suppose a spectator who knew nothing of the world, and who was put into it merely to make his observations, he would take a great part of the old world to be new, just struggling with the difficulties and hardships of an infant settlement. He could not suppose that the hordes of miserable poor with which old countries abound could be any other than those who had not yet had time to provide for themselves. Little would he think they were the consequence of what in such countries they call government.

If, from the more wretched parts of the old world, we look at those which are in an advanced stage of improvement we still find the greedy hand of government thrusting itself into every corner and crevice of industry, and grasping the spoil of the multitude. Invention is continually exercised to furnish new pretences for revenue and taxation. It watches prosperity as its prey, and permits none to escape without a tribute.

As revolutions have begun (and as the probability is always greater against a thing beginning, than of proceeding after it has begun), it is natural to expect that other revolutions will follow. The amazing and still increasing expenses with which old governments are conducted, the numerous wars they engage in or provoke, the embarrassments they throw in the way of universal civilisation and commerce, and the oppression and usurpation acted at home, have wearied out the patience, and exhausted the property of the world. In such a situation, and with such examples already

existing, revolutions are to be looked for. They are become subjects of universal conversation, and may be considered as the Order of the day.

If systems of government can be introduced less expensive and more productive of general happiness than those which have existed, all attempts to oppose their progress will in the end be fruitless. Reason, like time, will make its own way, and prejudice will fall in a combat with interest. If universal peace, civilisation, and commerce are ever to be the happy lot of man, it cannot be accomplished but by a revolution in the system of governments. All the monarchical governments are military. War is their trade, plunder and revenue their objects. While such governments continue, peace has not the absolute security of a day. What is the history of all monarchical governments but a disgusting picture of human wretchedness, and the accidental respite of a few years' repose? Wearied with war, and tired with human butchery, they sat down to rest, and called it peace. This certainly is not the condition that heaven intended for man; and if this be monarchy, well might monarchy be reckoned among the sins of the Jews.

The revolutions which formerly took place in the world had nothing in them that interested the bulk of mankind. They extended only to a change of persons and measures, but not of principles, and rose or fell among the common transactions of the moment. What we now behold may not improperly be called a "counter-revolution." Conquest and tyranny, at some earlier period, dispossessed man of his rights, and he is now recovering them. And as the tide of all human affairs has its ebb and flow in directions contrary to each other, so also is it in this. Government founded on a moral theory, on a system of universal peace, on the indefeasible hereditary Rights of Man, is now revolving from west to east by a stronger impulse than the government of the sword revolved from east to west. It interests not particular individuals, but nations in its progress, and promises a new era to the human race.

The danger to which the success of revolutions is most exposed is that of attempting them before the principles on which they proceed, and the advantages to result from them, are sufficiently seen and understood. Almost everything appertaining to the circumstances of a nation, has been absorbed and confounded under the general and mysterious word government. Though it avoids taking to its account the errors it commits, and the mischiefs it occasions, it fails not to arrogate to itself whatever has

the appearance of prosperity. It robs industry of its honours, by pedantically making itself the cause of its effects; and purloins from the general character of man, the merits that appertain to him as a social being.

It may therefore be of use in this day of revolutions to discriminate between those things which are the effect of government, and those which are not. This will best be done by taking a review of society and civilisation, and the consequences resulting therefrom, as things distinct from what are called governments. By beginning with this investigation, we shall be able to assign effects to their proper causes and analyse the mass of common errors.

CHAPTER I. OF SOCIETY AND CIVILISATION

Great part of that order which reigns among mankind is not the effect of government. It has its origin in the principles of society and the natural constitution of man. It existed prior to government, and would exist if the formality of government was abolished. The mutual dependence and reciprocal interest which man has upon man, and all the parts of civilised community upon each other, create that great chain of connection which holds it together. The landholder, the farmer, the manufacturer, the merchant, the tradesman, and every occupation, prospers by the aid which each receives from the other, and from the whole. Common interest regulates their concerns, and forms their law; and the laws which common usage ordains, have a greater influence than the laws of government. In fine, society performs for itself almost everything which is ascribed to government.

To understand the nature and quantity of government proper for man, it is necessary to attend to his character. As Nature created him for social life, she fitted him for the station she intended. In all cases she made his natural wants greater than his individual powers. No one man is capable, without the aid of society, of supplying his own wants, and those wants, acting upon every individual, impel the whole of them into society, as naturally as gravitation acts to a centre.

But she has gone further. She has not only forced man into society by a diversity of wants which the reciprocal aid of each other can supply, but she has implanted in him a system of social affections, which, though not necessary to his existence, are essential to his happiness. There is no period in life when this love for society ceases to act. It begins and ends with our being.

If we examine with attention into the composition and constitution of man, the diversity of his wants, and the diversity of talents in different men for reciprocally accommodating the wants of each other, his propensity to society, and consequently to preserve the advantages resulting from it, we

shall easily discover, that a great part of what is called government is mere imposition.

Government is no farther necessary than to supply the few cases to which society and civilisation are not conveniently competent; and instances are not wanting to show, that everything which government can usefully add thereto, has been performed by the common consent of society, without government.

For upwards of two years from the commencement of the American War, and to a longer period in several of the American States, there were no established forms of government. The old governments had been abolished, and the country was too much occupied in defence to employ its attention in establishing new governments; yet during this interval order and harmony were preserved as inviolate as in any country in Europe. There is a natural aptness in man, and more so in society, because it embraces a greater variety of abilities and resource, to accommodate itself to whatever situation it is in. The instant formal government is abolished, society begins to act: a general association takes place, and common interest produces common security.

So far is it from being true, as has been pretended, that the abolition of any formal government is the dissolution of society, that it acts by a contrary impulse, and brings the latter the closer together. All that part of its organisation which it had committed to its government, devolves again upon itself, and acts through its medium. When men, as well from natural instinct as from reciprocal benefits, have habituated themselves to social and civilised life, there is always enough of its principles in practice to carry them through any changes they may find necessary or convenient to make in their government. In short, man is so naturally a creature of society that it is almost impossible to put him out of it.

Formal government makes but a small part of civilised life; and when even the best that human wisdom can devise is established, it is a thing more in name and idea than in fact. It is to the great and fundamental principles of society and civilisation—to the common usage universally consented to, and mutually and reciprocally maintained—to the unceasing circulation of interest, which, passing through its million channels, invigorates the whole mass of civilised man—it is to these things, infinitely more than to anything which even the best instituted government can

perform, that the safety and prosperity of the individual and of the whole depends.

The more perfect civilisation is, the less occasion has it for government, because the more does it regulate its own affairs, and govern itself; but so contrary is the practice of old governments to the reason of the case, that the expenses of them increase in the proportion they ought to diminish. It is but few general laws that civilised life requires, and those of such common usefulness, that whether they are enforced by the forms of government or not, the effect will be nearly the same. If we consider what the principles are that first condense men into society, and what are the motives that regulate their mutual intercourse afterwards, we shall find, by the time we arrive at what is called government, that nearly the whole of the business is performed by the natural operation of the parts upon each other.

Man, with respect to all those matters, is more a creature of consistency than he is aware, or than governments would wish him to believe. All the great laws of society are laws of nature. Those of trade and commerce, whether with respect to the intercourse of individuals or of nations, are laws of mutual and reciprocal interest. They are followed and obeyed, because it is the interest of the parties so to do, and not on account of any formal laws their governments may impose or interpose.

But how often is the natural propensity to society disturbed or destroyed by the operations of government! When the latter, instead of being ingrafted on the principles of the former, assumes to exist for itself, and acts by partialities of favour and oppression, it becomes the cause of the mischiefs it ought to prevent.

If we look back to the riots and tumults which at various times have happened in England, we shall find that they did not proceed from the want of a government, but that government was itself the generating cause; instead of consolidating society it divided it; it deprived it of its natural cohesion, and engendered discontents and disorders which otherwise would not have existed. In those associations which men promiscuously form for the purpose of trade, or of any concern in which government is totally out of the question, and in which they act merely on the principles of society, we see how naturally the various parties unite; and this shows, by comparison, that governments, so far from being always the cause or means of order, are often the destruction of it. The riots of 1780 had no other

source than the remains of those prejudices which the government itself had encouraged. But with respect to England there are also other causes.

Excess and inequality of taxation, however disguised in the means, never fail to appear in their effects. As a great mass of the community are thrown thereby into poverty and discontent, they are constantly on the brink of commotion; and deprived, as they unfortunately are, of the means of information, are easily heated to outrage. Whatever the apparent cause of any riots may be, the real one is always want of happiness. It shows that something is wrong in the system of government that injures the felicity by which society is to be preserved.

But as a fact is superior to reasoning, the instance of America presents itself to confirm these observations. If there is a country in the world where concord, according to common calculation, would be least expected, it is America. Made up as it is of people from different nations,*[16](#) accustomed to different forms and habits of government, speaking different languages, and more different in their modes of worship, it would appear that the union of such a people was impracticable; but by the simple operation of constructing government on the principles of society and the rights of man, every difficulty retires, and all the parts are brought into cordial unison. There the poor are not oppressed, the rich are not privileged. Industry is not mortified by the splendid extravagance of a court rioting at its expense. Their taxes are few, because their government is just: and as there is nothing to render them wretched, there is nothing to engender riots and tumults.

A metaphysical man, like Mr. Burke, would have tortured his invention to discover how such a people could be governed. He would have supposed that some must be managed by fraud, others by force, and all by some contrivance; that genius must be hired to impose upon ignorance, and show and parade to fascinate the vulgar. Lost in the abundance of his researches, he would have resolved and re-resolved, and finally overlooked the plain and easy road that lay directly before him.

One of the great advantages of the American Revolution has been, that it led to a discovery of the principles, and laid open the imposition, of governments. All the revolutions till then had been worked within the atmosphere of a court, and never on the grand floor of a nation. The parties

were always of the class of courtiers; and whatever was their rage for reformation, they carefully preserved the fraud of the profession.

In all cases they took care to represent government as a thing made up of mysteries, which only themselves understood; and they hid from the understanding of the nation the only thing that was beneficial to know, namely, That government is nothing more than a national association adding on the principles of society.

Having thus endeavoured to show that the social and civilised state of man is capable of performing within itself almost everything necessary to its protection and government, it will be proper, on the other hand, to take a review of the present old governments, and examine whether their principles and practice are correspondent thereto.

CHAPTER II. OF THE ORIGIN OF THE PRESENT OLD GOVERNMENTS

It is impossible that such governments as have hitherto existed in the world, could have commenced by any other means than a total violation of every principle sacred and moral. The obscurity in which the origin of all the present old governments is buried, implies the iniquity and disgrace with which they began. The origin of the present government of America and France will ever be remembered, because it is honourable to record it; but with respect to the rest, even Flattery has consigned them to the tomb of time, without an inscription.

It could have been no difficult thing in the early and solitary ages of the world, while the chief employment of men was that of attending flocks and herds, for a banditti of ruffians to overrun a country, and lay it under contributions. Their power being thus established, the chief of the band contrived to lose the name of Robber in that of Monarch; and hence the origin of Monarchy and Kings.

The origin of the Government of England, so far as relates to what is called its line of monarchy, being one of the latest, is perhaps the best recorded. The hatred which the Norman invasion and tyranny begat, must have been deeply rooted in the nation, to have outlived the contrivance to obliterate it. Though not a courtier will talk of the curfew-bell, not a village in England has forgotten it.

Those bands of robbers having parcelled out the world, and divided it into dominions, began, as is naturally the case, to quarrel with each other. What at first was obtained by violence was considered by others as lawful to be taken, and a second plunderer succeeded the first. They alternately invaded the dominions which each had assigned to himself, and the brutality with which they treated each other explains the original character of monarchy. It was ruffian torturing ruffian. The conqueror considered the conquered, not as his prisoner, but his property. He led him in triumph rattling in chains, and doomed him, at pleasure, to slavery or death. As time obliterated the history of their beginning, their successors assumed new

appearances, to cut off the entail of their disgrace, but their principles and objects remained the same. What at first was plunder, assumed the softer name of revenue; and the power originally usurped, they affected to inherit.

From such beginning of governments, what could be expected but a continued system of war and extortion? It has established itself into a trade. The vice is not peculiar to one more than to another, but is the common principle of all. There does not exist within such governments sufficient stamina whereon to engraft reformation; and the shortest and most effectual remedy is to begin anew on the ground of the nation.

What scenes of horror, what perfection of iniquity, present themselves in contemplating the character and reviewing the history of such governments! If we would delineate human nature with a baseness of heart and hypocrisy of countenance that reflection would shudder at and humanity disown, it is kings, courts and cabinets that must sit for the portrait. Man, naturally as he is, with all his faults about him, is not up to the character.

Can we possibly suppose that if governments had originated in a right principle, and had not an interest in pursuing a wrong one, the world could have been in the wretched and quarrelsome condition we have seen it? What inducement has the farmer, while following the plough, to lay aside his peaceful pursuit, and go to war with the farmer of another country? or what inducement has the manufacturer? What is dominion to them, or to any class of men in a nation? Does it add an acre to any man's estate, or raise its value? Are not conquest and defeat each of the same price, and taxes the never-failing consequence?—Though this reasoning may be good to a nation, it is not so to a government. War is the Pharo-table of governments, and nations the dupes of the game.

If there is anything to wonder at in this miserable scene of governments more than might be expected, it is the progress which the peaceful arts of agriculture, manufacture and commerce have made beneath such a long accumulating load of discouragement and oppression. It serves to show that instinct in animals does not act with stronger impulse than the principles of society and civilisation operate in man. Under all discouragements, he pursues his object, and yields to nothing but impossibilities.

CHAPTER III. OF THE OLD AND NEW SYSTEMS OF GOVERNMENT

Nothing can appear more contradictory than the principles on which the old governments began, and the condition to which society, civilisation and commerce are capable of carrying mankind. Government, on the old system, is an assumption of power, for the aggrandisement of itself; on the new, a delegation of power for the common benefit of society. The former supports itself by keeping up a system of war; the latter promotes a system of peace, as the true means of enriching a nation. The one encourages national prejudices; the other promotes universal society, as the means of universal commerce. The one measures its prosperity, by the quantity of revenue it extorts; the other proves its excellence, by the small quantity of taxes it requires.

Mr. Burke has talked of old and new whigs. If he can amuse himself with childish names and distinctions, I shall not interrupt his pleasure. It is not to him, but to the Abbe Sieyes, that I address this chapter. I am already engaged to the latter gentleman to discuss the subject of monarchical government; and as it naturally occurs in comparing the old and new systems, I make this the opportunity of presenting to him my observations. I shall occasionally take Mr. Burke in my way.

Though it might be proved that the system of government now called the New, is the most ancient in principle of all that have existed, being founded on the original, inherent Rights of Man: yet, as tyranny and the sword have suspended the exercise of those rights for many centuries past, it serves better the purpose of distinction to call it the new, than to claim the right of calling it the old.

The first general distinction between those two systems, is, that the one now called the old is hereditary, either in whole or in part; and the new is entirely representative. It rejects all hereditary government:

First, As being an imposition on mankind.

Secondly, As inadequate to the purposes for which government is necessary.

With respect to the first of these heads—It cannot be proved by what right hereditary government could begin; neither does there exist within the compass of mortal power a right to establish it. Man has no authority over posterity in matters of personal right; and, therefore, no man, or body of men, had, or can have, a right to set up hereditary government. Were even ourselves to come again into existence, instead of being succeeded by posterity, we have not now the right of taking from ourselves the rights which would then be ours. On what ground, then, do we pretend to take them from others?

All hereditary government is in its nature tyranny. An heritable crown, or an heritable throne, or by what other fanciful name such things may be called, have no other significant explanation than that mankind are heritable property. To inherit a government, is to inherit the people, as if they were flocks and herds.

With respect to the second head, that of being inadequate to the purposes for which government is necessary, we have only to consider what government essentially is, and compare it with the circumstances to which hereditary succession is subject.

Government ought to be a thing always in full maturity. It ought to be so constructed as to be superior to all the accidents to which individual man is subject; and, therefore, hereditary succession, by being subject to them all, is the most irregular and imperfect of all the systems of government.

We have heard the Rights of Man called a levelling system; but the only system to which the word levelling is truly applicable, is the hereditary monarchical system. It is a system of mental levelling. It indiscriminately admits every species of character to the same authority. Vice and virtue, ignorance and wisdom, in short, every quality good or bad, is put on the same level. Kings succeed each other, not as rationals, but as animals. It signifies not what their mental or moral characters are. Can we then be surprised at the abject state of the human mind in monarchical countries, when the government itself is formed on such an abject levelling system?—It has no fixed character. To-day it is one thing; to-morrow it is something else. It changes with the temper of every succeeding individual, and is subject to all the varieties of each. It is government through the medium of passions and accidents. It appears under all the various characters of childhood, decrepitude, dotage, a thing at nurse, in leading-strings, or in

crutches. It reverses the wholesome order of nature. It occasionally puts children over men, and the conceits of nonage over wisdom and experience. In short, we cannot conceive a more ridiculous figure of government, than hereditary succession, in all its cases, presents.

Could it be made a decree in nature, or an edict registered in heaven, and man could know it, that virtue and wisdom should invariably appertain to hereditary succession, the objection to it would be removed; but when we see that nature acts as if she disowned and sported with the hereditary system; that the mental character of successors, in all countries, is below the average of human understanding; that one is a tyrant, another an idiot, a third insane, and some all three together, it is impossible to attach confidence to it, when reason in man has power to act.

It is not to the Abbe Sieyes that I need apply this reasoning; he has already saved me that trouble by giving his own opinion upon the case. "If it be asked," says he, "what is my opinion with respect to hereditary right, I answer without hesitation, That in good theory, an hereditary transmission of any power of office, can never accord with the laws of a true representation. Hereditaryship is, in this sense, as much an attain upon principle, as an outrage upon society. But let us," continues he, "refer to the history of all elective monarchies and principalities: is there one in which the elective mode is not worse than the hereditary succession?"

As to debating on which is the worst of the two, it is admitting both to be bad; and herein we are agreed. The preference which the Abbe has given, is a condemnation of the thing that he prefers. Such a mode of reasoning on such a subject is inadmissible, because it finally amounts to an accusation upon Providence, as if she had left to man no other choice with respect to government than between two evils, the best of which he admits to be "an attain upon principle, and an outrage upon society."

Passing over, for the present, all the evils and mischiefs which monarchy has occasioned in the world, nothing can more effectually prove its uselessness in a state of civil government, than making it hereditary. Would we make any office hereditary that required wisdom and abilities to fill it? And where wisdom and abilities are not necessary, such an office, whatever it may be, is superfluous or insignificant.

Hereditary succession is a burlesque upon monarchy. It puts it in the most ridiculous light, by presenting it as an office which any child or idiot may

fill. It requires some talents to be a common mechanic; but to be a king requires only the animal figure of man—a sort of breathing automaton. This sort of superstition may last a few years more, but it cannot long resist the awakened reason and interest of man.

As to Mr. Burke, he is a stickler for monarchy, not altogether as a pensioner, if he is one, which I believe, but as a political man. He has taken up a contemptible opinion of mankind, who, in their turn, are taking up the same of him. He considers them as a herd of beings that must be governed by fraud, effigy, and show; and an idol would be as good a figure of monarchy with him, as a man. I will, however, do him the justice to say that, with respect to America, he has been very complimentary. He always contended, at least in my hearing, that the people of America were more enlightened than those of England, or of any country in Europe; and that therefore the imposition of show was not necessary in their governments.

Though the comparison between hereditary and elective monarchy, which the Abbe has made, is unnecessary to the case, because the representative system rejects both: yet, were I to make the comparison, I should decide contrary to what he has done.

The civil wars which have originated from contested hereditary claims, are more numerous, and have been more dreadful, and of longer continuance, than those which have been occasioned by election. All the civil wars in France arose from the hereditary system; they were either produced by hereditary claims, or by the imperfection of the hereditary form, which admits of regencies or monarchy at nurse. With respect to England, its history is full of the same misfortunes. The contests for succession between the houses of York and Lancaster lasted a whole century; and others of a similar nature have renewed themselves since that period. Those of 1715 and 1745 were of the same kind. The succession war for the crown of Spain embroiled almost half Europe. The disturbances of Holland are generated from the hereditaryship of the Stadtholder. A government calling itself free, with an hereditary office, is like a thorn in the flesh, that produces a fermentation which endeavours to discharge it.

But I might go further, and place also foreign wars, of whatever kind, to the same cause. It is by adding the evil of hereditary succession to that of monarchy, that a permanent family interest is created, whose constant objects are dominion and revenue. Poland, though an elective monarchy,

has had fewer wars than those which are hereditary; and it is the only government that has made a voluntary essay, though but a small one, to reform the condition of the country.

Having thus glanced at a few of the defects of the old, or hereditary systems of government, let us compare it with the new, or representative system.

The representative system takes society and civilisation for its basis; nature, reason, and experience, for its guide.

Experience, in all ages, and in all countries, has demonstrated that it is impossible to control Nature in her distribution of mental powers. She gives them as she pleases. Whatever is the rule by which she, apparently to us, scatters them among mankind, that rule remains a secret to man. It would be as ridiculous to attempt to fix the hereditaryship of human beauty, as of wisdom. Whatever wisdom constitutently is, it is like a seedless plant; it may be reared when it appears, but it cannot be voluntarily produced. There is always a sufficiency somewhere in the general mass of society for all purposes; but with respect to the parts of society, it is continually changing its place. It rises in one to-day, in another to-morrow, and has most probably visited in rotation every family of the earth, and again withdrawn.

As this is in the order of nature, the order of government must necessarily follow it, or government will, as we see it does, degenerate into ignorance. The hereditary system, therefore, is as repugnant to human wisdom as to human rights; and is as absurd as it is unjust.

As the republic of letters brings forward the best literary productions, by giving to genius a fair and universal chance; so the representative system of government is calculated to produce the wisest laws, by collecting wisdom from where it can be found. I smile to myself when I contemplate the ridiculous insignificance into which literature and all the sciences would sink, were they made hereditary; and I carry the same idea into governments. An hereditary governor is as inconsistent as an hereditary author. I know not whether Homer or Euclid had sons; but I will venture an opinion that if they had, and had left their works unfinished, those sons could not have completed them.

Do we need a stronger evidence of the absurdity of hereditary government than is seen in the descendants of those men, in any line of life, who once were famous? Is there scarcely an instance in which there is not a

total reverse of the character? It appears as if the tide of mental faculties flowed as far as it could in certain channels, and then forsook its course, and arose in others. How irrational then is the hereditary system, which establishes channels of power, in company with which wisdom refuses to flow! By continuing this absurdity, man is perpetually in contradiction with himself; he accepts, for a king, or a chief magistrate, or a legislator, a person whom he would not elect for a constable.

It appears to general observation, that revolutions create genius and talents; but those events do no more than bring them forward. There is existing in man, a mass of sense lying in a dormant state, and which, unless something excites it to action, will descend with him, in that condition, to the grave. As it is to the advantage of society that the whole of its faculties should be employed, the construction of government ought to be such as to bring forward, by a quiet and regular operation, all that extent of capacity which never fails to appear in revolutions.

This cannot take place in the insipid state of hereditary government, not only because it prevents, but because it operates to benumb. When the mind of a nation is bowed down by any political superstition in its government, such as hereditary succession is, it loses a considerable portion of its powers on all other subjects and objects. Hereditary succession requires the same obedience to ignorance, as to wisdom; and when once the mind can bring itself to pay this indiscriminate reverence, it descends below the stature of mental manhood. It is fit to be great only in little things. It acts a treachery upon itself, and suffocates the sensations that urge the detection.

Though the ancient governments present to us a miserable picture of the condition of man, there is one which above all others exempts itself from the general description. I mean the democracy of the Athenians. We see more to admire, and less to condemn, in that great, extraordinary people, than in anything which history affords.

Mr. Burke is so little acquainted with constituent principles of government, that he confounds democracy and representation together. Representation was a thing unknown in the ancient democracies. In those the mass of the people met and enacted laws (grammatically speaking) in the first person. Simple democracy was no other than the common hall of the ancients. It signifies the form, as well as the public principle of the government. As those democracies increased in population, and the territory

extended, the simple democratical form became unwieldy and impracticable; and as the system of representation was not known, the consequence was, they either degenerated convulsively into monarchies, or became absorbed into such as then existed. Had the system of representation been then understood, as it now is, there is no reason to believe that those forms of government, now called monarchical or aristocratical, would ever have taken place. It was the want of some method to consolidate the parts of society, after it became too populous, and too extensive for the simple democratical form, and also the lax and solitary condition of shepherds and herdsmen in other parts of the world, that afforded opportunities to those unnatural modes of government to begin.

As it is necessary to clear away the rubbish of errors, into which the subject of government has been thrown, I will proceed to remark on some others.

It has always been the political craft of courtiers and court-governments, to abuse something which they called republicanism; but what republicanism was, or is, they never attempt to explain. Let us examine a little into this case.

The only forms of government are the democratical, the aristocratical, the monarchical, and what is now called the representative.

What is called a republic is not any particular form of government. It is wholly characteristical of the purport, matter or object for which government ought to be instituted, and on which it is to be employed, Res-Publica, the public affairs, or the public good; or, literally translated, the public thing. It is a word of a good original, referring to what ought to be the character and business of government; and in this sense it is naturally opposed to the word monarchy, which has a base original signification. It means arbitrary power in an individual person; in the exercise of which, himself, and not the res-publica, is the object.

Every government that does not act on the principle of a Republic, or in other words, that does not make the res-publica its whole and sole object, is not a good government. Republican government is no other than government established and conducted for the interest of the public, as well individually as collectively. It is not necessarily connected with any particular form, but it most naturally associates with the representative

form, as being best calculated to secure the end for which a nation is at the expense of supporting it.

Various forms of government have affected to style themselves a republic. Poland calls itself a republic, which is an hereditary aristocracy, with what is called an elective monarchy. Holland calls itself a republic, which is chiefly aristocratical, with an hereditary stadtholdership. But the government of America, which is wholly on the system of representation, is the only real Republic, in character and in practice, that now exists. Its government has no other object than the public business of the nation, and therefore it is properly a republic; and the Americans have taken care that This, and no other, shall always be the object of their government, by their rejecting everything hereditary, and establishing governments on the system of representation only. Those who have said that a republic is not a form of government calculated for countries of great extent, mistook, in the first place, the business of a government, for a form of government; for the *res-publica* equally appertains to every extent of territory and population. And, in the second place, if they meant anything with respect to form, it was the simple democratical form, such as was the mode of government in the ancient democracies, in which there was no representation. The case, therefore, is not, that a republic cannot be extensive, but that it cannot be extensive on the simple democratical form; and the question naturally presents itself, What is the best form of government for conducting the *Res-Publica*, or the Public Business of a nation, after it becomes too extensive and populous for the simple democratical form? It cannot be monarchy, because monarchy is subject to an objection of the same amount to which the simple democratical form was subject.

It is possible that an individual may lay down a system of principles, on which government shall be constitutionally established to any extent of territory. This is no more than an operation of the mind, acting by its own powers. But the practice upon those principles, as applying to the various and numerous circumstances of a nation, its agriculture, manufacture, trade, commerce, etc., etc., a knowledge of a different kind, and which can be had only from the various parts of society. It is an assemblage of practical knowledge, which no individual can possess; and therefore the monarchical form is as much limited, in useful practice, from the incompetency of knowledge, as was the democratical form, from the multiplicity of population. The one degenerates, by extension, into confusion; the other,

into ignorance and incapacity, of which all the great monarchies are an evidence. The monarchical form, therefore, could not be a substitute for the democratical, because it has equal inconveniences.

Much less could it when made hereditary. This is the most effectual of all forms to preclude knowledge. Neither could the high democratical mind have voluntarily yielded itself to be governed by children and idiots, and all the motley insignificance of character, which attends such a mere animal system, the disgrace and the reproach of reason and of man.

As to the aristocratical form, it has the same vices and defects with the monarchical, except that the chance of abilities is better from the proportion of numbers, but there is still no security for the right use and application of them.*[17](#)

Referring them to the original simple democracy, it affords the true data from which government on a large scale can begin. It is incapable of extension, not from its principle, but from the inconvenience of its form; and monarchy and aristocracy, from their incapacity. Retaining, then, democracy as the ground, and rejecting the corrupt systems of monarchy and aristocracy, the representative system naturally presents itself; remedying at once the defects of the simple democracy as to form, and the incapacity of the other two with respect to knowledge.

Simple democracy was society governing itself without the aid of secondary means. By ingrafting representation upon democracy, we arrive at a system of government capable of embracing and confederating all the various interests and every extent of territory and population; and that also with advantages as much superior to hereditary government, as the republic of letters is to hereditary literature.

It is on this system that the American government is founded. It is representation ingrafted upon democracy. It has fixed the form by a scale parallel in all cases to the extent of the principle. What Athens was in miniature America will be in magnitude. The one was the wonder of the ancient world; the other is becoming the admiration of the present. It is the easiest of all the forms of government to be understood and the most eligible in practice; and excludes at once the ignorance and insecurity of the hereditary mode, and the inconvenience of the simple democracy.

It is impossible to conceive a system of government capable of acting over such an extent of territory, and such a circle of interests, as is

immediately produced by the operation of representation. France, great and populous as it is, is but a spot in the capaciousness of the system. It is preferable to simple democracy even in small territories. Athens, by representation, would have outrivalled her own democracy.

That which is called government, or rather that which we ought to conceive government to be, is no more than some common center in which all the parts of society unite. This cannot be accomplished by any method so conducive to the various interests of the community, as by the representative system. It concentrates the knowledge necessary to the interest of the parts, and of the whole. It places government in a state of constant maturity. It is, as has already been observed, never young, never old. It is subject neither to nonage, nor dotage. It is never in the cradle, nor on crutches. It admits not of a separation between knowledge and power, and is superior, as government always ought to be, to all the accidents of individual man, and is therefore superior to what is called monarchy.

A nation is not a body, the figure of which is to be represented by the human body; but is like a body contained within a circle, having a common center, in which every radius meets; and that center is formed by representation. To connect representation with what is called monarchy, is eccentric government. Representation is of itself the delegated monarchy of a nation, and cannot debase itself by dividing it with another.

Mr. Burke has two or three times, in his parliamentary speeches, and in his publications, made use of a jingle of words that convey no ideas. Speaking of government, he says, "It is better to have monarchy for its basis, and republicanism for its corrective, than republicanism for its basis, and monarchy for its corrective."—If he means that it is better to correct folly with wisdom, than wisdom with folly, I will no otherwise contend with him, than that it would be much better to reject the folly entirely.

But what is this thing which Mr. Burke calls monarchy? Will he explain it? All men can understand what representation is; and that it must necessarily include a variety of knowledge and talents. But what security is there for the same qualities on the part of monarchy? or, when the monarchy is a child, where then is the wisdom? What does it know about government? Who then is the monarch, or where is the monarchy? If it is to be performed by regency, it proves to be a farce. A regency is a mock species of republic, and the whole of monarchy deserves no better

description. It is a thing as various as imagination can paint. It has none of the stable character that government ought to possess. Every succession is a revolution, and every regency a counter-revolution. The whole of it is a scene of perpetual court cabal and intrigue, of which Mr. Burke is himself an instance. To render monarchy consistent with government, the next in succession should not be born a child, but a man at once, and that man a Solomon. It is ridiculous that nations are to wait and government be interrupted till boys grow to be men.

Whether I have too little sense to see, or too much to be imposed upon; whether I have too much or too little pride, or of anything else, I leave out of the question; but certain it is, that what is called monarchy, always appears to me a silly, contemptible thing. I compare it to something kept behind a curtain, about which there is a great deal of bustle and fuss, and a wonderful air of seeming solemnity; but when, by any accident, the curtain happens to be open—and the company see what it is, they burst into laughter.

In the representative system of government, nothing of this can happen. Like the nation itself, it possesses a perpetual stamina, as well of body as of mind, and presents itself on the open theatre of the world in a fair and manly manner. Whatever are its excellences or defects, they are visible to all. It exists not by fraud and mystery; it deals not in cant and sophistry; but inspires a language that, passing from heart to heart, is felt and understood.

We must shut our eyes against reason, we must basely degrade our understanding, not to see the folly of what is called monarchy. Nature is orderly in all her works; but this is a mode of government that counteracts nature. It turns the progress of the human faculties upside down. It subjects age to be governed by children, and wisdom by folly.

On the contrary, the representative system is always parallel with the order and immutable laws of nature, and meets the reason of man in every part. For example:

In the American Federal Government, more power is delegated to the President of the United States than to any other individual member of Congress. He cannot, therefore, be elected to this office under the age of thirty-five years. By this time the judgment of man becomes more matured, and he has lived long enough to be acquainted with men and things, and the country with him.—But on the monarchical plan (exclusive of the numerous

chances there are against every man born into the world, of drawing a prize in the lottery of human faculties), the next in succession, whatever he may be, is put at the head of a nation, and of a government, at the age of eighteen years. Does this appear like an action of wisdom? Is it consistent with the proper dignity and the manly character of a nation? Where is the propriety of calling such a lad the father of the people?—In all other cases, a person is a minor until the age of twenty-one years. Before this period, he is not trusted with the management of an acre of land, or with the heritable property of a flock of sheep, or an herd of swine; but, wonderful to tell! he may, at the age of eighteen years, be trusted with a nation.

That monarchy is all a bubble, a mere court artifice to procure money, is evident (at least to me) in every character in which it can be viewed. It would be impossible, on the rational system of representative government, to make out a bill of expenses to such an enormous amount as this deception admits. Government is not of itself a very chargeable institution. The whole expense of the federal government of America, founded, as I have already said, on the system of representation, and extending over a country nearly ten times as large as England, is but six hundred thousand dollars, or one hundred and thirty-five thousand pounds sterling.

I presume that no man in his sober senses will compare the character of any of the kings of Europe with that of General Washington. Yet, in France, and also in England, the expense of the civil list only, for the support of one man, is eight times greater than the whole expense of the federal government in America. To assign a reason for this, appears almost impossible. The generality of people in America, especially the poor, are more able to pay taxes, than the generality of people either in France or England.

But the case is, that the representative system diffuses such a body of knowledge throughout a nation, on the subject of government, as to explode ignorance and preclude imposition. The craft of courts cannot be acted on that ground. There is no place for mystery; nowhere for it to begin. Those who are not in the representation, know as much of the nature of business as those who are. An affectation of mysterious importance would there be scouted. Nations can have no secrets; and the secrets of courts, like those of individuals, are always their defects.

In the representative system, the reason for everything must publicly appear. Every man is a proprietor in government, and considers it a necessary part of his business to understand. It concerns his interest, because it affects his property. He examines the cost, and compares it with the advantages; and above all, he does not adopt the slavish custom of following what in other governments are called Leaders.

It can only be by blinding the understanding of man, and making him believe that government is some wonderful mysterious thing, that excessive revenues are obtained. Monarchy is well calculated to ensure this end. It is the popery of government; a thing kept up to amuse the ignorant, and quiet them into taxes.

The government of a free country, properly speaking, is not in the persons, but in the laws. The enacting of those requires no great expense; and when they are administered, the whole of civil government is performed—the rest is all court contrivance.

CHAPTER IV. OF CONSTITUTIONS

That men mean distinct and separate things when they speak of constitutions and of governments, is evident; or why are those terms distinctly and separately used? A constitution is not the act of a government, but of a people constituting a government; and government without a constitution, is power without a right.

All power exercised over a nation, must have some beginning. It must either be delegated or assumed. There are no other sources. All delegated power is trust, and all assumed power is usurpation. Time does not alter the nature and quality of either.

In viewing this subject, the case and circumstances of America present themselves as in the beginning of a world; and our enquiry into the origin of government is shortened, by referring to the facts that have arisen in our own day. We have no occasion to roam for information into the obscure field of antiquity, nor hazard ourselves upon conjecture. We are brought at once to the point of seeing government begin, as if we had lived in the beginning of time. The real volume, not of history, but of facts, is directly before us, unmutilated by contrivance, or the errors of tradition.

I will here concisely state the commencement of the American constitutions; by which the difference between constitutions and governments will sufficiently appear.

It may not appear improper to remind the reader that the United States of America consist of thirteen separate states, each of which established a government for itself, after the declaration of independence, done the 4th of July, 1776. Each state acted independently of the rest, in forming its governments; but the same general principle pervades the whole. When the several state governments were formed, they proceeded to form the federal government, that acts over the whole in all matters which concern the interest of the whole, or which relate to the intercourse of the several states with each other, or with foreign nations. I will begin with giving an instance from one of the state governments (that of Pennsylvania) and then proceed to the federal government.

The state of Pennsylvania, though nearly of the same extent of territory as England, was then divided into only twelve counties. Each of those counties had elected a committee at the commencement of the dispute with the English government; and as the city of Philadelphia, which also had its committee, was the most central for intelligence, it became the center of communication to the several country committees. When it became necessary to proceed to the formation of a government, the committee of Philadelphia proposed a conference of all the committees, to be held in that city, and which met the latter end of July, 1776.

Though these committees had been duly elected by the people, they were not elected expressly for the purpose, nor invested with the authority of forming a constitution; and as they could not, consistently with the American idea of rights, assume such a power, they could only confer upon the matter, and put it into a train of operation. The conferees, therefore, did no more than state the case, and recommend to the several counties to elect six representatives for each county, to meet in convention at Philadelphia, with powers to form a constitution, and propose it for public consideration.

This convention, of which Benjamin Franklin was president, having met and deliberated, and agreed upon a constitution, they next ordered it to be published, not as a thing established, but for the consideration of the whole people, their approbation or rejection, and then adjourned to a stated time. When the time of adjournment was expired, the convention re-assembled; and as the general opinion of the people in approbation of it was then known, the constitution was signed, sealed, and proclaimed on the authority of the people and the original instrument deposited as a public record. The convention then appointed a day for the general election of the representatives who were to compose the government, and the time it should commence; and having done this they dissolved, and returned to their several homes and occupations.

In this constitution were laid down, first, a declaration of rights; then followed the form which the government should have, and the powers it should possess—the authority of the courts of judicature, and of juries—the manner in which elections should be conducted, and the proportion of representatives to the number of electors—the time which each succeeding assembly should continue, which was one year—the mode of levying, and

of accounting for the expenditure, of public money—of appointing public officers, etc., etc., etc.

No article of this constitution could be altered or infringed at the discretion of the government that was to ensue. It was to that government a law. But as it would have been unwise to preclude the benefit of experience, and in order also to prevent the accumulation of errors, if any should be found, and to preserve an unison of government with the circumstances of the state at all times, the constitution provided that, at the expiration of every seven years, a convention should be elected, for the express purpose of revising the constitution, and making alterations, additions, or abolitions therein, if any such should be found necessary.

Here we see a regular process—a government issuing out of a constitution, formed by the people in their original character; and that constitution serving, not only as an authority, but as a law of control to the government. It was the political bible of the state. Scarcely a family was without it. Every member of the government had a copy; and nothing was more common, when any debate arose on the principle of a bill, or on the extent of any species of authority, than for the members to take the printed constitution out of their pocket, and read the chapter with which such matter in debate was connected.

Having thus given an instance from one of the states, I will show the proceedings by which the federal constitution of the United States arose and was formed.

Congress, at its two first meetings, in September 1774, and May 1775, was nothing more than a deputation from the legislatures of the several provinces, afterwards states; and had no other authority than what arose from common consent, and the necessity of its acting as a public body. In everything which related to the internal affairs of America, congress went no further than to issue recommendations to the several provincial assemblies, who at discretion adopted them or not. Nothing on the part of congress was compulsive; yet, in this situation, it was more faithfully and affectionately obeyed than was any government in Europe. This instance, like that of the national assembly in France, sufficiently shows, that the strength of government does not consist in any thing itself, but in the attachment of a nation, and the interest which a people feel in supporting it. When this is lost, government is but a child in power; and though, like the

old government in France, it may harass individuals for a while, it but facilitates its own fall.

After the declaration of independence, it became consistent with the principle on which representative government is founded, that the authority of congress should be defined and established. Whether that authority should be more or less than congress then discretionarily exercised was not the question. It was merely the rectitude of the measure.

For this purpose, the act, called the act of confederation (which was a sort of imperfect federal constitution), was proposed, and, after long deliberation, was concluded in the year 1781. It was not the act of congress, because it is repugnant to the principles of representative government that a body should give power to itself. Congress first informed the several states, of the powers which it conceived were necessary to be invested in the union, to enable it to perform the duties and services required from it; and the states severally agreed with each other, and concentrated in congress those powers.

It may not be improper to observe that in both those instances (the one of Pennsylvania, and the other of the United States), there is no such thing as the idea of a compact between the people on one side, and the government on the other. The compact was that of the people with each other, to produce and constitute a government. To suppose that any government can be a party in a compact with the whole people, is to suppose it to have existence before it can have a right to exist. The only instance in which a compact can take place between the people and those who exercise the government, is, that the people shall pay them, while they choose to employ them.

Government is not a trade which any man, or any body of men, has a right to set up and exercise for his own emolument, but is altogether a trust, in right of those by whom that trust is delegated, and by whom it is always resumeable. It has of itself no rights; they are altogether duties.

Having thus given two instances of the original formation of a constitution, I will show the manner in which both have been changed since their first establishment.

The powers vested in the governments of the several states, by the state constitutions, were found, upon experience, to be too great; and those

vested in the federal government, by the act of confederation, too little. The defect was not in the principle, but in the distribution of power.

Numerous publications, in pamphlets and in the newspapers, appeared, on the propriety and necessity of new modelling the federal government. After some time of public discussion, carried on through the channel of the press, and in conversations, the state of Virginia, experiencing some inconvenience with respect to commerce, proposed holding a continental conference; in consequence of which, a deputation from five or six state assemblies met at Annapolis, in Maryland, in 1786. This meeting, not conceiving itself sufficiently authorised to go into the business of a reform, did no more than state their general opinions of the propriety of the measure, and recommend that a convention of all the states should be held the year following.

The convention met at Philadelphia in May, 1787, of which General Washington was elected president. He was not at that time connected with any of the state governments, or with congress. He delivered up his commission when the war ended, and since then had lived a private citizen.

The convention went deeply into all the subjects; and having, after a variety of debate and investigation, agreed among themselves upon the several parts of a federal constitution, the next question was, the manner of giving it authority and practice.

For this purpose they did not, like a cabal of courtiers, send for a Dutch Stadtholder, or a German Elector; but they referred the whole matter to the sense and interest of the country.

They first directed that the proposed constitution should be published. Secondly, that each state should elect a convention, expressly for the purpose of taking it into consideration, and of ratifying or rejecting it; and that as soon as the approbation and ratification of any nine states should be given, that those states shall proceed to the election of their proportion of members to the new federal government; and that the operation of it should then begin, and the former federal government cease.

The several states proceeded accordingly to elect their conventions. Some of those conventions ratified the constitution by very large majorities, and two or three unanimously. In others there were much debate and division of opinion. In the Massachusetts convention, which met at Boston, the majority was not above nineteen or twenty, in about three hundred

members; but such is the nature of representative government, that it quietly decides all matters by majority. After the debate in the Massachusetts convention was closed, and the vote taken, the objecting members rose and declared, "That though they had argued and voted against it, because certain parts appeared to them in a different light to what they appeared to other members; yet, as the vote had decided in favour of the constitution as proposed, they should give it the same practical support as if they had for it."

As soon as nine states had concurred (and the rest followed in the order their conventions were elected), the old fabric of the federal government was taken down, and the new one erected, of which General Washington is president.—In this place I cannot help remarking, that the character and services of this gentleman are sufficient to put all those men called kings to shame. While they are receiving from the sweat and labours of mankind, a prodigality of pay, to which neither their abilities nor their services can entitle them, he is rendering every service in his power, and refusing every pecuniary reward. He accepted no pay as commander-in-chief; he accepts none as president of the United States.

After the new federal constitution was established, the state of Pennsylvania, conceiving that some parts of its own constitution required to be altered, elected a convention for that purpose. The proposed alterations were published, and the people concurring therein, they were established.

In forming those constitutions, or in altering them, little or no inconvenience took place. The ordinary course of things was not interrupted, and the advantages have been much. It is always the interest of a far greater number of people in a nation to have things right, than to let them remain wrong; and when public matters are open to debate, and the public judgment free, it will not decide wrong, unless it decides too hastily.

In the two instances of changing the constitutions, the governments then in being were not actors either way. Government has no right to make itself a party in any debate respecting the principles or modes of forming, or of changing, constitutions. It is not for the benefit of those who exercise the powers of government that constitutions, and the governments issuing from them, are established. In all those matters the right of judging and acting are in those who pay, and not in those who receive.

A constitution is the property of a nation, and not of those who exercise the government. All the constitutions of America are declared to be established on the authority of the people. In France, the word nation is used instead of the people; but in both cases, a constitution is a thing antecedent to the government, and always distinct there from.

In England it is not difficult to perceive that everything has a constitution, except the nation. Every society and association that is established, first agreed upon a number of original articles, digested into form, which are its constitution. It then appointed its officers, whose powers and authorities are described in that constitution, and the government of that society then commenced. Those officers, by whatever name they are called, have no authority to add to, alter, or abridge the original articles. It is only to the constituting power that this right belongs.

From the want of understanding the difference between a constitution and a government, Dr. Johnson, and all writers of his description, have always bewildered themselves. They could not but perceive, that there must necessarily be a controlling power existing somewhere, and they placed this power in the discretion of the persons exercising the government, instead of placing it in a constitution formed by the nation. When it is in a constitution, it has the nation for its support, and the natural and the political controlling powers are together. The laws which are enacted by governments, control men only as individuals, but the nation, through its constitution, controls the whole government, and has a natural ability to do so. The final controlling power, therefore, and the original constituting power, are one and the same power.

Dr. Johnson could not have advanced such a position in any country where there was a constitution; and he is himself an evidence that no such thing as a constitution exists in England. But it may be put as a question, not improper to be investigated, that if a constitution does not exist, how came the idea of its existence so generally established?

In order to decide this question, it is necessary to consider a constitution in both its cases:—First, as creating a government and giving it powers. Secondly, as regulating and restraining the powers so given.

If we begin with William of Normandy, we find that the government of England was originally a tyranny, founded on an invasion and conquest of the country. This being admitted, it will then appear, that the exertion of the

nation, at different periods, to abate that tyranny, and render it less intolerable, has been credited for a constitution.

Magna Charta, as it was called (it is now like an almanack of the same date), was no more than compelling the government to renounce a part of its assumptions. It did not create and give powers to government in a manner a constitution does; but was, as far as it went, of the nature of a reconquest, and not a constitution; for could the nation have totally expelled the usurpation, as France has done its despotism, it would then have had a constitution to form.

The history of the Edwards and the Henries, and up to the commencement of the Stuarts, exhibits as many instances of tyranny as could be acted within the limits to which the nation had restricted it. The Stuarts endeavoured to pass those limits, and their fate is well known. In all those instances we see nothing of a constitution, but only of restrictions on assumed power.

After this, another William, descended from the same stock, and claiming from the same origin, gained possession; and of the two evils, James and William, the nation preferred what it thought the least; since, from circumstances, it must take one. The act, called the Bill of Rights, comes here into view. What is it, but a bargain, which the parts of the government made with each other to divide powers, profits, and privileges? You shall have so much, and I will have the rest; and with respect to the nation, it said, for your share, You shall have the right of petitioning. This being the case, the bill of rights is more properly a bill of wrongs, and of insult. As to what is called the convention parliament, it was a thing that made itself, and then made the authority by which it acted. A few persons got together, and called themselves by that name. Several of them had never been elected, and none of them for the purpose.

From the time of William a species of government arose, issuing out of this coalition bill of rights; and more so, since the corruption introduced at the Hanover succession by the agency of Walpole; that can be described by no other name than a despotic legislation. Though the parts may embarrass each other, the whole has no bounds; and the only right it acknowledges out of itself, is the right of petitioning. Where then is the constitution either that gives or restrains power?

It is not because a part of the government is elective, that makes it less a despotism, if the persons so elected possess afterwards, as a parliament, unlimited powers. Election, in this case, becomes separated from representation, and the candidates are candidates for despotism.

I cannot believe that any nation, reasoning on its own rights, would have thought of calling these things a constitution, if the cry of constitution had not been set up by the government. It has got into circulation like the words bore and quoz [quiz], by being chalked up in the speeches of parliament, as those words were on window shutters and doorposts; but whatever the constitution may be in other respects, it has undoubtedly been the most productive machine of taxation that was ever invented. The taxes in France, under the new constitution, are not quite thirteen shillings per head,*[18](#) and the taxes in England, under what is called its present constitution, are forty-eight shillings and sixpence per head—men, women, and children—amounting to nearly seventeen millions sterling, besides the expense of collecting, which is upwards of a million more.

In a country like England, where the whole of the civil Government is executed by the people of every town and county, by means of parish officers, magistrates, quarterly sessions, juries, and assize; without any trouble to what is called the government or any other expense to the revenue than the salary of the judges, it is astonishing how such a mass of taxes can be employed. Not even the internal defence of the country is paid out of the revenue. On all occasions, whether real or contrived, recourse is continually had to new loans and new taxes. No wonder, then, that a machine of government so advantageous to the advocates of a court, should be so triumphantly extolled! No wonder, that St. James's or St. Stephen's should echo with the continual cry of constitution; no wonder, that the French revolution should be reprobated, and the res-publica treated with reproach! The red book of England, like the red book of France, will explain the reason.*[19](#)

I will now, by way of relaxation, turn a thought or two to Mr. Burke. I ask his pardon for neglecting him so long.

"America," says he (in his speech on the Canada Constitution bill), "never dreamed of such absurd doctrine as the Rights of Man."

Mr. Burke is such a bold presumer, and advances his assertions and his premises with such a deficiency of judgment, that, without troubling

ourselves about principles of philosophy or politics, the mere logical conclusions they produce, are ridiculous. For instance,

If governments, as Mr. Burke asserts, are not founded on the Rights of Man, and are founded on any rights at all, they consequently must be founded on the right of something that is not man. What then is that something?

Generally speaking, we know of no other creatures that inhabit the earth than man and beast; and in all cases, where only two things offer themselves, and one must be admitted, a negation proved on any one, amounts to an affirmative on the other; and therefore, Mr. Burke, by proving against the Rights of Man, proves in behalf of the beast; and consequently, proves that government is a beast; and as difficult things sometimes explain each other, we now see the origin of keeping wild beasts in the Tower; for they certainly can be of no other use than to show the origin of the government. They are in the place of a constitution. O John Bull, what honours thou hast lost by not being a wild beast. Thou mightest, on Mr. Burke's system, have been in the Tower for life.

If Mr. Burke's arguments have not weight enough to keep one serious, the fault is less mine than his; and as I am willing to make an apology to the reader for the liberty I have taken, I hope Mr. Burke will also make his for giving the cause.

Having thus paid Mr. Burke the compliment of remembering him, I return to the subject.

From the want of a constitution in England to restrain and regulate the wild impulse of power, many of the laws are irrational and tyrannical, and the administration of them vague and problematical.

The attention of the government of England (for I rather choose to call it by this name than the English government) appears, since its political connection with Germany, to have been so completely engrossed and absorbed by foreign affairs, and the means of raising taxes, that it seems to exist for no other purposes. Domestic concerns are neglected; and with respect to regular law, there is scarcely such a thing.

Almost every case must now be determined by some precedent, be that precedent good or bad, or whether it properly applies or not; and the practice is become so general as to suggest a suspicion, that it proceeds from a deeper policy than at first sight appears.

Since the revolution of America, and more so since that of France, this preaching up the doctrines of precedents, drawn from times and circumstances antecedent to those events, has been the studied practice of the English government. The generality of those precedents are founded on principles and opinions, the reverse of what they ought; and the greater distance of time they are drawn from, the more they are to be suspected. But by associating those precedents with a superstitious reverence for ancient things, as monks show relics and call them holy, the generality of mankind are deceived into the design. Governments now act as if they were afraid to awaken a single reflection in man. They are softly leading him to the sepulchre of precedents, to deaden his faculties and call attention from the scene of revolutions. They feel that he is arriving at knowledge faster than they wish, and their policy of precedents is the barometer of their fears. This political popery, like the ecclesiastical popery of old, has had its day, and is hastening to its exit. The ragged relic and the antiquated precedent, the monk and the monarch, will moulder together.

Government by precedent, without any regard to the principle of the precedent, is one of the vilest systems that can be set up. In numerous instances, the precedent ought to operate as a warning, and not as an example, and requires to be shunned instead of imitated; but instead of this, precedents are taken in the lump, and put at once for constitution and for law.

Either the doctrine of precedents is policy to keep a man in a state of ignorance, or it is a practical confession that wisdom degenerates in governments as governments increase in age, and can only hobble along by the stilts and crutches of precedents. How is it that the same persons who would proudly be thought wiser than their predecessors, appear at the same time only as the ghosts of departed wisdom? How strangely is antiquity treated! To some purposes it is spoken of as the times of darkness and ignorance, and to answer others, it is put for the light of the world.

If the doctrine of precedents is to be followed, the expenses of government need not continue the same. Why pay men extravagantly, who have but little to do? If everything that can happen is already in precedent, legislation is at an end, and precedent, like a dictionary, determines every case. Either, therefore, government has arrived at its dotage, and requires to be renovated, or all the occasions for exercising its wisdom have occurred.

We now see all over Europe, and particularly in England, the curious phenomenon of a nation looking one way, and the government the other—the one forward and the other backward. If governments are to go on by precedent, while nations go on by improvement, they must at last come to a final separation; and the sooner, and the more civilly they determine this point, the better.*[20](#)

Having thus spoken of constitutions generally, as things distinct from actual governments, let us proceed to consider the parts of which a constitution is composed.

Opinions differ more on this subject than with respect to the whole. That a nation ought to have a constitution, as a rule for the conduct of its government, is a simple question in which all men, not directly courtiers, will agree. It is only on the component parts that questions and opinions multiply.

But this difficulty, like every other, will diminish when put into a train of being rightly understood.

The first thing is, that a nation has a right to establish a constitution.

Whether it exercises this right in the most judicious manner at first is quite another case. It exercises it agreeably to the judgment it possesses; and by continuing to do so, all errors will at last be exploded.

When this right is established in a nation, there is no fear that it will be employed to its own injury. A nation can have no interest in being wrong.

Though all the constitutions of America are on one general principle, yet no two of them are exactly alike in their component parts, or in the distribution of the powers which they give to the actual governments. Some are more, and others less complex.

In forming a constitution, it is first necessary to consider what are the ends for which government is necessary? Secondly, what are the best means, and the least expensive, for accomplishing those ends?

Government is nothing more than a national association; and the object of this association is the good of all, as well individually as collectively. Every man wishes to pursue his occupation, and to enjoy the fruits of his labours and the produce of his property in peace and safety, and with the least possible expense. When these things are accomplished, all the objects for which government ought to be established are answered.

It has been customary to consider government under three distinct general heads. The legislative, the executive, and the judicial.

But if we permit our judgment to act unincumbered by the habit of multiplied terms, we can perceive no more than two divisions of power, of which civil government is composed, namely, that of legislating or enacting laws, and that of executing or administering them. Everything, therefore, appertaining to civil government, classes itself under one or other of these two divisions.

So far as regards the execution of the laws, that which is called the judicial power, is strictly and properly the executive power of every country. It is that power to which every individual has appeal, and which causes the laws to be executed; neither have we any other clear idea with respect to the official execution of the laws. In England, and also in America and France, this power begins with the magistrate, and proceeds up through all the courts of judicature.

I leave to courtiers to explain what is meant by calling monarchy the executive power. It is merely a name in which acts of government are done; and any other, or none at all, would answer the same purpose. Laws have neither more nor less authority on this account. It must be from the justness of their principles, and the interest which a nation feels therein, that they derive support; if they require any other than this, it is a sign that something in the system of government is imperfect. Laws difficult to be executed cannot be generally good.

With respect to the organization of the legislative power, different modes have been adopted in different countries. In America it is generally composed of two houses. In France it consists but of one, but in both countries, it is wholly by representation.

The case is, that mankind (from the long tyranny of assumed power) have had so few opportunities of making the necessary trials on modes and principles of government, in order to discover the best, that government is but now beginning to be known, and experience is yet wanting to determine many particulars.

The objections against two houses are, first, that there is an inconsistency in any part of a whole legislature, coming to a final determination by vote on any matter, whilst that matter, with respect to that whole, is yet only in a train of deliberation, and consequently open to new illustrations.

Secondly, That by taking the vote on each, as a separate body, it always admits of the possibility, and is often the case in practice, that the minority governs the majority, and that, in some instances, to a degree of great inconsistency.

Thirdly, That two houses arbitrarily checking or controlling each other is inconsistent; because it cannot be proved on the principles of just representation, that either should be wiser or better than the other. They may check in the wrong as well as in the right therefore to give the power where we cannot give the wisdom to use it, nor be assured of its being rightly used, renders the hazard at least equal to the precaution.*[21](#)

The objection against a single house is, that it is always in a condition of committing itself too soon.—But it should at the same time be remembered, that when there is a constitution which defines the power, and establishes the principles within which a legislature shall act, there is already a more effectual check provided, and more powerfully operating, than any other check can be. For example,

Were a Bill to be brought into any of the American legislatures similar to that which was passed into an act by the English parliament, at the commencement of George the First, to extend the duration of the assemblies to a longer period than they now sit, the check is in the constitution, which in effect says, Thus far shalt thou go and no further.

But in order to remove the objection against a single house (that of acting with too quick an impulse), and at the same time to avoid the inconsistencies, in some cases absurdities, arising from two houses, the following method has been proposed as an improvement upon both.

First, To have but one representation.

Secondly, To divide that representation, by lot, into two or three parts.

Thirdly, That every proposed bill shall be first debated in those parts by succession, that they may become the hearers of each other, but without taking any vote. After which the whole representation to assemble for a general debate and determination by vote.

To this proposed improvement has been added another, for the purpose of keeping the representation in the state of constant renovation; which is, that one-third of the representation of each county, shall go out at the expiration of one year, and the number be replaced by new elections. Another third at

the expiration of the second year replaced in like manner, and every third year to be a general election.*[22](#)

But in whatever manner the separate parts of a constitution may be arranged, there is one general principle that distinguishes freedom from slavery, which is, that all hereditary government over a people is to them a species of slavery, and representative government is freedom.

Considering government in the only light in which it should be considered, that of a National Association, it ought to be so constructed as not to be disordered by any accident happening among the parts; and, therefore, no extraordinary power, capable of producing such an effect, should be lodged in the hands of any individual. The death, sickness, absence or defection, of any one individual in a government, ought to be a matter of no more consequence, with respect to the nation, than if the same circumstance had taken place in a member of the English Parliament, or the French National Assembly.

Scarcely anything presents a more degrading character of national greatness, than its being thrown into confusion, by anything happening to or acted by any individual; and the ridiculousness of the scene is often increased by the natural insignificance of the person by whom it is occasioned. Were a government so constructed, that it could not go on unless a goose or a gander were present in the senate, the difficulties would be just as great and as real, on the flight or sickness of the goose, or the gander, as if it were called a King. We laugh at individuals for the silly difficulties they make to themselves, without perceiving that the greatest of all ridiculous things are acted in governments.*[23](#)

All the constitutions of America are on a plan that excludes the childish embarrassments which occur in monarchical countries. No suspension of government can there take place for a moment, from any circumstances whatever. The system of representation provides for everything, and is the only system in which nations and governments can always appear in their proper character.

As extraordinary power ought not to be lodged in the hands of any individual, so ought there to be no appropriations of public money to any person, beyond what his services in a state may be worth. It signifies not whether a man be called a president, a king, an emperor, a senator, or by any other name which propriety or folly may devise or arrogance assume; it

is only a certain service he can perform in the state; and the service of any such individual in the routine of office, whether such office be called monarchical, presidential, senatorial, or by any other name or title, can never exceed the value of ten thousand pounds a year. All the great services that are done in the world are performed by volunteer characters, who accept nothing for them; but the routine of office is always regulated to such a general standard of abilities as to be within the compass of numbers in every country to perform, and therefore cannot merit very extraordinary recompense. Government, says Swift, is a Plain thing, and fitted to the capacity of many heads.

It is inhuman to talk of a million sterling a year, paid out of the public taxes of any country, for the support of any individual, whilst thousands who are forced to contribute thereto, are pining with want, and struggling with misery. Government does not consist in a contrast between prisons and palaces, between poverty and pomp; it is not instituted to rob the needy of his mite, and increase the wretchedness of the wretched.—But on this part of the subject I shall speak hereafter, and confine myself at present to political observations.

When extraordinary power and extraordinary pay are allotted to any individual in a government, he becomes the center, round which every kind of corruption generates and forms. Give to any man a million a year, and add thereto the power of creating and disposing of places, at the expense of a country, and the liberties of that country are no longer secure. What is called the splendour of a throne is no other than the corruption of the state. It is made up of a band of parasites, living in luxurious indolence, out of the public taxes.

When once such a vicious system is established it becomes the guard and protection of all inferior abuses. The man who is in the receipt of a million a year is the last person to promote a spirit of reform, lest, in the event, it should reach to himself. It is always his interest to defend inferior abuses, as so many outworks to protect the citadel; and on this species of political fortification, all the parts have such a common dependence that it is never to be expected they will attack each other.*[24](#)

Monarchy would not have continued so many ages in the world, had it not been for the abuses it protects. It is the master-fraud, which shelters all

others. By admitting a participation of the spoil, it makes itself friends; and when it ceases to do this it will cease to be the idol of courtiers.

As the principle on which constitutions are now formed rejects all hereditary pretensions to government, it also rejects all that catalogue of assumptions known by the name of prerogatives.

If there is any government where prerogatives might with apparent safety be entrusted to any individual, it is in the federal government of America. The president of the United States of America is elected only for four years. He is not only responsible in the general sense of the word, but a particular mode is laid down in the constitution for trying him. He cannot be elected under thirty-five years of age; and he must be a native of the country.

In a comparison of these cases with the Government of England, the difference when applied to the latter amounts to an absurdity. In England the person who exercises prerogative is often a foreigner; always half a foreigner, and always married to a foreigner. He is never in full natural or political connection with the country, is not responsible for anything, and becomes of age at eighteen years; yet such a person is permitted to form foreign alliances, without even the knowledge of the nation, and to make war and peace without its consent.

But this is not all. Though such a person cannot dispose of the government in the manner of a testator, he dictates the marriage connections, which, in effect, accomplish a great part of the same end. He cannot directly bequeath half the government to Prussia, but he can form a marriage partnership that will produce almost the same thing. Under such circumstances, it is happy for England that she is not situated on the Continent, or she might, like Holland, fall under the dictatorship of Prussia. Holland, by marriage, is as effectually governed by Prussia, as if the old tyranny of bequeathing the government had been the means.

The presidency in America (or, as it is sometimes called, the executive) is the only office from which a foreigner is excluded, and in England it is the only one to which he is admitted. A foreigner cannot be a member of Parliament, but he may be what is called a king. If there is any reason for excluding foreigners, it ought to be from those offices where mischief can most be acted, and where, by uniting every bias of interest and attachment, the trust is best secured. But as nations proceed in the great business of forming constitutions, they will examine with more precision into the nature

and business of that department which is called the executive. What the legislative and judicial departments are every one can see; but with respect to what, in Europe, is called the executive, as distinct from those two, it is either a political superfluity or a chaos of unknown things.

Some kind of official department, to which reports shall be made from the different parts of a nation, or from abroad, to be laid before the national representatives, is all that is necessary; but there is no consistency in calling this the executive; neither can it be considered in any other light than as inferior to the legislative. The sovereign authority in any country is the power of making laws, and everything else is an official department.

Next to the arrangement of the principles and the organization of the several parts of a constitution, is the provision to be made for the support of the persons to whom the nation shall confide the administration of the constitutional powers.

A nation can have no right to the time and services of any person at his own expense, whom it may choose to employ or entrust in any department whatever; neither can any reason be given for making provision for the support of any one part of a government and not for the other.

But admitting that the honour of being entrusted with any part of a government is to be considered a sufficient reward, it ought to be so to every person alike. If the members of the legislature of any country are to serve at their own expense that which is called the executive, whether monarchical or by any other name, ought to serve in like manner. It is inconsistent to pay the one, and accept the service of the other gratis.

In America, every department in the government is decently provided for; but no one is extravagantly paid. Every member of Congress, and of the Assemblies, is allowed a sufficiency for his expenses. Whereas in England, a most prodigal provision is made for the support of one part of the Government, and none for the other, the consequence of which is that the one is furnished with the means of corruption and the other is put into the condition of being corrupted. Less than a fourth part of such expense, applied as it is in America, would remedy a great part of the corruption.

Another reform in the American constitution is the exploding all oaths of personality. The oath of allegiance in America is to the nation only. The putting any individual as a figure for a nation is improper. The happiness of a nation is the superior object, and therefore the intention of an oath of

allegiance ought not to be obscured by being figuratively taken, to, or in the name of, any person. The oath, called the civic oath, in France, viz., "the nation, the law, and the king," is improper. If taken at all, it ought to be as in America, to the nation only. The law may or may not be good; but, in this place, it can have no other meaning, than as being conducive to the happiness of a nation, and therefore is included in it. The remainder of the oath is improper, on the ground, that all personal oaths ought to be abolished. They are the remains of tyranny on one part and slavery on the other; and the name of the Creator ought not to be introduced to witness the degradation of his creation; or if taken, as is already mentioned, as figurative of the nation, it is in this place redundant. But whatever apology may be made for oaths at the first establishment of a government, they ought not to be permitted afterwards. If a government requires the support of oaths, it is a sign that it is not worth supporting, and ought not to be supported. Make government what it ought to be, and it will support itself.

To conclude this part of the subject:—One of the greatest improvements that have been made for the perpetual security and progress of constitutional liberty, is the provision which the new constitutions make for occasionally revising, altering, and amending them.

The principle upon which Mr. Burke formed his political creed, that of "binding and controlling posterity to the end of time, and of renouncing and abdicating the rights of all posterity, for ever," is now become too detestable to be made a subject of debate; and therefore, I pass it over with no other notice than exposing it.

Government is but now beginning to be known. Hitherto it has been the mere exercise of power, which forbade all effectual enquiry into rights, and grounded itself wholly on possession. While the enemy of liberty was its judge, the progress of its principles must have been small indeed.

The constitutions of America, and also that of France, have either affixed a period for their revision, or laid down the mode by which improvement shall be made. It is perhaps impossible to establish anything that combines principles with opinions and practice, which the progress of circumstances, through a length of years, will not in some measure derange, or render inconsistent; and, therefore, to prevent inconveniences accumulating, till they discourage reformation or provoke revolutions, it is best to provide the means of regulating them as they occur. The Rights of Man are the

rights of all generations of men, and cannot be monopolised by any. That which is worth following, will be followed for the sake of its worth, and it is in this that its security lies, and not in any conditions with which it may be encumbered. When a man leaves property to his heirs, he does not connect it with an obligation that they shall accept it. Why, then, should we do otherwise with respect to constitutions? The best constitution that could now be devised, consistent with the condition of the present moment, may be far short of that excellence which a few years may afford. There is a morning of reason rising upon man on the subject of government, that has not appeared before. As the barbarism of the present old governments expires, the moral conditions of nations with respect to each other will be changed. Man will not be brought up with the savage idea of considering his species as his enemy, because the accident of birth gave the individuals existence in countries distinguished by different names; and as constitutions have always some relation to external as well as to domestic circumstances, the means of benefitting by every change, foreign or domestic, should be a part of every constitution. We already see an alteration in the national disposition of England and France towards each other, which, when we look back to only a few years, is itself a Revolution. Who could have foreseen, or who could have believed, that a French National Assembly would ever have been a popular toast in England, or that a friendly alliance of the two nations should become the wish of either? It shows that man, were he not corrupted by governments, is naturally the friend of man, and that human nature is not of itself vicious. That spirit of jealousy and ferocity, which the governments of the two countries inspired, and which they rendered subservient to the purpose of taxation, is now yielding to the dictates of reason, interest, and humanity. The trade of courts is beginning to be understood, and the affectation of mystery, with all the artificial sorcery by which they imposed upon mankind, is on the decline. It has received its death-wound; and though it may linger, it will expire. Government ought to be as much open to improvement as anything which appertains to man, instead of which it has been monopolised from age to age, by the most ignorant and vicious of the human race. Need we any other proof of their wretched management, than the excess of debts and taxes with which every nation groans, and the quarrels into which they have precipitated the world? Just emerging from such a barbarous condition, it is too soon to determine to what extent of improvement government may yet

be carried. For what we can foresee, all Europe may form but one great Republic, and man be free of the whole.

CHAPTER V. WAYS AND MEANS OF IMPROVING THE CONDITION OF EUROPE

INTERSPERSED WITH MISCELLANEOUS OBSERVATIONS

In contemplating a subject that embraces with equatorial magnitude the whole region of humanity it is impossible to confine the pursuit in one single direction. It takes ground on every character and condition that appertains to man, and blends the individual, the nation, and the world. From a small spark, kindled in America, a flame has arisen not to be extinguished. Without consuming, like the *Ultima Ratio Regum*, it winds its progress from nation to nation, and conquers by a silent operation. Man finds himself changed, he scarcely perceives how. He acquires a knowledge of his rights by attending justly to his interest, and discovers in the event that the strength and powers of despotism consist wholly in the fear of resisting it, and that, in order "to be free, it is sufficient that he wills it."

Having in all the preceding parts of this work endeavoured to establish a system of principles as a basis on which governments ought to be erected, I shall proceed in this, to the ways and means of rendering them into practice. But in order to introduce this part of the subject with more propriety, and stronger effect, some preliminary observations, deducible from, or connected with, those principles, are necessary.

Whatever the form or constitution of government may be, it ought to have no other object than the general happiness. When, instead of this, it operates to create and increase wretchedness in any of the parts of society, it is on a wrong system, and reformation is necessary. Customary language has classed the condition of man under the two descriptions of civilised and uncivilised life. To the one it has ascribed felicity and affluence; to the other hardship and want. But, however our imagination may be impressed by painting and comparison, it is nevertheless true, that a great portion of mankind, in what are called civilised countries, are in a state of poverty and wretchedness, far below the condition of an Indian. I speak not of one

country, but of all. It is so in England, it is so all over Europe. Let us enquire into the cause.

It lies not in any natural defect in the principles of civilisation, but in preventing those principles having a universal operation; the consequence of which is, a perpetual system of war and expense, that drains the country, and defeats the general felicity of which civilisation is capable. All the European governments (France now excepted) are constructed not on the principle of universal civilisation, but on the reverse of it. So far as those governments relate to each other, they are in the same condition as we conceive of savage uncivilised life; they put themselves beyond the law as well of God as of man, and are, with respect to principle and reciprocal conduct, like so many individuals in a state of nature. The inhabitants of every country, under the civilisation of laws, easily civilise together, but governments being yet in an uncivilised state, and almost continually at war, they pervert the abundance which civilised life produces to carry on the uncivilised part to a greater extent. By thus engrafting the barbarism of government upon the internal civilisation of a country, it draws from the latter, and more especially from the poor, a great portion of those earnings, which should be applied to their own subsistence and comfort. Apart from all reflections of morality and philosophy, it is a melancholy fact that more than one-fourth of the labour of mankind is annually consumed by this barbarous system. What has served to continue this evil, is the pecuniary advantage which all the governments of Europe have found in keeping up this state of uncivilisation. It affords to them pretences for power, and revenue, for which there would be neither occasion nor apology, if the circle of civilisation were rendered complete. Civil government alone, or the government of laws, is not productive of pretences for many taxes; it operates at home, directly under the eye of the country, and precludes the possibility of much imposition. But when the scene is laid in the uncivilised contention of governments, the field of pretences is enlarged, and the country, being no longer a judge, is open to every imposition, which governments please to act. Not a thirtieth, scarcely a fortieth, part of the taxes which are raised in England are either occasioned by, or applied to, the purpose of civil government. It is not difficult to see, that the whole which the actual government does in this respect, is to enact laws, and that the country administers and executes them, at its own expense, by means of magistrates, juries, sessions, and assize, over and above the taxes which it

pays. In this view of the case, we have two distinct characters of government; the one the civil government, or the government of laws, which operates at home, the other the court or cabinet government, which operates abroad, on the rude plan of uncivilised life; the one attended with little charge, the other with boundless extravagance; and so distinct are the two, that if the latter were to sink, as it were, by a sudden opening of the earth, and totally disappear, the former would not be deranged. It would still proceed, because it is the common interest of the nation that it should, and all the means are in practice. Revolutions, then, have for their object a change in the moral condition of governments, and with this change the burthen of public taxes will lessen, and civilisation will be left to the enjoyment of that abundance, of which it is now deprived. In contemplating the whole of this subject, I extend my views into the department of commerce. In all my publications, where the matter would admit, I have been an advocate for commerce, because I am a friend to its effects. It is a pacific system, operating to cordialise mankind, by rendering nations, as well as individuals, useful to each other. As to the mere theoretical reformation, I have never preached it up. The most effectual process is that of improving the condition of man by means of his interest; and it is on this ground that I take my stand. If commerce were permitted to act to the universal extent it is capable, it would extirpate the system of war, and produce a revolution in the uncivilised state of governments. The invention of commerce has arisen since those governments began, and is the greatest approach towards universal civilisation that has yet been made by any means not immediately flowing from moral principles. Whatever has a tendency to promote the civil intercourse of nations by an exchange of benefits, is a subject as worthy of philosophy as of politics. Commerce is no other than the traffic of two individuals, multiplied on a scale of numbers; and by the same rule that nature intended for the intercourse of two, she intended that of all. For this purpose she has distributed the materials of manufactures and commerce, in various and distant parts of a nation and of the world; and as they cannot be procured by war so cheaply or so commodiously as by commerce, she has rendered the latter the means of extirpating the former. As the two are nearly the opposite of each other, consequently, the uncivilised state of the European governments is injurious to commerce. Every kind of destruction or embarrassment serves to lessen the quantity, and it matters but little in what part of the commercial world

the reduction begins. Like blood, it cannot be taken from any of the parts, without being taken from the whole mass in circulation, and all partake of the loss. When the ability in any nation to buy is destroyed, it equally involves the seller. Could the government of England destroy the commerce of all other nations, she would most effectually ruin her own. It is possible that a nation may be the carrier for the world, but she cannot be the merchant. She cannot be the seller and buyer of her own merchandise. The ability to buy must reside out of herself; and, therefore, the prosperity of any commercial nation is regulated by the prosperity of the rest. If they are poor she cannot be rich, and her condition, be what it may, is an index of the height of the commercial tide in other nations. That the principles of commerce, and its universal operation may be understood, without understanding the practice, is a position that reason will not deny; and it is on this ground only that I argue the subject. It is one thing in the counting-house, in the world it is another. With respect to its operation it must necessarily be contemplated as a reciprocal thing; that only one-half its powers resides within the nation, and that the whole is as effectually destroyed by the destroying the half that resides without, as if the destruction had been committed on that which is within; for neither can act without the other. When in the last, as well as in former wars, the commerce of England sunk, it was because the quantity was lessened everywhere; and it now rises, because commerce is in a rising state in every nation. If England, at this day, imports and exports more than at any former period, the nations with which she trades must necessarily do the same; her imports are their exports, and vice versa. There can be no such thing as a nation flourishing alone in commerce: she can only participate; and the destruction of it in any part must necessarily affect all. When, therefore, governments are at war, the attack is made upon a common stock of commerce, and the consequence is the same as if each had attacked his own. The present increase of commerce is not to be attributed to ministers, or to any political contrivances, but to its own natural operation in consequence of peace. The regular markets had been destroyed, the channels of trade broken up, the high road of the seas infested with robbers of every nation, and the attention of the world called to other objects. Those interruptions have ceased, and peace has restored the deranged condition of things to their proper order.*[25](#) It is worth remarking that every nation reckons the balance of trade in its own favour; and therefore something must be irregular in the

common ideas upon this subject. The fact, however, is true, according to what is called a balance; and it is from this cause that commerce is universally supported. Every nation feels the advantage, or it would abandon the practice: but the deception lies in the mode of making up the accounts, and in attributing what are called profits to a wrong cause. Mr. Pitt has sometimes amused himself, by showing what he called a balance of trade from the custom-house books. This mode of calculating not only affords no rule that is true, but one that is false. In the first place, Every cargo that departs from the custom-house appears on the books as an export; and, according to the custom-house balance, the losses at sea, and by foreign failures, are all reckoned on the side of profit because they appear as exports.

Secondly, Because the importation by the smuggling trade does not appear on the custom-house books, to arrange against the exports.

No balance, therefore, as applying to superior advantages, can be drawn from these documents; and if we examine the natural operation of commerce, the idea is fallacious; and if true, would soon be injurious. The great support of commerce consists in the balance being a level of benefits among all nations.

Two merchants of different nations trading together, will both become rich, and each makes the balance in his own favour; consequently, they do not get rich of each other; and it is the same with respect to the nations in which they reside. The case must be, that each nation must get rich out of its own means, and increases that riches by something which it procures from another in exchange.

If a merchant in England sends an article of English manufacture abroad which costs him a shilling at home, and imports something which sells for two, he makes a balance of one shilling in his favour; but this is not gained out of the foreign nation or the foreign merchant, for he also does the same by the articles he receives, and neither has the advantage upon the other. The original value of the two articles in their proper countries was but two shillings; but by changing their places, they acquire a new idea of value, equal to double what they had first, and that increased value is equally divided.

There is no otherwise a balance on foreign than on domestic commerce. The merchants of London and Newcastle trade on the same principles, as if

they resided in different nations, and make their balances in the same manner: yet London does not get rich out of Newcastle, any more than Newcastle out of London: but coals, the merchandize of Newcastle, have an additional value at London, and London merchandize has the same at Newcastle.

Though the principle of all commerce is the same, the domestic, in a national view, is the part the most beneficial; because the whole of the advantages, on both sides, rests within the nation; whereas, in foreign commerce, it is only a participation of one-half.

The most unprofitable of all commerce is that connected with foreign dominion. To a few individuals it may be beneficial, merely because it is commerce; but to the nation it is a loss. The expense of maintaining dominion more than absorbs the profits of any trade. It does not increase the general quantity in the world, but operates to lessen it; and as a greater mass would be afloat by relinquishing dominion, the participation without the expense would be more valuable than a greater quantity with it.

But it is impossible to engross commerce by dominion; and therefore it is still more fallacious. It cannot exist in confined channels, and necessarily breaks out by regular or irregular means, that defeat the attempt: and to succeed would be still worse. France, since the Revolution, has been more indifferent as to foreign possessions, and other nations will become the same when they investigate the subject with respect to commerce.

To the expense of dominion is to be added that of navies, and when the amounts of the two are subtracted from the profits of commerce, it will appear, that what is called the balance of trade, even admitting it to exist, is not enjoyed by the nation, but absorbed by the Government.

The idea of having navies for the protection of commerce is delusive. It is putting means of destruction for the means of protection. Commerce needs no other protection than the reciprocal interest which every nation feels in supporting it—it is common stock—it exists by a balance of advantages to all; and the only interruption it meets, is from the present uncivilised state of governments, and which it is its common interest to reform.*[26](#)

Quitting this subject, I now proceed to other matters.—As it is necessary to include England in the prospect of a general reformation, it is proper to inquire into the defects of its government. It is only by each nation

reforming its own, that the whole can be improved, and the full benefit of reformation enjoyed. Only partial advantages can flow from partial reforms.

France and England are the only two countries in Europe where a reformation in government could have successfully begun. The one secure by the ocean, and the other by the immensity of its internal strength, could defy the malignancy of foreign despotism. But it is with revolutions as with commerce, the advantages increase by their becoming general, and double to either what each would receive alone.

As a new system is now opening to the view of the world, the European courts are plotting to counteract it. Alliances, contrary to all former systems, are agitating, and a common interest of courts is forming against the common interest of man. This combination draws a line that runs throughout Europe, and presents a cause so entirely new as to exclude all calculations from former circumstances. While despotism warred with despotism, man had no interest in the contest; but in a cause that unites the soldier with the citizen, and nation with nation, the despotism of courts, though it feels the danger and meditates revenge, is afraid to strike.

No question has arisen within the records of history that pressed with the importance of the present. It is not whether this or that party shall be in or not, or Whig or Tory, high or low shall prevail; but whether man shall inherit his rights, and universal civilisation take place? Whether the fruits of his labours shall be enjoyed by himself or consumed by the profligacy of governments? Whether robbery shall be banished from courts, and wretchedness from countries?

When, in countries that are called civilised, we see age going to the workhouse and youth to the gallows, something must be wrong in the system of government. It would seem, by the exterior appearance of such countries, that all was happiness; but there lies hidden from the eye of common observation, a mass of wretchedness, that has scarcely any other chance, than to expire in poverty or infamy. Its entrance into life is marked with the presage of its fate; and until this is remedied, it is in vain to punish.

Civil government does not exist in executions; but in making such provision for the instruction of youth and the support of age, as to exclude, as much as possible, profligacy from the one and despair from the other. Instead of this, the resources of a country are lavished upon kings, upon courts, upon hirelings, impostors and prostitutes; and even the poor

themselves, with all their wants upon them, are compelled to support the fraud that oppresses them.

Why is it that scarcely any are executed but the poor? The fact is a proof, among other things, of a wretchedness in their condition. Bred up without morals, and cast upon the world without a prospect, they are the exposed sacrifice of vice and legal barbarity. The millions that are superfluously wasted upon governments are more than sufficient to reform those evils, and to benefit the condition of every man in a nation, not included within the purlieu of a court. This I hope to make appear in the progress of this work.

It is the nature of compassion to associate with misfortune. In taking up this subject I seek no recompense—I fear no consequence. Fortified with that proud integrity, that disdains to triumph or to yield, I will advocate the Rights of Man.

It is to my advantage that I have served an apprenticeship to life. I know the value of moral instruction, and I have seen the danger of the contrary.

At an early period—little more than sixteen years of age, raw and adventurous, and heated with the false heroism of a master*[27](#) who had served in a man-of-war—I began the carver of my own fortune, and entered on board the Terrible Privateer, Captain Death. From this adventure I was happily prevented by the affectionate and moral remonstrance of a good father, who, from his own habits of life, being of the Quaker profession, must begin to look upon me as lost. But the impression, much as it effected at the time, began to wear away, and I entered afterwards in the King of Prussia Privateer, Captain Mendez, and went with her to sea. Yet, from such a beginning, and with all the inconvenience of early life against me, I am proud to say, that with a perseverance undismayed by difficulties, a disinterestedness that compelled respect, I have not only contributed to raise a new empire in the world, founded on a new system of government, but I have arrived at an eminence in political literature, the most difficult of all lines to succeed and excel in, which aristocracy with all its aids has not been able to reach or to rival.*[28](#)

Knowing my own heart and feeling myself as I now do, superior to all the skirmish of party, the inveteracy of interested or mistaken opponents, I answer not to falsehood or abuse, but proceed to the defects of the English Government.

I begin with charters and corporations.

It is a perversion of terms to say that a charter gives rights. It operates by a contrary effect—that of taking rights away. Rights are inherently in all the inhabitants; but charters, by annulling those rights, in the majority, leave the right, by exclusion, in the hands of a few. If charters were constructed so as to express in direct terms, "that every inhabitant, who is not a member of a corporation, shall not exercise the right of voting," such charters would, in the face, be charters not of rights, but of exclusion. The effect is the same under the form they now stand; and the only persons on whom they operate are the persons whom they exclude. Those whose rights are guaranteed, by not being taken away, exercise no other rights than as members of the community they are entitled to without a charter; and, therefore, all charters have no other than an indirect negative operation. They do not give rights to A, but they make a difference in favour of A by taking away the right of B, and consequently are instruments of injustice.

But charters and corporations have a more extensive evil effect than what relates merely to elections. They are sources of endless contentions in the places where they exist, and they lessen the common rights of national society. A native of England, under the operation of these charters and corporations, cannot be said to be an Englishman in the full sense of the word. He is not free of the nation, in the same manner that a Frenchman is free of France, and an American of America. His rights are circumscribed to the town, and, in some cases, to the parish of his birth; and all other parts, though in his native land, are to him as a foreign country. To acquire a residence in these, he must undergo a local naturalisation by purchase, or he is forbidden or expelled the place. This species of feudality is kept up to aggrandise the corporations at the ruin of towns; and the effect is visible.

The generality of corporation towns are in a state of solitary decay, and prevented from further ruin only by some circumstance in their situation, such as a navigable river, or a plentiful surrounding country. As population is one of the chief sources of wealth (for without it land itself has no value), everything which operates to prevent it must lessen the value of property; and as corporations have not only this tendency, but directly this effect, they cannot but be injurious. If any policy were to be followed, instead of that of general freedom, to every person to settle where he chose (as in France or

America) it would be more consistent to give encouragement to new comers than to preclude their admission by exacting premiums from them.*[29](#)

The persons most immediately interested in the abolition of corporations are the inhabitants of the towns where corporations are established. The instances of Manchester, Birmingham, and Sheffield show, by contrast, the injuries which those Gothic institutions are to property and commerce. A few examples may be found, such as that of London, whose natural and commercial advantage, owing to its situation on the Thames, is capable of bearing up against the political evils of a corporation; but in almost all other cases the fatality is too visible to be doubted or denied.

Though the whole nation is not so directly affected by the depression of property in corporation towns as the inhabitants themselves, it partakes of the consequence. By lessening the value of property, the quantity of national commerce is curtailed. Every man is a customer in proportion to his ability; and as all parts of a nation trade with each other, whatever affects any of the parts must necessarily communicate to the whole.

As one of the Houses of the English Parliament is, in a great measure, made up of elections from these corporations; and as it is unnatural that a pure stream should flow from a foul fountain, its vices are but a continuation of the vices of its origin. A man of moral honour and good political principles cannot submit to the mean drudgery and disgraceful arts, by which such elections are carried. To be a successful candidate, he must be destitute of the qualities that constitute a just legislator; and being thus disciplined to corruption by the mode of entering into Parliament, it is not to be expected that the representative should be better than the man.

Mr. Burke, in speaking of the English representation, has advanced as bold a challenge as ever was given in the days of chivalry. "Our representation," says he, "has been found perfectly adequate to all the purposes for which a representation of the people can be desired or devised." "I defy," continues he, "the enemies of our constitution to show the contrary."—This declaration from a man who has been in constant opposition to all the measures of parliament the whole of his political life, a year or two excepted, is most extraordinary; and, comparing him with himself, admits of no other alternative, than that he acted against his judgment as a member, or has declared contrary to it as an author.

But it is not in the representation only that the defects lie, and therefore I proceed in the next place to the aristocracy.

What is called the House of Peers, is constituted on a ground very similar to that, against which there is no law in other cases. It amounts to a combination of persons in one common interest. No better reason can be given, why a house of legislation should be composed entirely of men whose occupation consists in letting landed property, than why it should be composed of those who hire, or of brewers, or bakers, or any other separate class of men. Mr. Burke calls this house "the great ground and pillar of security to the landed interest." Let us examine this idea.

What pillar of security does the landed interest require more than any other interest in the state, or what right has it to a distinct and separate representation from the general interest of a nation? The only use to be made of this power (and which it always has made), is to ward off taxes from itself, and throw the burthen upon those articles of consumption by which itself would be least affected.

That this has been the consequence (and will always be the consequence) of constructing governments on combinations, is evident with respect to England, from the history of its taxes.

Notwithstanding taxes have increased and multiplied upon every article of common consumption, the land-tax, which more particularly affects this "pillar," has diminished. In 1778 the amount of the land-tax was £1,950,000, which is half-a-million less than it produced almost a hundred years ago,*[30](#) notwithstanding the rentals are in many instances doubled since that period.

Before the coming of the Hanoverians, the taxes were divided in nearly equal proportions between the land and articles of consumption, the land bearing rather the largest share: but since that era nearly thirteen millions annually of new taxes have been thrown upon consumption. The consequence of which has been a constant increase in the number and wretchedness of the poor, and in the amount of the poor-rates. Yet here again the burthen does not fall in equal proportions on the aristocracy with the rest of the community. Their residences, whether in town or country, are not mixed with the habitations of the poor. They live apart from distress, and the expense of relieving it. It is in manufacturing towns and labouring

villages that those burthens press the heaviest; in many of which it is one class of poor supporting another.

Several of the most heavy and productive taxes are so contrived, as to give an exemption to this pillar, thus standing in its own defence. The tax upon beer brewed for sale does not affect the aristocracy, who brew their own beer free from this duty. It falls only on those who have not conveniency or ability to brew, and who must purchase it in small quantities. But what will mankind think of the justice of taxation, when they know that this tax alone, from which the aristocracy are from circumstances exempt, is nearly equal to the whole of the land-tax, being in the year 1788, and it is not less now, L1,666,152, and with its proportion of the taxes on malt and hops, it exceeds it.—That a single article, thus partially consumed, and that chiefly by the working part, should be subject to a tax, equal to that on the whole rental of a nation, is, perhaps, a fact not to be paralleled in the histories of revenues.

This is one of the circumstances resulting from a house of legislation, composed on the ground of a combination of common interest; for whatever their separate politics as to parties may be, in this they are united. Whether a combination acts to raise the price of any article for sale, or rate of wages; or whether it acts to throw taxes from itself upon another class of the community, the principle and the effect are the same; and if the one be illegal, it will be difficult to show that the other ought to exist.

It is no use to say that taxes are first proposed in the House of Commons; for as the other house has always a negative, it can always defend itself; and it would be ridiculous to suppose that its acquiescence in the measures to be proposed were not understood before hand. Besides which, it has obtained so much influence by borough-traffic, and so many of its relations and connections are distributed on both sides the commons, as to give it, besides an absolute negative in one house, a preponderancy in the other, in all matters of common concern.

It is difficult to discover what is meant by the landed interest, if it does not mean a combination of aristocratical landholders, opposing their own pecuniary interest to that of the farmer, and every branch of trade, commerce, and manufacture. In all other respects it is the only interest that needs no partial protection. It enjoys the general protection of the world. Every individual, high or low, is interested in the fruits of the earth; men,

women, and children, of all ages and degrees, will turn out to assist the farmer, rather than a harvest should not be got in; and they will not act thus by any other property. It is the only one for which the common prayer of mankind is put up, and the only one that can never fail from the want of means. It is the interest, not of the policy, but of the existence of man, and when it ceases, he must cease to be.

No other interest in a nation stands on the same united support. Commerce, manufactures, arts, sciences, and everything else, compared with this, are supported but in parts. Their prosperity or their decay has not the same universal influence. When the valleys laugh and sing, it is not the farmer only, but all creation that rejoice. It is a prosperity that excludes all envy; and this cannot be said of anything else.

Why then, does Mr. Burke talk of his house of peers as the pillar of the landed interest? Were that pillar to sink into the earth, the same landed property would continue, and the same ploughing, sowing, and reaping would go on. The aristocracy are not the farmers who work the land, and raise the produce, but are the mere consumers of the rent; and when compared with the active world are the drones, a seraglio of males, who neither collect the honey nor form the hive, but exist only for lazy enjoyment.

Mr. Burke, in his first essay, called aristocracy "the Corinthian capital of polished society." Towards completing the figure, he has now added the pillar; but still the base is wanting; and whenever a nation choose to act a Samson, not blind, but bold, down will go the temple of Dagon, the Lords and the Philistines.

If a house of legislation is to be composed of men of one class, for the purpose of protecting a distinct interest, all the other interests should have the same. The inequality, as well as the burthen of taxation, arises from admitting it in one case, and not in all. Had there been a house of farmers, there had been no game laws; or a house of merchants and manufacturers, the taxes had neither been so unequal nor so excessive. It is from the power of taxation being in the hands of those who can throw so great a part of it from their own shoulders, that it has raged without a check.

Men of small or moderate estates are more injured by the taxes being thrown on articles of consumption, than they are eased by warding it from landed property, for the following reasons:

First, They consume more of the productive taxable articles, in proportion to their property, than those of large estates.

Secondly, Their residence is chiefly in towns, and their property in houses; and the increase of the poor-rates, occasioned by taxes on consumption, is in much greater proportion than the land-tax has been favoured. In Birmingham, the poor-rates are not less than seven shillings in the pound. From this, as is already observed, the aristocracy are in a great measure exempt.

These are but a part of the mischiefs flowing from the wretched scheme of an house of peers.

As a combination, it can always throw a considerable portion of taxes from itself; and as an hereditary house, accountable to nobody, it resembles a rotten borough, whose consent is to be courted by interest. There are but few of its members, who are not in some mode or other participators, or disposers of the public money. One turns a candle-holder, or a lord in waiting; another a lord of the bed-chamber, a groom of the stole, or any insignificant nominal office to which a salary is annexed, paid out of the public taxes, and which avoids the direct appearance of corruption. Such situations are derogatory to the character of man; and where they can be submitted to, honour cannot reside.

To all these are to be added the numerous dependants, the long list of younger branches and distant relations, who are to be provided for at the public expense: in short, were an estimation to be made of the charge of aristocracy to a nation, it will be found nearly equal to that of supporting the poor. The Duke of Richmond alone (and there are cases similar to his) takes away as much for himself as would maintain two thousand poor and aged persons. Is it, then, any wonder, that under such a system of government, taxes and rates have multiplied to their present extent?

In stating these matters, I speak an open and disinterested language, dictated by no passion but that of humanity. To me, who have not only refused offers, because I thought them improper, but have declined rewards I might with reputation have accepted, it is no wonder that meanness and imposition appear disgusting. Independence is my happiness, and I view things as they are, without regard to place or person; my country is the world, and my religion is to do good.

Mr. Burke, in speaking of the aristocratical law of primogeniture, says, "it is the standing law of our landed inheritance; and which, without question, has a tendency, and I think," continues he, "a happy tendency, to preserve a character of weight and consequence."

Mr. Burke may call this law what he pleases, but humanity and impartial reflection will denounce it as a law of brutal injustice. Were we not accustomed to the daily practice, and did we only hear of it as the law of some distant part of the world, we should conclude that the legislators of such countries had not arrived at a state of civilisation.

As to its preserving a character of weight and consequence, the case appears to me directly the reverse. It is an attaint upon character; a sort of privateering on family property. It may have weight among dependent tenants, but it gives none on a scale of national, and much less of universal character. Speaking for myself, my parents were not able to give me a shilling, beyond what they gave me in education; and to do this they distressed themselves: yet, I possess more of what is called consequence, in the world, than any one in Mr. Burke's catalogue of aristocrats.

Having thus glanced at some of the defects of the two houses of parliament, I proceed to what is called the crown, upon which I shall be very concise.

It signifies a nominal office of a million sterling a year, the business of which consists in receiving the money. Whether the person be wise or foolish, sane or insane, a native or a foreigner, matters not. Every ministry acts upon the same idea that Mr. Burke writes, namely, that the people must be hood-winked, and held in superstitious ignorance by some bugbear or other; and what is called the crown answers this purpose, and therefore it answers all the purposes to be expected from it. This is more than can be said of the other two branches.

The hazard to which this office is exposed in all countries, is not from anything that can happen to the man, but from what may happen to the nation—the danger of its coming to its senses.

It has been customary to call the crown the executive power, and the custom is continued, though the reason has ceased.

It was called the executive, because the person whom it signified used, formerly, to act in the character of a judge, in administering or executing the laws. The tribunals were then a part of the court. The power, therefore,

which is now called the judicial, is what was called the executive and, consequently, one or other of the terms is redundant, and one of the offices useless. When we speak of the crown now, it means nothing; it signifies neither a judge nor a general: besides which it is the laws that govern, and not the man. The old terms are kept up, to give an appearance of consequence to empty forms; and the only effect they have is that of increasing expenses.

Before I proceed to the means of rendering governments more conducive to the general happiness of mankind, than they are at present, it will not be improper to take a review of the progress of taxation in England.

It is a general idea, that when taxes are once laid on, they are never taken off. However true this may have been of late, it was not always so. Either, therefore, the people of former times were more watchful over government than those of the present, or government was administered with less extravagance.

It is now seven hundred years since the Norman conquest, and the establishment of what is called the crown. Taking this portion of time in seven separate periods of one hundred years each, the amount of the annual taxes, at each period, will be as follows:

<i>Annual taxes levied by William the Conqueror,</i>	
<i>beginning in the year 1066</i>	<i>L400,000</i>
<i>Annual taxes at 100 years from the conquest (1166)</i>	<i>200,000</i>
<i>Annual taxes at 200 years from the conquest (1266)</i>	<i>150,000</i>
<i>Annual taxes at 300 years from the conquest (1366)</i>	<i>130,000</i>
<i>Annual taxes at 400 years from the conquest (1466)</i>	<i>100,000</i>

These statements and those which follow, are taken from Sir John Sinclair's History of the Revenue; by which it appears, that taxes continued decreasing for four hundred years, at the expiration of which time they were reduced three-fourths, viz., from four hundred thousand pounds to one hundred thousand. The people of England of the present day, have a traditionary and historical idea of the bravery of their ancestors; but whatever their virtues or their vices might have been, they certainly were a people who would not be imposed upon, and who kept governments in awe as to taxation, if not as to principle. Though they were not able to expel the monarchical usurpation, they restricted it to a republican economy of taxes.

Let us now review the remaining three hundred years:

Annual amount of taxes at:

<i>500 years from the conquest (1566)</i>	<i>500,000</i>
<i>600 years from the conquest (1666)</i>	<i>1,800,000</i>
<i>the present time (1791)</i>	<i>17,000,000</i>

The difference between the first four hundred years and the last three, is so astonishing, as to warrant an opinion, that the national character of the English has changed. It would have been impossible to have dragooned the former English, into the excess of taxation that now exists; and when it is considered that the pay of the army, the navy, and of all the revenue officers, is the same now as it was about a hundred years ago, when the taxes were not above a tenth part of what they are at present, it appears impossible to account for the enormous increase and expenditure on any other ground, than extravagance, corruption, and intrigue.*[31](#)

With the Revolution of 1688, and more so since the Hanover succession, came the destructive system of continental intrigues, and the rage for foreign wars and foreign dominion; systems of such secure mystery that the expenses admit of no accounts; a single line stands for millions. To what excess taxation might have extended had not the French revolution contributed to break up the system, and put an end to pretences, is impossible to say. Viewed, as that revolution ought to be, as the fortunate means of lessening the load of taxes of both countries, it is of as much importance to England as to France; and, if properly improved to all the advantages of which it is capable, and to which it leads, deserves as much celebration in one country as the other.

In pursuing this subject, I shall begin with the matter that first presents itself, that of lessening the burthen of taxes; and shall then add such matter and propositions, respecting the three countries of England, France, and America, as the present prospect of things appears to justify: I mean, an alliance of the three, for the purposes that will be mentioned in their proper place.

What has happened may happen again. By the statement before shown of the progress of taxation, it is seen that taxes have been lessened to a fourth part of what they had formerly been. Though the present circumstances do not admit of the same reduction, yet they admit of such a beginning, as may accomplish that end in less time than in the former case.

The amount of taxes for the year ending at Michaelmas 1788, was as follows:

<i>Land-tax</i>	<i>L 1,950,000</i>
<i>Customs</i>	<i>3,789,274</i>
<i>Excise (including old and new malt)</i>	<i>6,751,727</i>
<i>Stamps</i>	<i>1,278,214</i>
<i>Miscellaneous taxes and incidents</i>	<i>1,803,755</i>
	<i>L15,572,755</i>

Since the year 1788, upwards of one million new taxes have been laid on, besides the produce of the lotteries; and as the taxes have in general been more productive since than before, the amount may be taken, in round numbers, at L17,000,000. (The expense of collection and the drawbacks, which together amount to nearly two millions, are paid out of the gross amount; and the above is the net sum paid into the exchequer). This sum of seventeen millions is applied to two different purposes; the one to pay the interest of the National Debt, the other to the current expenses of each year. About nine millions are appropriated to the former; and the remainder, being nearly eight millions, to the latter. As to the million, said to be applied to the reduction of the debt, it is so much like paying with one hand and taking out with the other, as not to merit much notice. It happened, fortunately for France, that she possessed national domains for paying off her debt, and thereby lessening her taxes; but as this is not the case with England, her reduction of taxes can only take place by reducing the current expenses, which may now be done to the amount of four or five millions annually, as will hereafter appear. When this is accomplished it will more than counter-balance the enormous charge of the American war; and the saving will be from the same source from whence the evil arose. As to the national debt, however heavy the interest may be in taxes, yet, as it serves to keep alive a capital useful to commerce, it balances by its effects a considerable part of its own weight; and as the quantity of gold and silver is, by some means or other, short of its proper proportion, being not more than twenty millions, whereas it should be sixty (foreign intrigue, foreign wars, foreign dominions, will in a great measure account for the deficiency), it would, besides the injustice, be bad policy to extinguish a capital that serves to supply that defect. But with respect to the current expense, whatever is saved therefrom is gain. The excess may serve to keep corruption alive, but it has no re-action on credit and commerce, like the interest of the debt.

It is now very probable that the English Government (I do not mean the nation) is unfriendly to the French Revolution. Whatever serves to expose the intrigue and lessen the influence of courts, by lessening taxation, will be unwelcome to those who feed upon the spoil. Whilst the clamour of French intrigue, arbitrary power, popery, and wooden shoes could be kept up, the nation was easily allured and alarmed into taxes. Those days are now past: deception, it is to be hoped, has reaped its last harvest, and better times are in prospect for both countries, and for the world.

Taking it for granted that an alliance may be formed between England, France, and America for the purposes hereafter to be mentioned, the national expenses of France and England may consequently be lessened. The same fleets and armies will no longer be necessary to either, and the reduction can be made ship for ship on each side. But to accomplish these objects the governments must necessarily be fitted to a common and correspondent principle. Confidence can never take place while an hostile disposition remains in either, or where mystery and secrecy on one side is opposed to candour and openness on the other.

These matters admitted, the national expenses might be put back, for the sake of a precedent, to what they were at some period when France and England were not enemies. This, consequently, must be prior to the Hanover succession, and also to the Revolution of 1688.*[32](#) The first instance that presents itself, antecedent to those dates, is in the very wasteful and profligate times of Charles the Second; at which time England and France acted as allies. If I have chosen a period of great extravagance, it will serve to show modern extravagance in a still worse light; especially as the pay of the navy, the army, and the revenue officers has not increased since that time.

The peace establishment was then as follows (see Sir John Sinclair's History of the Revenue):

<i>Navy</i>	<i>L 300,000</i>
<i>Army</i>	<i>212,000</i>
<i>Ordnance</i>	<i>40,000</i>
<i>Civil List</i>	<i>462,115</i>
	<i>L1,014,115</i>

The parliament, however, settled the whole annual peace establishment at \$1,200,000.*[33](#) If we go back to the time of Elizabeth the amount of all the

taxes was but half a million, yet the nation sees nothing during that period that reproaches it with want of consequence.

All circumstances, then, taken together, arising from the French revolution, from the approaching harmony and reciprocal interest of the two nations, the abolition of the court intrigue on both sides, and the progress of knowledge in the science of government, the annual expenditure might be put back to one million and a half, viz.:

<i>Navy</i>	<i>L 500,000</i>
<i>Army</i>	<i>500,000</i>
<i>Expenses of Government</i>	<i>500,000</i>
	<i>L1,500,000</i>

Even this sum is six times greater than the expenses of government are in America, yet the civil internal government in England (I mean that administered by means of quarter sessions, juries and assize, and which, in fact, is nearly the whole, and performed by the nation), is less expense upon the revenue, than the same species and portion of government is in America.

It is time that nations should be rational, and not be governed like animals, for the pleasure of their riders. To read the history of kings, a man would be almost inclined to suppose that government consisted in stag-hunting, and that every nation paid a million a-year to a huntsman. Man ought to have pride, or shame enough to blush at being thus imposed upon, and when he feels his proper character he will. Upon all subjects of this nature, there is often passing in the mind, a train of ideas he has not yet accustomed himself to encourage and communicate. Restrained by something that puts on the character of prudence, he acts the hypocrite upon himself as well as to others. It is, however, curious to observe how soon this spell can be dissolved. A single expression, boldly conceived and uttered, will sometimes put a whole company into their proper feelings: and whole nations are acted on in the same manner.

As to the offices of which any civil government may be composed, it matters but little by what names they are described. In the routine of business, as before observed, whether a man be styled a president, a king, an emperor, a senator, or anything else, it is impossible that any service he can perform, can merit from a nation more than ten thousand pounds a year; and as no man should be paid beyond his services, so every man of a proper

heart will not accept more. Public money ought to be touched with the most scrupulous consciousness of honour. It is not the produce of riches only, but of the hard earnings of labour and poverty. It is drawn even from the bitterness of want and misery. Not a beggar passes, or perishes in the streets, whose mite is not in that mass.

Were it possible that the Congress of America could be so lost to their duty, and to the interest of their constituents, as to offer General Washington, as president of America, a million a year, he would not, and he could not, accept it. His sense of honour is of another kind. It has cost England almost seventy millions sterling, to maintain a family imported from abroad, of very inferior capacity to thousands in the nation; and scarcely a year has passed that has not produced some new mercenary application. Even the physicians' bills have been sent to the public to be paid. No wonder that jails are crowded, and taxes and poor-rates increased. Under such systems, nothing is to be looked for but what has already happened; and as to reformation, whenever it come, it must be from the nation, and not from the government.

To show that the sum of five hundred thousand pounds is more than sufficient to defray all the expenses of the government, exclusive of navies and armies, the following estimate is added, for any country, of the same extent as England.

In the first place, three hundred representatives fairly elected, are sufficient for all the purposes to which legislation can apply, and preferable to a larger number. They may be divided into two or three houses, or meet in one, as in France, or in any manner a constitution shall direct.

As representation is always considered, in free countries, as the most honourable of all stations, the allowance made to it is merely to defray the expense which the representatives incur by that service, and not to it as an office.

If an allowance, at the rate of five hundred pounds per annum, be made to every representative, deducting for non-attendance, the expense, if the whole number attended for six months, each year, would be L 75,00

The official departments cannot reasonably exceed the following number, with the salaries annexed:

<i>Three offices at ten thousand pounds each</i>	<i>L 30,000</i>
<i>Ten ditto, at five thousand pounds each</i>	<i>50,000</i>

<i>Twenty ditto, at two thousand pounds each</i>	<i>40,000</i>
<i>Forty ditto, at one thousand pounds each</i>	<i>40,000</i>
<i>Two hundred ditto, at five hundred pounds each</i>	<i>100,000</i>
<i>Three hundred ditto, at two hundred pounds each</i>	<i>60,000</i>
<i>Five hundred ditto, at one hundred pounds each</i>	<i>50,000</i>
<i>Seven hundred ditto, at seventy-five pounds each</i>	<i>52,500</i>
	<i>L497,500</i>

If a nation choose, it can deduct four per cent. from all offices, and make one of twenty thousand per annum.

All revenue officers are paid out of the monies they collect, and therefore, are not in this estimation.

The foregoing is not offered as an exact detail of offices, but to show the number of rate of salaries which five hundred thousand pounds will support; and it will, on experience, be found impracticable to find business sufficient to justify even this expense. As to the manner in which office business is now performed, the Chiefs, in several offices, such as the post-office, and certain offices in the exchequer, etc., do little more than sign their names three or four times a year; and the whole duty is performed by under-clerks.

Taking, therefore, one million and a half as a sufficient peace establishment for all the honest purposes of government, which is three hundred thousand pounds more than the peace establishment in the profligate and prodigal times of Charles the Second (notwithstanding, as has been already observed, the pay and salaries of the army, navy, and revenue officers, continue the same as at that period), there will remain a surplus of upwards of six millions out of the present current expenses. The question then will be, how to dispose of this surplus.

Whoever has observed the manner in which trade and taxes twist themselves together, must be sensible of the impossibility of separating them suddenly.

First. Because the articles now on hand are already charged with the duty, and the reduction cannot take place on the present stock.

Secondly. Because, on all those articles on which the duty is charged in the gross, such as per barrel, hogshead, hundred weight, or ton, the abolition of the duty does not admit of being divided down so as fully to relieve the consumer, who purchases by the pint, or the pound. The last duty laid on strong beer and ale was three shillings per barrel, which, if taken off, would

lessen the purchase only half a farthing per pint, and consequently, would not reach to practical relief.

This being the condition of a great part of the taxes, it will be necessary to look for such others as are free from this embarrassment and where the relief will be direct and visible, and capable of immediate operation.

In the first place, then, the poor-rates are a direct tax which every house-keeper feels, and who knows also, to a farthing, the sum which he pays. The national amount of the whole of the poor-rates is not positively known, but can be procured. Sir John Sinclair, in his History of the Revenue has stated it at £2,100,587. A considerable part of which is expended in litigations, in which the poor, instead of being relieved, are tormented. The expense, however, is the same to the parish from whatever cause it arises.

In Birmingham, the amount of poor-rates is fourteen thousand pounds a year. This, though a large sum, is moderate, compared with the population. Birmingham is said to contain seventy thousand souls, and on a proportion of seventy thousand to fourteen thousand pounds poor-rates, the national amount of poor-rates, taking the population of England as seven millions, would be but one million four hundred thousand pounds. It is, therefore, most probable, that the population of Birmingham is over-rated. Fourteen thousand pounds is the proportion upon fifty thousand souls, taking two millions of poor-rates, as the national amount.

Be it, however, what it may, it is no other than the consequence of excessive burthen of taxes, for, at the time when the taxes were very low, the poor were able to maintain themselves; and there were no poor-rates.*³⁴ In the present state of things a labouring man, with a wife or two or three children, does not pay less than between seven and eight pounds a year in taxes. He is not sensible of this, because it is disguised to him in the articles which he buys, and he thinks only of their dearness; but as the taxes take from him, at least, a fourth part of his yearly earnings, he is consequently disabled from providing for a family, especially, if himself, or any of them, are afflicted with sickness.

The first step, therefore, of practical relief, would be to abolish the poor-rates entirely, and in lieu thereof, to make a remission of taxes to the poor of double the amount of the present poor-rates, viz., four millions annually out of the surplus taxes. By this measure, the poor would be benefited two millions, and the house-keepers two millions. This alone would be equal to

a reduction of one hundred and twenty millions of the National Debt, and consequently equal to the whole expense of the American War.

It will then remain to be considered, which is the most effectual mode of distributing this remission of four millions.

It is easily seen, that the poor are generally composed of large families of children, and old people past their labour. If these two classes are provided for, the remedy will so far reach to the full extent of the case, that what remains will be incidental, and, in a great measure, fall within the compass of benefit clubs, which, though of humble invention, merit to be ranked among the best of modern institutions.

Admitting England to contain seven millions of souls; if one-fifth thereof are of that class of poor which need support, the number will be one million four hundred thousand. Of this number, one hundred and forty thousand will be aged poor, as will be hereafter shown, and for which a distinct provision will be proposed.

There will then remain one million two hundred and sixty thousand which, at five souls to each family, amount to two hundred and fifty-two thousand families, rendered poor from the expense of children and the weight of taxes.

The number of children under fourteen years of age, in each of those families, will be found to be about five to every two families; some having two, and others three; some one, and others four: some none, and others five; but it rarely happens that more than five are under fourteen years of age, and after this age they are capable of service or of being apprenticed.

Allowing five children (under fourteen years) to every two families,

The number of children will be 630,000

The number of parents, were they all living, would be 504,000

It is certain, that if the children are provided for, the parents are relieved of consequence, because it is from the expense of bringing up children that their poverty arises.

Having thus ascertained the greatest number that can be supposed to need support on account of young families, I proceed to the mode of relief or distribution, which is,

To pay as a remission of taxes to every poor family, out of the surplus taxes, and in room of poor-rates, four pounds a year for every child under

fourteen years of age; enjoining the parents of such children to send them to school, to learn reading, writing, and common arithmetic; the ministers of every parish, of every denomination to certify jointly to an office, for that purpose, that this duty is performed. The amount of this expense will be,

*For six hundred and thirty thousand children
at four pounds per annum each*

L2, 520, 000

By adopting this method, not only the poverty of the parents will be relieved, but ignorance will be banished from the rising generation, and the number of poor will hereafter become less, because their abilities, by the aid of education, will be greater. Many a youth, with good natural genius, who is apprenticed to a mechanical trade, such as a carpenter, joiner, millwright, shipwright, blacksmith, etc., is prevented getting forward the whole of his life from the want of a little common education when a boy.

I now proceed to the case of the aged.

I divide age into two classes. First, the approach of age, beginning at fifty. Secondly, old age commencing at sixty.

At fifty, though the mental faculties of man are in full vigour, and his judgment better than at any preceding date, the bodily powers for laborious life are on the decline. He cannot bear the same quantity of fatigue as at an earlier period. He begins to earn less, and is less capable of enduring wind and weather; and in those more retired employments where much sight is required, he fails apace, and sees himself, like an old horse, beginning to be turned adrift.

At sixty his labour ought to be over, at least from direct necessity. It is painful to see old age working itself to death, in what are called civilised countries, for daily bread.

To form some judgment of the number of those above fifty years of age, I have several times counted the persons I met in the streets of London, men, women, and children, and have generally found that the average is about one in sixteen or seventeen. If it be said that aged persons do not come much into the streets, so neither do infants; and a great proportion of grown children are in schools and in work-shops as apprentices. Taking, then, sixteen for a divisor, the whole number of persons in England of fifty years and upwards, of both sexes, rich and poor, will be four hundred and twenty thousand.

The persons to be provided for out of this gross number will be husbandmen, common labourers, journeymen of every trade and their wives, sailors, and disbanded soldiers, worn out servants of both sexes, and poor widows.

There will be also a considerable number of middling tradesmen, who having lived decently in the former part of life, begin, as age approaches, to lose their business, and at last fall to decay.

Besides these there will be constantly thrown off from the revolutions of that wheel which no man can stop nor regulate, a number from every class of life connected with commerce and adventure.

To provide for all those accidents, and whatever else may befall, I take the number of persons who, at one time or other of their lives, after fifty years of age, may feel it necessary or comfortable to be better supported, than they can support themselves, and that not as a matter of grace and favour, but of right, at one-third of the whole number, which is one hundred and forty thousand, as stated in a previous page, and for whom a distinct provision was proposed to be made. If there be more, society, notwithstanding the show and pomposity of government, is in a deplorable condition in England.

Of this one hundred and forty thousand, I take one half, seventy thousand, to be of the age of fifty and under sixty, and the other half to be sixty years and upwards. Having thus ascertained the probable proportion of the number of aged persons, I proceed to the mode of rendering their condition comfortable, which is:

To pay to every such person of the age of fifty years, and until he shall arrive at the age of sixty, the sum of six pounds per annum out of the surplus taxes, and ten pounds per annum during life after the age of sixty. The expense of which will be,

<i>Seventy thousand persons, at L6 per annum</i>	<i>L 420,000</i>
<i>Seventy thousand persons, at L10 per annum</i>	<i>700,000</i>
	<i>L1,120,000</i>

This support, as already remarked, is not of the nature of a charity but of a right. Every person in England, male and female, pays on an average in taxes two pounds eight shillings and sixpence per annum from the day of his (or her) birth; and, if the expense of collection be added, he pays two

pounds eleven shillings and sixpence; consequently, at the end of fifty years he has paid one hundred and twenty-eight pounds fifteen shillings; and at sixty one hundred and fifty-four pounds ten shillings. Converting, therefore, his (or her) individual tax in a tontine, the money he shall receive after fifty years is but little more than the legal interest of the net money he has paid; the rest is made up from those whose circumstances do not require them to draw such support, and the capital in both cases defrays the expenses of government. It is on this ground that I have extended the probable claims to one-third of the number of aged persons in the nation.—Is it, then, better that the lives of one hundred and forty thousand aged persons be rendered comfortable, or that a million a year of public money be expended on any one individual, and him often of the most worthless or insignificant character? Let reason and justice, let honour and humanity, let even hypocrisy, sycophancy and Mr. Burke, let George, let Louis, Leopold, Frederic, Catherine, Cornwallis, or Tippoo Saib, answer the question.*[35](#)

The sum thus remitted to the poor will be,

<i>To two hundred and fifty-two thousand poor families,</i>	
<i>containing six hundred and thirty thousand children</i>	<i>L2,520,000</i>
<i>To one hundred and forty thousand aged persons</i>	<i>1,120,000</i>
	<i>L3,640,000</i>

There will then remain three hundred and sixty thousand pounds out of the four millions, part of which may be applied as follows:—

After all the above cases are provided for there will still be a number of families who, though not properly of the class of poor, yet find it difficult to give education to their children; and such children, under such a case, would be in a worse condition than if their parents were actually poor. A nation under a well-regulated government should permit none to remain uninstructed. It is monarchical and aristocratical government only that requires ignorance for its support.

Suppose, then, four hundred thousand children to be in this condition, which is a greater number than ought to be supposed after the provisions already made, the method will be:

To allow for each of those children ten shillings a year for the expense of schooling for six years each, which will give them six months schooling each year, and half a crown a year for paper and spelling books.

The expense of this will be annually L250,000.*[36](#)

There will then remain one hundred and ten thousand pounds.

Notwithstanding the great modes of relief which the best instituted and best principled government may devise, there will be a number of smaller cases, which it is good policy as well as beneficence in a nation to consider.

Were twenty shillings to be given immediately on the birth of a child, to every woman who should make the demand, and none will make it whose circumstances do not require it, it might relieve a great deal of instant distress.

There are about two hundred thousand births yearly in England; and if claimed by one fourth,

The amount would be

L50,000

And twenty shillings to every new-married couple who should claim in like manner. This would not exceed the sum of L20,000.

Also twenty thousand pounds to be appropriated to defray the funeral expenses of persons, who, travelling for work, may die at a distance from their friends. By relieving parishes from this charge, the sick stranger will be better treated.

I shall finish this part of the subject with a plan adapted to the particular condition of a metropolis, such as London.

Cases are continually occurring in a metropolis, different from those which occur in the country, and for which a different, or rather an additional, mode of relief is necessary. In the country, even in large towns, people have a knowledge of each other, and distress never rises to that extreme height it sometimes does in a metropolis. There is no such thing in the country as persons, in the literal sense of the word, starved to death, or dying with cold from the want of a lodging. Yet such cases, and others equally as miserable, happen in London.

Many a youth comes up to London full of expectations, and with little or no money, and unless he get immediate employment he is already half undone; and boys bred up in London without any means of a livelihood, and as it often happens of dissolute parents, are in a still worse condition; and servants long out of place are not much better off. In short, a world of little cases is continually arising, which busy or affluent life knows not of,

to open the first door to distress. Hunger is not among the postponable wants, and a day, even a few hours, in such a condition is often the crisis of a life of ruin.

These circumstances which are the general cause of the little thefts and pilferings that lead to greater, may be prevented. There yet remain twenty thousand pounds out of the four millions of surplus taxes, which with another fund hereafter to be mentioned, amounting to about twenty thousand pounds more, cannot be better applied than to this purpose. The plan will then be:

First, To erect two or more buildings, or take some already erected, capable of containing at least six thousand persons, and to have in each of these places as many kinds of employment as can be contrived, so that every person who shall come may find something which he or she can do.

Secondly, To receive all who shall come, without enquiring who or what they are. The only condition to be, that for so much, or so many hours' work, each person shall receive so many meals of wholesome food, and a warm lodging, at least as good as a barrack. That a certain portion of what each person's work shall be worth shall be reserved, and given to him or her, on their going away; and that each person shall stay as long or as short a time, or come as often as he choose, on these conditions.

If each person stayed three months, it would assist by rotation twenty-four thousand persons annually, though the real number, at all times, would be but six thousand. By establishing an asylum of this kind, such persons to whom temporary distresses occur, would have an opportunity to recruit themselves, and be enabled to look out for better employment.

Allowing that their labour paid but one half the expense of supporting them, after reserving a portion of their earnings for themselves, the sum of forty thousand pounds additional would defray all other charges for even a greater number than six thousand.

The fund very properly convertible to this purpose, in addition to the twenty thousand pounds, remaining of the former fund, will be the produce of the tax upon coals, so iniquitously and wantonly applied to the support of the Duke of Richmond. It is horrid that any man, more especially at the price coals now are, should live on the distresses of a community; and any government permitting such an abuse, deserves to be dismissed. This fund is said to be about twenty thousand pounds per annum.

I shall now conclude this plan with enumerating the several particulars, and then proceed to other matters.

The enumeration is as follows:—

First, Abolition of two millions poor-rates.

Secondly, Provision for two hundred and fifty thousand poor families.

Thirdly, Education for one million and thirty thousand children.

Fourthly, Comfortable provision for one hundred and forty thousand aged persons.

Fifthly, Donation of twenty shillings each for fifty thousand births.

Sixthly, Donation of twenty shillings each for twenty thousand marriages.

Seventhly, Allowance of twenty thousand pounds for the funeral expenses of persons travelling for work, and dying at a distance from their friends.

Eighthly, Employment, at all times, for the casual poor in the cities of London and Westminster.

By the operation of this plan, the poor laws, those instruments of civil torture, will be superseded, and the wasteful expense of litigation prevented. The hearts of the humane will not be shocked by ragged and hungry children, and persons of seventy and eighty years of age, begging for bread. The dying poor will not be dragged from place to place to breathe their last, as a reprisal of parish upon parish. Widows will have a maintenance for their children, and not be carted away, on the death of their husbands, like culprits and criminals; and children will no longer be considered as increasing the distresses of their parents. The haunts of the wretched will be known, because it will be to their advantage; and the number of petty crimes, the offspring of distress and poverty, will be lessened. The poor, as well as the rich, will then be interested in the support of government, and the cause and apprehension of riots and tumults will cease.—Ye who sit in ease, and solace yourselves in plenty, and such there are in Turkey and Russia, as well as in England, and who say to yourselves, "Are we not well off?" have ye thought of these things? When ye do, ye will cease to speak and feel for yourselves alone.

The plan is easy in practice. It does not embarrass trade by a sudden interruption in the order of taxes, but effects the relief by changing the application of them; and the money necessary for the purpose can be drawn

from the excise collections, which are made eight times a year in every market town in England.

Having now arranged and concluded this subject, I proceed to the next.

Taking the present current expenses at seven millions and an half, which is the least amount they are now at, there will remain (after the sum of one million and an half be taken for the new current expenses and four millions for the before-mentioned service) the sum of two millions; part of which to be applied as follows:

Though fleets and armies, by an alliance with France, will, in a great measure, become useless, yet the persons who have devoted themselves to those services, and have thereby unfitted themselves for other lines of life, are not to be sufferers by the means that make others happy. They are a different description of men from those who form or hang about a court.

A part of the army will remain, at least for some years, and also of the navy, for which a provision is already made in the former part of this plan of one million, which is almost half a million more than the peace establishment of the army and navy in the prodigal times of Charles the Second.

Suppose, then, fifteen thousand soldiers to be disbanded, and that an allowance be made to each of three shillings a week during life, clear of all deductions, to be paid in the same manner as the Chelsea College pensioners are paid, and for them to return to their trades and their friends; and also that an addition of fifteen thousand sixpences per week be made to the pay of the soldiers who shall remain; the annual expenses will be:

<i>To the pay of fifteen thousand disbanded soldiers</i>	
<i>at three shillings per week</i>	<i>L117,000</i>
<i>Additional pay to the remaining soldiers</i>	<i>19,500</i>
<i>Suppose that the pay to the officers of the</i>	
<i>disbanded corps be the same amount as sum allowed</i>	
<i>to the men</i>	<i>117,000</i>
<i>L253,500</i>	
<i>To prevent bulky estimations, admit the same sum</i>	
<i>to the disbanded navy as to the army,</i>	
<i>and the same increase of pay</i>	<i>253,500</i>
<i>Total</i>	<i>L507,000</i>

Every year some part of this sum of half a million (I omit the odd seven thousand pounds for the purpose of keeping the account unembarrassed)

will fall in, and the whole of it in time, as it is on the ground of life annuities, except the increased pay of twenty-nine thousand pounds. As it falls in, part of the taxes may be taken off; and as, for instance, when thirty thousand pounds fall in, the duty on hops may be wholly taken off; and as other parts fall in, the duties on candles and soap may be lessened, till at last they will totally cease. There now remains at least one million and a half of surplus taxes.

The tax on houses and windows is one of those direct taxes, which, like the poor-rates, is not confounded with trade; and, when taken off, the relief will be instantly felt. This tax falls heavy on the middle class of people. The amount of this tax, by the returns of 1788, was:

<i>Houses and windows:</i>	<i>L</i>	<i>s.</i>	<i>d.</i>
<i>By the act of 1766</i>	385,459	11	7
<i>By the act be 1779</i>	130,739	14	5 1/2
<i>Total</i>	516,199	6	0 1/2

If this tax be struck off, there will then remain about one million of surplus taxes; and as it is always proper to keep a sum in reserve, for incidental matters, it may be best not to extend reductions further in the first instance, but to consider what may be accomplished by other modes of reform.

Among the taxes most heavily felt is the commutation tax. I shall therefore offer a plan for its abolition, by substituting another in its place, which will effect three objects at once: 1, that of removing the burthen to where it can best be borne; 2, restoring justice among families by a distribution of property; 3, extirpating the overgrown influence arising from the unnatural law of primogeniture, which is one of the principal sources of corruption at elections. The amount of commutation tax by the returns of 1788, was L771,657.

When taxes are proposed, the country is amused by the plausible language of taxing luxuries. One thing is called a luxury at one time, and something else at another; but the real luxury does not consist in the article, but in the means of procuring it, and this is always kept out of sight.

I know not why any plant or herb of the field should be a greater luxury in one country than another; but an overgrown estate in either is a luxury at all times, and, as such, is the proper object of taxation. It is, therefore, right to take those kind tax-making gentlemen up on their own word, and argue

on the principle themselves have laid down, that of taxing luxuries. If they or their champion, Mr. Burke, who, I fear, is growing out of date, like the man in armour, can prove that an estate of twenty, thirty, or forty thousand pounds a year is not a luxury, I will give up the argument.

Admitting that any annual sum, say, for instance, one thousand pounds, is necessary or sufficient for the support of a family, consequently the second thousand is of the nature of a luxury, the third still more so, and by proceeding on, we shall at last arrive at a sum that may not improperly be called a prohibitable luxury. It would be impolitic to set bounds to property acquired by industry, and therefore it is right to place the prohibition beyond the probable acquisition to which industry can extend; but there ought to be a limit to property or the accumulation of it by bequest. It should pass in some other line. The richest in every nation have poor relations, and those often very near in consanguinity.

The following table of progressive taxation is constructed on the above principles, and as a substitute for the commutation tax. It will reach the point of prohibition by a regular operation, and thereby supersede the aristocratical law of primogeniture.

TABLE I
*A tax on all estates of the clear yearly value of L50,
after deducting the land tax, and up*

<i>To L500</i>	<i>0s</i>	<i>3d per pound</i>
<i>From L500 to L1,000</i>	<i>0</i>	<i>6</i>
<i>On the second thousand</i>	<i>0</i>	<i>9</i>
<i>On the third "</i>	<i>1</i>	<i>0</i>
<i>On the fourth "</i>	<i>1</i>	<i>6</i>
<i>On the fifth "</i>	<i>2</i>	<i>0</i>
<i>On the sixth "</i>	<i>3</i>	<i>0</i>
<i>On the seventh "</i>	<i>4</i>	<i>0</i>
<i>On the eighth "</i>	<i>5</i>	<i>0</i>
<i>On the ninth "</i>	<i>6s</i>	<i>0d per pound</i>
<i>On the tenth "</i>	<i>7</i>	<i>0</i>
<i>On the eleventh "</i>	<i>8</i>	<i>0</i>
<i>On the twelfth "</i>	<i>9</i>	<i>0</i>
<i>On the thirteenth "</i>	<i>10</i>	<i>0</i>
<i>On the fourteenth "</i>	<i>11</i>	<i>0</i>
<i>On the fifteenth "</i>	<i>12</i>	<i>0</i>
<i>On the sixteenth "</i>	<i>13</i>	<i>0</i>
<i>On the seventeenth "</i>	<i>14</i>	<i>0</i>
<i>On the eighteenth "</i>	<i>15</i>	<i>0</i>
<i>On the nineteenth "</i>	<i>16</i>	<i>0</i>
<i>On the twentieth "</i>	<i>17</i>	<i>0</i>
<i>On the twenty-first "</i>	<i>18</i>	<i>0</i>
<i>On the twenty-second "</i>	<i>19</i>	<i>0</i>
<i>On the twenty-third "</i>	<i>20</i>	<i>0</i>

The foregoing table shows the progression per pound on every progressive thousand. The following table shows the amount of the tax on every thousand separately, and in the last column the total amount of all the separate sums collected.

TABLE II

An estate of:

L 50 per annum	at 3d per pound pays	L0	12	6
100 " "	" "	1	5	0
200 " "	" "	2	10	0
300 " "	" "	3	15	0
400 " "	" "	5	0	0
500 " "	" "	7	5	0

After L500, the tax of 6d. per pound takes place on the second L500; consequently an estate of L1,000 per annum pays L2l, 15s., and so on.

				Total amount	
For the 1st L500 at	0s	3d per pound	L7	5s	
2nd "	0	6	14	10	L21 15s
2nd 1000 at	0	9	37	11	59 5
3rd "	1	0	50	0	109 5
(Total amount)					
4th 1000 at	1s	6d per pound	L75	0s	L184 5s
5th "	2	0	100	0	284 5
6th "	3	0	150	0	434 5
7th "	4	0	200	0	634 5
8th "	5	0	250	0	880 5
9th "	6	0	300	0	1100 5
10th "	7	0	350	0	1530 5
11th "	8	0	400	0	1930 5
12th "	9	0	450	0	2380 5
13th "	10	0	500	0	2880 5
14th "	11	0	550	0	3430 5
15th "	12	0	600	0	4030 5
16th "	13	0	650	0	4680 5
17th "	14	0	700	0	5380 5
18th "	15	0	750	0	6130 5
19th "	16	0	800	0	6930 5
20th "	17	0	850	0	7780 5
21st "	18	0	900	0	8680 5
(Total amount)					
22nd 1000 at	19s	0d per pound	L950	0s	L9630 5s
23rd "	20	0	1000	0	10630 5

At the twenty-third thousand the tax becomes 20s. in the pound, and consequently every thousand beyond that sum can produce no profit but by dividing the estate. Yet formidable as this tax appears, it will not, I believe, produce so much as the commutation tax; should it produce more, it ought to be lowered to that amount upon estates under two or three thousand a year.

On small and middling estates it is lighter (as it is intended to be) than the commutation tax. It is not till after seven or eight thousand a year that it begins to be heavy. The object is not so much the produce of the tax as the justice of the measure. The aristocracy has screened itself too much, and this serves to restore a part of the lost equilibrium.

As an instance of its screening itself, it is only necessary to look back to the first establishment of the excise laws, at what is called the Restoration, or the coming of Charles the Second. The aristocratical interest then in power, commuted the feudal services itself was under, by laying a tax on beer brewed for sale; that is, they compounded with Charles for an exemption from those services for themselves and their heirs, by a tax to be paid by other people. The aristocracy do not purchase beer brewed for sale, but brew their own beer free of the duty, and if any commutation at that time were necessary, it ought to have been at the expense of those for whom the exemptions from those services were intended;*[37](#) instead of which, it was thrown on an entirely different class of men.

But the chief object of this progressive tax (besides the justice of rendering taxes more equal than they are) is, as already stated, to extirpate the overgrown influence arising from the unnatural law of primogeniture, and which is one of the principal sources of corruption at elections.

It would be attended with no good consequences to enquire how such vast estates as thirty, forty, or fifty thousand a year could commence, and that at a time when commerce and manufactures were not in a state to admit of such acquisitions. Let it be sufficient to remedy the evil by putting them in a condition of descending again to the community by the quiet means of apportioning them among all the heirs and heiresses of those families. This will be the more necessary, because hitherto the aristocracy have quartered their younger children and connections upon the public in useless posts, places and offices, which when abolished will leave them destitute, unless the law of primogeniture be also abolished or superseded.

A progressive tax will, in a great measure, effect this object, and that as a matter of interest to the parties most immediately concerned, as will be seen by the following table; which shows the net produce upon every estate, after subtracting the tax. By this it will appear that after an estate exceeds thirteen or fourteen thousand a year, the remainder produces but little profit

to the holder, and consequently, Will pass either to the younger children, or to other kindred.

TABLE III
Showing the net produce of every estate from one thousand to twenty-three thousand pounds a year

<i>No of thousand per annum</i>	<i>Total tax subtracted</i>	<i>Net produce</i>
L1000	L21	L979
2000	59	1941
3000	109	2891
4000	184	3816
5000	284	4716
6000	434	5566
7000	634	6366
8000	880	7120
9000	1100	7900
10,000	1530	8470
11,000	1930	9070
12,000	2380	9620
13,000	2880	10,120
<i>(No of thousand per annum)</i>	<i>(Total tax subtracted)</i>	<i>(Net produce)</i>
14,000	3430	10,570
15,000	4030	10,970
16,000	4680	11,320
17,000	5380	11,620
18,000	6130	11,870
19,000	6930	12,170
20,000	7780	12,220
21,000	8680	12,320
22,000	9630	12,370
23,000	10,630	12,370

N.B. The odd shillings are dropped in this table.

According to this table, an estate cannot produce more than L12,370 clear of the land tax and the progressive tax, and therefore the dividing such estates will follow as a matter of family interest. An estate of L23,000 a year, divided into five estates of four thousand each and one of three, will be charged only L1,129 which is but five per cent., but if held by one possessor, will be charged L10,630.

Although an enquiry into the origin of those estates be unnecessary, the continuation of them in their present state is another subject. It is a matter of national concern. As hereditary estates, the law has created the evil, and it ought also to provide the remedy. Primogeniture ought to be abolished, not only because it is unnatural and unjust, but because the country suffers by its operation. By cutting off (as before observed) the younger children from their proper portion of inheritance, the public is loaded with the expense of

maintaining them; and the freedom of elections violated by the overbearing influence which this unjust monopoly of family property produces. Nor is this all. It occasions a waste of national property. A considerable part of the land of the country is rendered unproductive, by the great extent of parks and chases which this law serves to keep up, and this at a time when the annual production of grain is not equal to the national consumption.*[38](#)—In short, the evils of the aristocratical system are so great and numerous, so inconsistent with every thing that is just, wise, natural, and beneficent, that when they are considered, there ought not to be a doubt that many, who are now classed under that description, will wish to see such a system abolished.

What pleasure can they derive from contemplating the exposed condition, and almost certain beggary of their younger offspring? Every aristocratical family has an appendage of family beggars hanging round it, which in a few ages, or a few generations, are shook off, and console themselves with telling their tale in almshouses, workhouses, and prisons. This is the natural consequence of aristocracy. The peer and the beggar are often of the same family. One extreme produces the other: to make one rich many must be made poor; neither can the system be supported by other means.

There are two classes of people to whom the laws of England are particularly hostile, and those the most helpless; younger children, and the poor. Of the former I have just spoken; of the latter I shall mention one instance out of the many that might be produced, and with which I shall close this subject.

Several laws are in existence for regulating and limiting work-men's wages. Why not leave them as free to make their own bargains, as the law-makers are to let their farms and houses? Personal labour is all the property they have. Why is that little, and the little freedom they enjoy, to be infringed? But the injustice will appear stronger, if we consider the operation and effect of such laws. When wages are fixed by what is called a law, the legal wages remain stationary, while every thing else is in progression; and as those who make that law still continue to lay on new taxes by other laws, they increase the expense of living by one law, and take away the means by another.

But if these gentlemen law-makers and tax-makers thought it right to limit the poor pittance which personal labour can produce, and on which a whole family is to be supported, they certainly must feel themselves happily indulged in a limitation on their own part, of not less than twelve thousand a-year, and that of property they never acquired (nor probably any of their ancestors), and of which they have made never acquire so ill a use.

Having now finished this subject, I shall bring the several particulars into one view, and then proceed to other matters.

The first eight articles, mentioned earlier, are;

1. Abolition of two millions poor-rates.
2. Provision for two hundred and fifty-two thousand poor families, at the rate of four pounds per head for each child under fourteen years of age; which, with the addition of two hundred and fifty thousand pounds, provides also education for one million and thirty thousand children.
3. Annuity of six pounds (per annum) each for all poor persons, decayed tradesmen, and others (supposed seventy thousand) of the age of fifty years, and until sixty.
4. Annuity of ten pounds each for life for all poor persons, decayed tradesmen, and others (supposed seventy thousand) of the age of sixty years.
5. Donation of twenty shillings each for fifty thousand births.
6. Donation of twenty shillings each for twenty thousand marriages.
7. Allowance of twenty thousand pounds for the funeral expenses of persons travelling for work, and dying at a distance from their friends.
8. Employment at all times for the casual poor in the cities of London and Westminster.

Second Enumeration

9. Abolition of the tax on houses and windows.
10. Allowance of three shillings per week for life to fifteen thousand disbanded soldiers, and a proportionate allowance to the officers of the disbanded corps.
11. Increase of pay to the remaining soldiers of L19,500 annually.
12. The same allowance to the disbanded navy, and the same increase of pay, as to the army.

13. Abolition of the commutation tax.

14. Plan of a progressive tax, operating to extirpate the unjust and unnatural law of primogeniture, and the vicious influence of the aristocratical system.*[39](#)

There yet remains, as already stated, one million of surplus taxes. Some part of this will be required for circumstances that do not immediately present themselves, and such part as shall not be wanted, will admit of a further reduction of taxes equal to that amount.

Among the claims that justice requires to be made, the condition of the inferior revenue-officers will merit attention. It is a reproach to any government to waste such an immensity of revenue in sinecures and nominal and unnecessary places and officers, and not allow even a decent livelihood to those on whom the labour falls. The salary of the inferior officers of the revenue has stood at the petty pittance of less than fifty pounds a year for upwards of one hundred years. It ought to be seventy. About one hundred and twenty thousand pounds applied to this purpose, will put all those salaries in a decent condition.

This was proposed to be done almost twenty years ago, but the treasury-board then in being, startled at it, as it might lead to similar expectations from the army and navy; and the event was, that the King, or somebody for him, applied to parliament to have his own salary raised an hundred thousand pounds a year, which being done, every thing else was laid aside.

With respect to another class of men, the inferior clergy, I forbear to enlarge on their condition; but all partialities and prejudices for, or against, different modes and forms of religion aside, common justice will determine, whether there ought to be an income of twenty or thirty pounds a year to one man, and of ten thousand to another. I speak on this subject with the more freedom, because I am known not to be a Presbyterian; and therefore the cant cry of court sycophants, about church and meeting, kept up to amuse and bewilder the nation, cannot be raised against me.

Ye simple men on both sides the question, do you not see through this courtly craft? If ye can be kept disputing and wrangling about church and meeting, ye just answer the purpose of every courtier, who lives the while on the spoils of the taxes, and laughs at your credulity. Every religion is good that teaches man to be good; and I know of none that instructs him to be bad.

All the before-mentioned calculations suppose only sixteen millions and an half of taxes paid into the exchequer, after the expense of collection and drawbacks at the custom-house and excise-office are deducted; whereas the sum paid into the exchequer is very nearly, if not quite, seventeen millions. The taxes raised in Scotland and Ireland are expended in those countries, and therefore their savings will come out of their own taxes; but if any part be paid into the English exchequer, it might be remitted. This will not make one hundred thousand pounds a year difference.

There now remains only the national debt to be considered. In the year 1789, the interest, exclusive of the tontine, was L9,150,138. How much the capital has been reduced since that time the minister best knows. But after paying the interest, abolishing the tax on houses and windows, the commutation tax, and the poor-rates; and making all the provisions for the poor, for the education of children, the support of the aged, the disbanded part of the army and navy, and increasing the pay of the remainder, there will be a surplus of one million.

The present scheme of paying off the national debt appears to me, speaking as an indifferent person, to be an ill-concerted, if not a fallacious job. The burthen of the national debt consists not in its being so many millions, or so many hundred millions, but in the quantity of taxes collected every year to pay the interest. If this quantity continues the same, the burthen of the national debt is the same to all intents and purposes, be the capital more or less. The only knowledge which the public can have of the reduction of the debt, must be through the reduction of taxes for paying the interest. The debt, therefore, is not reduced one farthing to the public by all the millions that have been paid; and it would require more money now to purchase up the capital, than when the scheme began.

Digressing for a moment at this point, to which I shall return again, I look back to the appointment of Mr. Pitt, as minister.

I was then in America. The war was over; and though resentment had ceased, memory was still alive.

When the news of the coalition arrived, though it was a matter of no concern to I felt it as a man. It had something in it which shocked, by publicly sporting with decency, if not with principle. It was impudence in Lord North; it was a want of firmness in Mr. Fox.

Mr. Pitt was, at that time, what may be called a maiden character in politics. So far from being hackneyed, he appeared not to be initiated into the first mysteries of court intrigue. Everything was in his favour. Resentment against the coalition served as friendship to him, and his ignorance of vice was credited for virtue. With the return of peace, commerce and prosperity would rise of itself; yet even this increase was thrown to his account.

When he came to the helm, the storm was over, and he had nothing to interrupt his course. It required even ingenuity to be wrong, and he succeeded. A little time showed him the same sort of man as his predecessors had been. Instead of profiting by those errors which had accumulated a burthen of taxes unparalleled in the world, he sought, I might almost say, he advertised for enemies, and provoked means to increase taxation. Aiming at something, he knew not what, he ransacked Europe and India for adventures, and abandoning the fair pretensions he began with, he became the knight-errant of modern times.

It is unpleasant to see character throw itself away. It is more so to see one's-self deceived. Mr. Pitt had merited nothing, but he promised much. He gave symptoms of a mind superior to the meanness and corruption of courts. His apparent candour encouraged expectations; and the public confidence, stunned, wearied, and confounded by a chaos of parties, revived and attached itself to him. But mistaking, as he has done, the disgust of the nation against the coalition, for merit in himself, he has rushed into measures which a man less supported would not have presumed to act.

All this seems to show that change of ministers amounts to nothing. One goes out, another comes in, and still the same measures, vices, and extravagance are pursued. It signifies not who is minister. The defect lies in the system. The foundation and the superstructure of the government is bad. Prop it as you please, it continually sinks into court government, and ever will.

I return, as I promised, to the subject of the national debt, that offspring of the Dutch-Anglo revolution, and its handmaid the Hanover succession.

But it is now too late to enquire how it began. Those to whom it is due have advanced the money; and whether it was well or ill spent, or pocketed, is not their crime. It is, however, easy to see, that as the nation proceeds in

contemplating the nature and principles of government, and to understand taxes, and make comparisons between those of America, France, and England, it will be next to impossible to keep it in the same torpid state it has hitherto been. Some reform must, from the necessity of the case, soon begin. It is not whether these principles press with little or much force in the present moment. They are out. They are abroad in the world, and no force can stop them. Like a secret told, they are beyond recall; and he must be blind indeed that does not see that a change is already beginning.

Nine millions of dead taxes is a serious thing; and this not only for bad, but in a great measure for foreign government. By putting the power of making war into the hands of the foreigners who came for what they could get, little else was to be expected than what has happened.

Reasons are already advanced in this work, showing that whatever the reforms in the taxes may be, they ought to be made in the current expenses of government, and not in the part applied to the interest of the national debt. By remitting the taxes of the poor, they will be totally relieved, and all discontent will be taken away; and by striking off such of the taxes as are already mentioned, the nation will more than recover the whole expense of the mad American war.

There will then remain only the national debt as a subject of discontent; and in order to remove, or rather to prevent this, it would be good policy in the stockholders themselves to consider it as property, subject like all other property, to bear some portion of the taxes. It would give to it both popularity and security, and as a great part of its present inconvenience is balanced by the capital which it keeps alive, a measure of this kind would so far add to that balance as to silence objections.

This may be done by such gradual means as to accomplish all that is necessary with the greatest ease and convenience.

Instead of taxing the capital, the best method would be to tax the interest by some progressive ratio, and to lessen the public taxes in the same proportion as the interest diminished.

Suppose the interest was taxed one halfpenny in the pound the first year, a penny more the second, and to proceed by a certain ratio to be determined upon, always less than any other tax upon property. Such a tax would be subtracted from the interest at the time of payment, without any expense of collection.

One halfpenny in the pound would lessen the interest and consequently the taxes, twenty thousand pounds. The tax on wagons amounts to this sum, and this tax might be taken off the first year. The second year the tax on female servants, or some other of the like amount might also be taken off, and by proceeding in this manner, always applying the tax raised from the property of the debt toward its extinction, and not carry it to the current services, it would liberate itself.

The stockholders, notwithstanding this tax, would pay less taxes than they do now. What they would save by the extinction of the poor-rates, and the tax on houses and windows, and the commutation tax, would be considerably greater than what this tax, slow, but certain in its operation, amounts to.

It appears to me to be prudence to look out for measures that may apply under any circumstances that may approach. There is, at this moment, a crisis in the affairs of Europe that requires it. Preparation now is wisdom. If taxation be once let loose, it will be difficult to re-instate it; neither would the relief be so effectual, as if it proceeded by some certain and gradual reduction.

The fraud, hypocrisy, and imposition of governments, are now beginning to be too well understood to promise them any long career. The farce of monarchy and aristocracy, in all countries, is following that of chivalry, and Mr. Burke is dressing aristocracy, in all countries, is following that of chivalry, and Mr. Burke is dressing for the funeral. Let it then pass quietly to the tomb of all other follies, and the mourners be comforted.

The time is not very distant when England will laugh at itself for sending to Holland, Hanover, Zell, or Brunswick for men, at the expense of a million a year, who understood neither her laws, her language, nor her interest, and whose capacities would scarcely have fitted them for the office of a parish constable. If government could be trusted to such hands, it must be some easy and simple thing indeed, and materials fit for all the purposes may be found in every town and village in England.

When it shall be said in any country in the world, my poor are happy; neither ignorance nor distress is to be found among them; my jails are empty of prisoners, my streets of beggars; the aged are not in want, the taxes are not oppressive; the rational world is my friend, because I am the

friend of its happiness: when these things can be said, then may that country boast its constitution and its government.

Within the space of a few years we have seen two revolutions, those of America and France. In the former, the contest was long, and the conflict severe; in the latter, the nation acted with such a consolidated impulse, that having no foreign enemy to contend with, the revolution was complete in power the moment it appeared. From both those instances it is evident, that the greatest forces that can be brought into the field of revolutions, are reason and common interest. Where these can have the opportunity of acting, opposition dies with fear, or crumbles away by conviction. It is a great standing which they have now universally obtained; and we may hereafter hope to see revolutions, or changes in governments, produced with the same quiet operation by which any measure, determinable by reason and discussion, is accomplished.

When a nation changes its opinion and habits of thinking, it is no longer to be governed as before; but it would not only be wrong, but bad policy, to attempt by force what ought to be accomplished by reason. Rebellion consists in forcibly opposing the general will of a nation, whether by a party or by a government. There ought, therefore, to be in every nation a method of occasionally ascertaining the state of public opinion with respect to government. On this point the old government of France was superior to the present government of England, because, on extraordinary occasions, recourse could be had what was then called the States General. But in England there are no such occasional bodies; and as to those who are now called Representatives, a great part of them are mere machines of the court, placemen, and dependants.

I presume, that though all the people of England pay taxes, not an hundredth part of them are electors, and the members of one of the houses of parliament represent nobody but themselves. There is, therefore, no power but the voluntary will of the people that has a right to act in any matter respecting a general reform; and by the same right that two persons can confer on such a subject, a thousand may. The object, in all such preliminary proceedings, is to find out what the general sense of a nation is, and to be governed by it. If it prefer a bad or defective government to a reform or choose to pay ten times more taxes than there is any occasion for, it has a right so to do; and so long as the majority do not impose conditions

on the minority, different from what they impose upon themselves, though there may be much error, there is no injustice. Neither will the error continue long. Reason and discussion will soon bring things right, however wrong they may begin. By such a process no tumult is to be apprehended. The poor, in all countries, are naturally both peaceable and grateful in all reforms in which their interest and happiness is included. It is only by neglecting and rejecting them that they become tumultuous.

The objects that now press on the public attention are, the French revolution, and the prospect of a general revolution in governments. Of all nations in Europe there is none so much interested in the French revolution as England. Enemies for ages, and that at a vast expense, and without any national object, the opportunity now presents itself of amicably closing the scene, and joining their efforts to reform the rest of Europe. By doing this they will not only prevent the further effusion of blood, and increase of taxes, but be in a condition of getting rid of a considerable part of their present burthens, as has been already stated. Long experience however has shown, that reforms of this kind are not those which old governments wish to promote, and therefore it is to nations, and not to such governments, that these matters present themselves.

In the preceding part of this work, I have spoken of an alliance between England, France, and America, for purposes that were to be afterwards mentioned. Though I have no direct authority on the part of America, I have good reason to conclude, that she is disposed to enter into a consideration of such a measure, provided, that the governments with which she might ally, acted as national governments, and not as courts enveloped in intrigue and mystery. That France as a nation, and a national government, would prefer an alliance with England, is a matter of certainty. Nations, like individuals, who have long been enemies, without knowing each other, or knowing why, become the better friends when they discover the errors and impositions under which they had acted.

Admitting, therefore, the probability of such a connection, I will state some matters by which such an alliance, together with that of Holland, might render service, not only to the parties immediately concerned, but to all Europe.

It is, I think, certain, that if the fleets of England, France, and Holland were confederated, they could propose, with effect, a limitation to, and a

general dismantling of, all the navies in Europe, to a certain proportion to be agreed upon.

First, That no new ship of war shall be built by any power in Europe, themselves included.

Second, That all the navies now in existence shall be put back, suppose to one-tenth of their present force. This will save to France and England, at least two millions sterling annually to each, and their relative force be in the same proportion as it is now. If men will permit themselves to think, as rational beings ought to think, nothing can appear more ridiculous and absurd, exclusive of all moral reflections, than to be at the expense of building navies, filling them with men, and then hauling them into the ocean, to try which can sink each other fastest. Peace, which costs nothing, is attended with infinitely more advantage, than any victory with all its expense. But this, though it best answers the purpose of nations, does not that of court governments, whose habited policy is pretence for taxation, places, and offices.

It is, I think, also certain, that the above confederated powers, together with that of the United States of America, can propose with effect, to Spain, the independence of South America, and the opening those countries of immense extent and wealth to the general commerce of the world, as North America now is.

With how much more glory, and advantage to itself, does a nation act, when it exerts its powers to rescue the world from bondage, and to create itself friends, than when it employs those powers to increase ruin, desolation, and misery. The horrid scene that is now acting by the English government in the East-Indies, is fit only to be told of Goths and Vandals, who, destitute of principle, robbed and tortured the world they were incapable of enjoying.

The opening of South America would produce an immense field of commerce, and a ready money market for manufactures, which the eastern world does not. The East is already a country full of manufactures, the importation of which is not only an injury to the manufactures of England, but a drain upon its specie. The balance against England by this trade is regularly upwards of half a million annually sent out in the East-India ships in silver; and this is the reason, together with German intrigue, and German subsidies, that there is so little silver in England.

But any war is harvest to such governments, however ruinous it may be to a nation. It serves to keep up deceitful expectations which prevent people from looking into the defects and abuses of government. It is the lo here! and the lo there! that amuses and cheats the multitude.

Never did so great an opportunity offer itself to England, and to all Europe, as is produced by the two Revolutions of America and France. By the former, freedom has a national champion in the western world; and by the latter, in Europe. When another nation shall join France, despotism and bad government will scarcely dare to appear. To use a trite expression, the iron is becoming hot all over Europe. The insulted German and the enslaved Spaniard, the Russ and the Pole, are beginning to think. The present age will hereafter merit to be called the Age of Reason, and the present generation will appear to the future as the Adam of a new world.

When all the governments of Europe shall be established on the representative system, nations will become acquainted, and the animosities and prejudices fomented by the intrigue and artifice of courts, will cease. The oppressed soldier will become a freeman; and the tortured sailor, no longer dragged through the streets like a felon, will pursue his mercantile voyage in safety. It would be better that nations should continue the pay of their soldiers during their lives, and give them their discharge and restore them to freedom and their friends, and cease recruiting, than retain such multitudes at the same expense, in a condition useless to society and to themselves. As soldiers have hitherto been treated in most countries, they might be said to be without a friend. Shunned by the citizen on an apprehension of their being enemies to liberty, and too often insulted by those who commanded them, their condition was a double oppression. But where genuine principles of liberty pervade a people, every thing is restored to order; and the soldier civilly treated, returns the civility.

In contemplating revolutions, it is easy to perceive that they may arise from two distinct causes; the one, to avoid or get rid of some great calamity; the other, to obtain some great and positive good; and the two may be distinguished by the names of active and passive revolutions. In those which proceed from the former cause, the temper becomes incensed and soured; and the redress, obtained by danger, is too often sullied by revenge. But in those which proceed from the latter, the heart, rather animated than agitated, enters serenely upon the subject. Reason and discussion,

persuasion and conviction, become the weapons in the contest, and it is only when those are attempted to be suppressed that recourse is had to violence. When men unite in agreeing that a thing is good, could it be obtained, such for instance as relief from a burden of taxes and the extinction of corruption, the object is more than half accomplished. What they approve as the end, they will promote in the means.

Will any man say, in the present excess of taxation, falling so heavily on the poor, that a remission of five pounds annually of taxes to one hundred and four thousand poor families is not a good thing? Will he say that a remission of seven pounds annually to one hundred thousand other poor families—of eight pounds annually to another hundred thousand poor families, and of ten pounds annually to fifty thousand poor and widowed families, are not good things? And, to proceed a step further in this climax, will he say that to provide against the misfortunes to which all human life is subject, by securing six pounds annually for all poor, distressed, and reduced persons of the age of fifty and until sixty, and of ten pounds annually after sixty, is not a good thing?

Will he say that an abolition of two millions of poor-rates to the house-keepers, and of the whole of the house and window-light tax and of the commutation tax is not a good thing? Or will he say that to abolish corruption is a bad thing?

If, therefore, the good to be obtained be worthy of a passive, rational, and costless revolution, it would be bad policy to prefer waiting for a calamity that should force a violent one. I have no idea, considering the reforms which are now passing and spreading throughout Europe, that England will permit herself to be the last; and where the occasion and the opportunity quietly offer, it is better than to wait for a turbulent necessity. It may be considered as an honour to the animal faculties of man to obtain redress by courage and danger, but it is far greater honour to the rational faculties to accomplish the same object by reason, accommodation, and general consent.*[40](#)

As reforms, or revolutions, call them which you please, extend themselves among nations, those nations will form connections and conventions, and when a few are thus confederated, the progress will be rapid, till despotism and corrupt government be totally expelled, at least out of two quarters of the world, Europe and America. The Algerine piracy may

then be commanded to cease, for it is only by the malicious policy of old governments, against each other, that it exists.

Throughout this work, various and numerous as the subjects are, which I have taken up and investigated, there is only a single paragraph upon religion, viz. "that every religion is good that teaches man to be good."

I have carefully avoided to enlarge upon the subject, because I am inclined to believe that what is called the present ministry, wish to see contentions about religion kept up, to prevent the nation turning its attention to subjects of government. It is as if they were to say, "Look that way, or any way, but this."

But as religion is very improperly made a political machine, and the reality of it is thereby destroyed, I will conclude this work with stating in what light religion appears to me.

If we suppose a large family of children, who, on any particular day, or particular circumstance, made it a custom to present to their parents some token of their affection and gratitude, each of them would make a different offering, and most probably in a different manner. Some would pay their congratulations in themes of verse and prose, by some little devices, as their genius dictated, or according to what they thought would please; and, perhaps, the least of all, not able to do any of those things, would ramble into the garden, or the field, and gather what it thought the prettiest flower it could find, though, perhaps, it might be but a simple weed. The parent would be more gratified by such a variety, than if the whole of them had acted on a concerted plan, and each had made exactly the same offering. This would have the cold appearance of contrivance, or the harsh one of control. But of all unwelcome things, nothing could more afflict the parent than to know, that the whole of them had afterwards gotten together by the ears, boys and girls, fighting, scratching, reviling, and abusing each other about which was the best or the worst present.

Why may we not suppose, that the great Father of all is pleased with variety of devotion; and that the greatest offence we can act, is that by which we seek to torment and render each other miserable? For my own part, I am fully satisfied that what I am now doing, with an endeavour to conciliate mankind, to render their condition happy, to unite nations that have hitherto been enemies, and to extirpate the horrid practice of war, and

break the chains of slavery and oppression is acceptable in his sight, and being the best service I can perform, I act it cheerfully.

I do not believe that any two men, on what are called doctrinal points, think alike who think at all. It is only those who have not thought that appear to agree. It is in this case as with what is called the British constitution. It has been taken for granted to be good, and encomiums have supplied the place of proof. But when the nation comes to examine into its principles and the abuses it admits, it will be found to have more defects than I have pointed out in this work and the former.

As to what are called national religions, we may, with as much propriety, talk of national Gods. It is either political craft or the remains of the Pagan system, when every nation had its separate and particular deity. Among all the writers of the English church clergy, who have treated on the general subject of religion, the present Bishop of Llandaff has not been excelled, and it is with much pleasure that I take this opportunity of expressing this token of respect.

I have now gone through the whole of the subject, at least, as far as it appears to me at present. It has been my intention for the five years I have been in Europe, to offer an address to the people of England on the subject of government, if the opportunity presented itself before I returned to America. Mr. Burke has thrown it in my way, and I thank him. On a certain occasion, three years ago, I pressed him to propose a national convention, to be fairly elected, for the purpose of taking the state of the nation into consideration; but I found, that however strongly the parliamentary current was then setting against the party he acted with, their policy was to keep every thing within that field of corruption, and trust to accidents. Long experience had shown that parliaments would follow any change of ministers, and on this they rested their hopes and their expectations.

Formerly, when divisions arose respecting governments, recourse was had to the sword, and a civil war ensued. That savage custom is exploded by the new system, and reference is had to national conventions. Discussion and the general will arbitrates the question, and to this, private opinion yields with a good grace, and order is preserved uninterrupted.

Some gentlemen have affected to call the principles upon which this work and the former part of Rights of Man are founded, "a new-fangled doctrine." The question is not whether those principles are new or old, but

whether they are right or wrong. Suppose the former, I will show their effect by a figure easily understood.

It is now towards the middle of February. Were I to take a turn into the country, the trees would present a leafless, wintery appearance. As people are apt to pluck twigs as they walk along, I perhaps might do the same, and by chance might observe, that a single bud on that twig had begun to swell. I should reason very unnaturally, or rather not reason at all, to suppose this was the only bud in England which had this appearance. Instead of deciding thus, I should instantly conclude, that the same appearance was beginning, or about to begin, every where; and though the vegetable sleep will continue longer on some trees and plants than on others, and though some of them may not blossom for two or three years, all will be in leaf in the summer, except those which are rotten. What pace the political summer may keep with the natural, no human foresight can determine. It is, however, not difficult to perceive that the spring is begun.—Thus wishing, as I sincerely do, freedom and happiness to all nations, I close the Second Part.

APPENDIX

As the publication of this work has been delayed beyond the time intended, I think it not improper, all circumstances considered, to state the causes that have occasioned delay.

The reader will probably observe, that some parts in the plan contained in this work for reducing the taxes, and certain parts in Mr. Pitt's speech at the opening of the present session, Tuesday, January 31, are so much alike as to induce a belief, that either the author had taken the hint from Mr. Pitt, or Mr. Pitt from the author.—I will first point out the parts that are similar, and then state such circumstances as I am acquainted with, leaving the reader to make his own conclusion.

Considering it as almost an unprecedented case, that taxes should be proposed to be taken off, it is equally extraordinary that such a measure should occur to two persons at the same time; and still more so (considering the vast variety and multiplicity of taxes) that they should hit on the same specific taxes. Mr. Pitt has mentioned, in his speech, the tax on Carts and Wagons—that on Female Servants—the lowering the tax on Candles and the taking off the tax of three shillings on Houses having under seven windows.

Every one of those specific taxes are a part of the plan contained in this work, and proposed also to be taken off. Mr. Pitt's plan, it is true, goes no further than to a reduction of three hundred and twenty thousand pounds; and the reduction proposed in this work, to nearly six millions. I have made my calculations on only sixteen millions and an half of revenue, still asserting that it was "very nearly, if not quite, seventeen millions." Mr. Pitt states it at 16,690,000. I know enough of the matter to say, that he has not overstated it. Having thus given the particulars, which correspond in this work and his speech, I will state a chain of circumstances that may lead to some explanation.

The first hint for lessening the taxes, and that as a consequence flowing from the French revolution, is to be found in the Address and Declaration of the Gentlemen who met at the Thatched-House Tavern, August 20, 1791. Among many other particulars stated in that Address, is the following, put

as an interrogation to the government opposers of the French Revolution. "Are they sorry that the pretence for new oppressive taxes, and the occasion for continuing many old taxes will be at an end?"

It is well known that the persons who chiefly frequent the Thatched-House Tavern, are men of court connections, and so much did they take this Address and Declaration respecting the French Revolution, and the reduction of taxes in disgust, that the Landlord was under the necessity of informing the Gentlemen, who composed the meeting of the 20th of August, and who proposed holding another meeting, that he could not receive them.*[41](#)

What was only hinted in the Address and Declaration respecting taxes and principles of government, will be found reduced to a regular system in this work. But as Mr. Pitt's speech contains some of the same things respecting taxes, I now come to give the circumstances before alluded to.

The case is: This work was intended to be published just before the meeting of Parliament, and for that purpose a considerable part of the copy was put into the printer's hands in September, and all the remaining copy, which contains the part to which Mr. Pitt's speech is similar, was given to him full six weeks before the meeting of Parliament, and he was informed of the time at which it was to appear. He had composed nearly the whole about a fortnight before the time of Parliament meeting, and had given me a proof of the next sheet. It was then in sufficient forwardness to be out at the time proposed, as two other sheets were ready for striking off. I had before told him, that if he thought he should be straitened for time, I could get part of the work done at another press, which he desired me not to do. In this manner the work stood on the Tuesday fortnight preceding the meeting of Parliament, when all at once, without any previous intimation, though I had been with him the evening before, he sent me, by one of his workmen, all the remaining copy, declining to go on with the work on any consideration.

To account for this extraordinary conduct I was totally at a loss, as he stopped at the part where the arguments on systems and principles of government closed, and where the plan for the reduction of taxes, the education of children, and the support of the poor and the aged begins; and still more especially, as he had, at the time of his beginning to print, and before he had seen the whole copy, offered a thousand pounds for the copy-right, together with the future copy-right of the former part of the Rights of

Man. I told the person who brought me this offer that I should not accept it, and wished it not to be renewed, giving him as my reason, that though I believed the printer to be an honest man, I would never put it in the power of any printer or publisher to suppress or alter a work of mine, by making him master of the copy, or give to him the right of selling it to any minister, or to any other person, or to treat as a mere matter of traffic, that which I intended should operate as a principle.

His refusal to complete the work (which he could not purchase) obliged me to seek for another printer, and this of consequence would throw the publication back till after the meeting of Parliament, otherways it would have appeared that Mr. Pitt had only taken up a part of the plan which I had more fully stated.

Whether that gentleman, or any other, had seen the work, or any part of it, is more than I have authority to say. But the manner in which the work was returned, and the particular time at which this was done, and that after the offers he had made, are suspicious circumstances. I know what the opinion of booksellers and publishers is upon such a case, but as to my own opinion, I choose to make no declaration. There are many ways by which proof sheets may be procured by other persons before a work publicly appears; to which I shall add a certain circumstance, which is,

A ministerial bookseller in Piccadilly who has been employed, as common report says, by a clerk of one of the boards closely connected with the ministry (the board of trade and plantation, of which Hawkesbury is president) to publish what he calls my Life, (I wish his own life and those of the cabinet were as good), used to have his books printed at the same printing-office that I employed; but when the former part of Rights of Man came out, he took his work away in dudgeon; and about a week or ten days before the printer returned my copy, he came to make him an offer of his work again, which was accepted. This would consequently give him admission into the printing-office where the sheets of this work were then lying; and as booksellers and printers are free with each other, he would have the opportunity of seeing what was going on.—Be the case, however, as it may, Mr. Pitt's plan, little and diminutive as it is, would have made a very awkward appearance, had this work appeared at the time the printer had engaged to finish it.

I have now stated the particulars which occasioned the delay, from the proposal to purchase, to the refusal to print. If all the Gentlemen are innocent, it is very unfortunate for them that such a variety of suspicious circumstances should, without any design, arrange themselves together.

Having now finished this part, I will conclude with stating another circumstance.

About a fortnight or three weeks before the meeting of Parliament, a small addition, amounting to about twelve shillings and sixpence a year, was made to the pay of the soldiers, or rather their pay was docked so much less. Some Gentlemen who knew, in part, that this work would contain a plan of reforms respecting the oppressed condition of soldiers, wished me to add a note to the work, signifying that the part upon that subject had been in the printer's hands some weeks before that addition of pay was proposed. I declined doing this, lest it should be interpreted into an air of vanity, or an endeavour to excite suspicion (for which perhaps there might be no grounds) that some of the government gentlemen had, by some means or other, made out what this work would contain: and had not the printing been interrupted so as to occasion a delay beyond the time fixed for publication, nothing contained in this appendix would have appeared.

Thomas Paine

THE AUTHOR'S NOTES FOR PART ONE AND PART TWO

1 ([return](#))

[The main and uniform maxim of the judges is, the greater the truth the greater the libel.]

2 ([return](#))

[Since writing the above, two other places occur in Mr. Burke's pamphlet in which the name of the Bastille is mentioned, but in the same manner. In the one he introduces it in a sort of obscure question, and asks: "Will any ministers who now serve such a king, with but a decent appearance of respect, cordially obey the orders of those whom but the other day, in his name, they had committed to the Bastille?" In the other the taking it is mentioned as implying criminality in the French guards, who assisted in demolishing it. "They have not," says he, "forgot the taking the king's castles at Paris." This is Mr. Burke, who pretends to write on constitutional freedom.]

3 ([return](#))

[I am warranted in asserting this, as I had it personally from M. de la Fayette, with whom I lived in habits of friendship for fourteen years.]

4 ([return](#))

[An account of the expedition to Versailles may be seen in No. 13 of the Revolution de Paris containing the events from the 3rd to the 10th of October, 1789.]

5 ([return](#))

[It is a practice in some parts of the country, when two travellers have but one horse, which, like the national purse, will not carry double, that the one mounts and rides two or three miles ahead, and then ties the horse to a gate and walks on. When the second traveller arrives he takes the horse, rides on, and passes his companion a mile or two, and ties again, and so on—Ride and tie.]

6 ([return](#))

[The word he used was renvoye, dismissed or sent away.]

7 ([return](#))

[When in any country we see extraordinary circumstances taking place, they naturally lead any man who has a talent for observation and investigation, to enquire into the causes. The manufacturers of Manchester, Birmingham, and Sheffield, are the principal manufacturers in England. From

whence did this arise? A little observation will explain the case. The principal, and the generality of the inhabitants of those places, are not of what is called in England, the church established by law: and they, or their fathers, (for it is within but a few years) withdrew from the persecution of the chartered towns, where test-laws more particularly operate, and established a sort of asylum for themselves in those places. It was the only asylum that then offered, for the rest of Europe was worse.—But the case is now changing. France and America bid all comers welcome, and initiate them into all the rights of citizenship. Policy and interest, therefore, will, but perhaps too late, dictate in England, what reason and justice could not. Those manufacturers are withdrawing, and arising in other places. There is now erecting in Passey, three miles from Paris, a large cotton manufactory, and several are already erected in America. Soon after the rejecting the Bill for repealing the test-law, one of the richest manufacturers in England said in my hearing, "England, Sir, is not a country for a dissenter to live in,—we must go to France." These are truths, and it is doing justice to both parties to tell them. It is chiefly the dissenters that have carried English manufactures to the height they are now at, and the same men have it in their power to carry them away; and though those manufactures would afterwards continue in those places, the foreign market will be lost. There frequently appear in the London Gazette, extracts from certain acts to prevent machines and persons, as far as they can extend to persons, from going out of the country. It appears from these that the ill effects of the test-laws and church-establishment begin to be much suspected; but the remedy of force can never supply the remedy of reason. In the progress of less than a century, all the unrepresented part of England, of all denominations, which is at least an hundred times the most numerous, may begin to feel the necessity of a constitution, and then all those matters will come regularly before them.]

8 ([return](#))

[When the English Minister, Mr. Pitt, mentions the French finances again in the English Parliament, it would be well that he noticed this as an example.]

9 ([return](#))

[Mr. Burke, (and I must take the liberty of telling him that he is very unacquainted with French affairs), speaking upon this subject, says, "The first thing that struck me in calling the States-General, was a great departure from the ancient course";—and he soon after says, "From the moment I read the list, I saw distinctly, and very nearly as it has happened, all that was to follow."—Mr. Burke certainly did not see an that was to follow. I endeavoured to impress him, as well before as after the States-General met, that there would be a

revolution; but was not able to make him see it, neither would he believe it. How then he could distinctly see all the parts, when the whole was out of sight, is beyond my comprehension. And with respect to the "departure from the ancient course," besides the natural weakness of the remark, it shows that he is unacquainted with circumstances. The departure was necessary, from the experience had upon it, that the ancient course was a bad one. The States-General of 1614 were called at the commencement of the civil war in the minority of Louis XIII.; but by the class of arranging them by orders, they increased the confusion they were called to compose. The author of *L'Intrigue du Cabinet*, (*Intrigue of the Cabinet*), who wrote before any revolution was thought of in France, speaking of the States-General of 1614, says, "They held the public in suspense five months; and by the questions agitated therein, and the heat with which they were put, it appears that the great (*les grands*) thought more to satisfy their particular passions, than to procure the goods of the nation; and the whole time passed away in altercations, ceremonies and parade."—*L'Intrigue du Cabinet*, vol. i. p. 329.]

10 ([return](#))

[There is a single idea, which, if it strikes rightly upon the mind, either in a legal or a religious sense, will prevent any man or any body of men, or any government, from going wrong on the subject of religion; which is, that before any human institutions of government were known in the world, there existed, if I may so express it, a compact between God and man, from the beginning of time: and that as the relation and condition which man in his individual person stands in towards his Maker cannot be changed by any human laws or human authority, that religious devotion, which is a part of this compact, cannot so much as be made a subject of human laws; and that all laws must conform themselves to this prior existing compact, and not assume to make the compact conform to the laws, which, besides being human, are subsequent thereto. The first act of man, when he looked around and saw himself a creature which he did not make, and a world furnished for his reception, must have been devotion; and devotion must ever continue sacred to every individual man, as it appears, right to him; and governments do mischief by interfering.]

11 ([return](#))

[See this work, Part I starting at line number 254.—N.B. Since the taking of the Bastille, the occurrences have been published: but the matters recorded in this narrative, are prior to that period; and some of them, as may be easily seen, can be but very little known.]

- 12 ([return](#))
[See "Estimate of the Comparative Strength of Great Britain," by G. Chalmers.]
- 13 ([return](#))
[See "Administration of the Finances of France," vol. iii, by M. Neckar.]
- 14 ([return](#))
["Administration of the Finances of France," vol. iii.]
- 15 ([return](#))
[Whether the English commerce does not bring in money, or whether the government sends it out after it is brought in, is a matter which the parties concerned can best explain; but that the deficiency exists, is not in the power of either to disprove. While Dr. Price, Mr. Eden, (now Auckland), Mr. Chalmers, and others, were debating whether the quantity of money in England was greater or less than at the Revolution, the circumstance was not adverted to, that since the Revolution, there cannot have been less than four hundred millions sterling imported into Europe; and therefore the quantity in England ought at least to have been four times greater than it was at the Revolution, to be on a proportion with Europe. What England is now doing by paper, is what she would have been able to do by solid money, if gold and silver had come into the nation in the proportion it ought, or had not been sent out; and she is endeavouring to restore by paper, the balance she has lost by money. It is certain, that the gold and silver which arrive annually in the register-ships to Spain and Portugal, do not remain in those countries. Taking the value half in gold and half in silver, it is about four hundred tons annually; and from the number of ships and galloons employed in the trade of bringing those metals from South-America to Portugal and Spain, the quantity sufficiently proves itself, without referring to the registers.

In the situation England now is, it is impossible she can increase in money. High taxes not only lessen the property of the individuals, but they lessen also the money capital of the nation, by inducing smuggling, which can only be carried on by gold and silver. By the politics which the British Government have carried on with the Inland Powers of Germany and the Continent, it has made an enemy of all the Maritime Powers, and is therefore obliged to keep up a large navy; but though the navy is built in England, the naval stores must be purchased from abroad, and that from countries where the greatest part must be paid for in gold and silver. Some fallacious rumours have been set afloat in England to induce a belief in money, and, among others, that of the French refugees bringing great quantities. The idea is ridiculous. The general part of the money in France is silver;

and it would take upwards of twenty of the largest broad wheel wagons, with ten horses each, to remove one million sterling of silver. Is it then to be supposed, that a few people fleeing on horse-back or in post-chaises, in a secret manner, and having the French Custom-House to pass, and the sea to cross, could bring even a sufficiency for their own expenses?

When millions of money are spoken of, it should be recollected, that such sums can only accumulate in a country by slow degrees, and a long procession of time. The most frugal system that England could now adopt, would not recover in a century the balance she has lost in money since the commencement of the Hanover succession. She is seventy millions behind France, and she must be in some considerable proportion behind every country in Europe, because the returns of the English mint do not show an increase of money, while the registers of Lisbon and Cadiz show an European increase of between three and four hundred millions sterling.]

16 ([return](#))

[That part of America which is generally called New-England, including New-Hampshire, Massachusetts, Rhode-Island, and Connecticut, is peopled chiefly by English descendants. In the state of New-York about half are Dutch, the rest English, Scotch, and Irish. In New-jersey, a mixture of English and Dutch, with some Scotch and Irish. In Pennsylvania about one third are English, another Germans, and the remainder Scotch and Irish, with some Swedes. The States to the southward have a greater proportion of English than the middle States, but in all of them there is a mixture; and besides those enumerated, there are a considerable number of French, and some few of all the European nations, lying on the coast. The most numerous religious denomination are the Presbyterians; but no one sect is established above another, and all men are equally citizens.]

17 ([return](#))

[For a character of aristocracy, the reader is referred to Rights of Man, Part I., starting at line number 1457.]

18 ([return](#))

[The whole amount of the assessed taxes of France, for the present year, is three hundred millions of francs, which is twelve millions and a half sterling; and the incidental taxes are estimated at three millions, making in the whole fifteen millions and a half; which among twenty-four millions of people, is not quite thirteen shillings per head. France has lessened her taxes since the revolution, nearly nine millions sterling annually. Before the revolution, the city of Paris paid a duty of upwards of thirty per cent. on all articles brought into the city. This tax was collected at the city gates.

It was taken off on the first of last May, and the gates taken down.]

19 ([return](#))

[What was called the livre rouge, or the red book, in France, was not exactly similar to the Court Calendar in England; but it sufficiently showed how a great part of the taxes was lavished.]

20 ([return](#))

[In England the improvements in agriculture, useful arts, manufactures, and commerce, have been made in opposition to the genius of its government, which is that of following precedents. It is from the enterprise and industry of the individuals, and their numerous associations, in which, tritely speaking, government is neither pillow nor bolster, that these improvements have proceeded. No man thought about government, or who was in, or who was out, when he was planning or executing those things; and all he had to hope, with respect to government, was, that it would let him alone. Three or four very silly ministerial newspapers are continually offending against the spirit of national improvement, by ascribing it to a minister. They may with as much truth ascribe this book to a minister.]

21 ([return](#))

[With respect to the two houses, of which the English parliament is composed, they appear to be effectually influenced into one, and, as a legislature, to have no temper of its own. The minister, whoever he at any time may be, touches it as with an opium wand, and it sleeps obedience.

But if we look at the distinct abilities of the two houses, the difference will appear so great, as to show the inconsistency of placing power where there can be no certainty of the judgment to use it. Wretched as the state of representation is in England, it is manhood compared with what is called the house of Lords; and so little is this nick-named house regarded, that the people scarcely enquire at any time what it is doing. It appears also to be most under influence, and the furthest removed from the general interest of the nation. In the debate on engaging in the Russian and Turkish war, the majority in the house of peers in favor of it was upwards of ninety, when in the other house, which was more than double its numbers, the majority was sixty-three.]

The proceedings on Mr. Fox's bill, respecting the rights of juries, merits also to be noticed. The persons called the peers were not the objects of that bill. They are already in possession of more privileges than that bill gave to others. They are their own jury, and if any one of that house were prosecuted for a libel, he would not suffer, even upon conviction, for the first offense. Such inequality in laws ought not to exist in any country. The French constitution says, that the law is the

same to every individual, whether to Protect or to punish.
All are equal in its sight.]

22 ([return](#))

[As to the state of representation in England, it is too absurd to be reasoned upon. Almost all the represented parts are decreasing in population, and the unrepresented parts are increasing. A general convention of the nation is necessary to take the whole form of government into consideration.]

23 ([return](#))

[It is related that in the canton of Berne, in Switzerland, it has been customary, from time immemorial, to keep a bear at the public expense, and the people had been taught to believe that if they had not a bear they should all be undone. It happened some years ago that the bear, then in being, was taken sick, and died too suddenly to have his place immediately supplied with another. During this interregnum the people discovered that the corn grew, and the vintage flourished, and the sun and moon continued to rise and set, and everything went on the same as before, and taking courage from these circumstances, they resolved not to keep any more bears; for, said they, "a bear is a very voracious expensive animal, and we were obliged to pull out his claws, lest he should hurt the citizens." The story of the bear of Berne was related in some of the French newspapers, at the time of the flight of Louis XVI., and the application of it to monarchy could not be mistaken in France; but it seems that the aristocracy of Berne applied it to themselves, and have since prohibited the reading of French newspapers.]

24 ([return](#))

[It is scarcely possible to touch on any subject, that will not suggest an allusion to some corruption in governments. The simile of "fortifications," unfortunately involves with it a circumstance, which is directly in point with the matter above alluded to.]

Among the numerous instances of abuse which have been acted or protected by governments, ancient or modern, there is not a greater than that of quartering a man and his heirs upon the public, to be maintained at its expense.

Humanity dictates a provision for the poor; but by what right, moral or political, does any government assume to say, that the person called the Duke of Richmond, shall be maintained by the public? Yet, if common report is true, not a beggar in London can purchase his wretched pittance of coal, without paying towards the civil list of the Duke of Richmond. Were the whole produce of this imposition but a shilling a year, the iniquitous principle would be still the same; but when it amounts, as it is said to do, to no less than twenty thousand pounds per annum, the enormity is too serious to be

permitted to remain. This is one of the effects of monarchy and aristocracy.

In stating this case I am led by no personal dislike. Though I think it mean in any man to live upon the public, the vice originates in the government; and so general is it become, that whether the parties are in the ministry or in the opposition, it makes no difference: they are sure of the guarantee of each other.]

25 ([return](#))

[In America the increase of commerce is greater in proportion than in England. It is, at this time, at least one half more than at any period prior to the revolution. The greatest number of vessels cleared out of the port of Philadelphia, before the commencement of the war, was between eight and nine hundred. In the year 1788, the number was upwards of twelve hundred. As the State of Pennsylvania is estimated at an eighth part of the United States in population, the whole number of vessels must now be nearly ten thousand.]

26 ([return](#))

[When I saw Mr. Pitt's mode of estimating the balance of trade, in one of his parliamentary speeches, he appeared to me to know nothing of the nature and interest of commerce; and no man has more wantonly tortured it than himself. During a period of peace it has been havocked with the calamities of war. Three times has it been thrown into stagnation, and the vessels unmanned by impressing, within less than four years of peace.]

27 ([return](#))

[Rev. William Knowle, master of the grammar school of Thetford, in Norfolk.]

28 ([return](#))

[Politics and self-interest have been so uniformly connected that the world, from being so often deceived, has a right to be suspicious of public characters, but with regard to myself I am perfectly easy on this head. I did not, at my first setting out in public life, nearly seventeen years ago, turn my thoughts to subjects of government from motives of interest, and my conduct from that moment to this proves the fact. I saw an opportunity in which I thought I could do some good, and I followed exactly what my heart dictated. I neither read books, nor studied other people's opinion. I thought for myself. The case was this:—

During the suspension of the old governments in America, both prior to and at the breaking out of hostilities, I was struck with the order and decorum with which everything was conducted, and impressed with the idea that a little more than what society naturally performed was all the government that was necessary, and that monarchy and aristocracy were frauds and impositions upon mankind. On

these principles I published the pamphlet Common Sense. The success it met with was beyond anything since the invention of printing. I gave the copyright to every state in the Union, and the demand ran to not less than one hundred thousand copies. I continued the subject in the same manner, under the title of The Crisis, till the complete establishment of the Revolution.

After the declaration of independence Congress unanimously, and unknown to me, appointed me Secretary in the Foreign Department. This was agreeable to me, because it gave me the opportunity of seeing into the abilities of foreign courts, and their manner of doing business. But a misunderstanding arising between Congress and me, respecting one of their commissioners then in Europe, Mr. Silas Deane, I resigned the office, and declined at the same time the pecuniary offers made by the Ministers of France and Spain, M. Gerald and Don Juan Mirralles.] I had by this time so completely gained the ear and confidence of America, and my own independence was become so visible, as to give me a range in political writing beyond, perhaps, what any man ever possessed in any country, and, what is more extraordinary, I held it undiminished to the end of the war, and enjoy it in the same manner to the present moment. As my object was not myself, I set out with the determination, and happily with the disposition, of not being moved by praise or censure, friendship or calumny, nor of being drawn from my purpose by any personal altercation, and the man who cannot do this is not fit for a public character.

When the war ended I went from Philadelphia to Borden-Town, on the east bank of the Delaware, where I have a small place. Congress was at this time at Prince-Town, fifteen miles distant, and General Washington had taken his headquarters at Rocky Hill, within the neighbourhood of Congress, for the purpose of resigning up his commission (the object for which he accepted it being accomplished), and of retiring to private life. While he was on this business he wrote me the letter which I here subjoin:

"Rocky-Hill, Sept. 10, 1783.

"I have learned since I have been at this place that you are at Borden-Town. Whether for the sake of retirement or economy I know not. Be it for either, for both, or whatever it may, if you will come to this place, and partake with me, I shall be exceedingly happy to see you at it.

"Your presence may remind Congress of your past services to this country, and if it is in my power to impress them, command my best exertions with freedom, as they will be rendered cheerfully by one who entertains a lively sense of the importance of your works, and who, with much pleasure, subscribes himself, Your sincere friend,

G. Washington."

During the war, in the latter end of the year 1780, I formed to myself a design of coming over to England, and communicated it to General Greene, who was then in Philadelphia on his route to the southward, General Washington being then at too great a distance to communicate with immediately. I was strongly impressed with the idea that if I could get over to England without being known, and only remain in safety till I could get out a publication, that I could open the eyes of the country with respect to the madness and stupidity of its Government. I saw that the parties in Parliament had pitted themselves as far as they could go, and could make no new impressions on each other. General Greene entered fully into my views, but the affair of Arnold and Andre happening just after, he changed his mind, under strong apprehensions for my safety, wrote very pressingly to me from Annapolis, in Maryland, to give up the design, which, with some reluctance, I did. Soon after this I accompanied Colonel Lawrens, son of Mr. Lawrens, who was then in the Tower, to France on business from Congress. We landed at L'orient, and while I remained there, he being gone forward, a circumstance occurred that renewed my former design. An English packet from Falmouth to New York, with the Government dispatches on board, was brought into L'orient. That a packet should be taken is no extraordinary thing, but that the dispatches should be taken with it will scarcely be credited, as they are always slung at the cabin window in a bag loaded with cannon-ball, and ready to be sunk at a moment. The fact, however, is as I have stated it, for the dispatches came into my hands, and I read them. The capture, as I was informed, succeeded by the following stratagem:—The captain of the "Madame" privateer, who spoke English, on coming up with the packet, passed himself for the captain of an English frigate, and invited the captain of the packet on board, which, when done, he sent some of his own hands back, and he secured the mail. But be the circumstance of the capture what it may, I speak with certainty as to the Government dispatches. They were sent up to Paris to Count Vergennes, and when Colonel Lawrens and myself returned to America we took the originals to Congress.

By these dispatches I saw into the stupidity of the English Cabinet far more than I otherwise could have done, and I renewed my former design. But Colonel Lawrens was so unwilling to return alone, more especially as, among other matters, we had a charge of upwards of two hundred thousand pounds sterling in money, that I gave in to his wishes, and finally gave up my plan. But I am now certain that if I could have executed it that it would not have been altogether unsuccessful.]

29 ([return](#))

[It is difficult to account for the origin of charter and corporation towns, unless we suppose them to have arisen out of, or been connected with, some species of garrison service. The times in which they began justify this idea. The generality of those towns have been garrisons, and the corporations were charged with the care of the gates of the towns, when no military garrison was present. Their refusing or granting admission to strangers, which has produced the custom of giving, selling, and buying freedom, has more of the nature of garrison authority than civil government. Soldiers are free of all corporations throughout the nation, by the same propriety that every soldier is free of every garrison, and no other persons are. He can follow any employment, with the permission of his officers, in any corporation towns throughout the nation.]

30 ([return](#))

[See Sir John Sinclair's History of the Revenue. The land-tax in 1646 was L2,473,499.]

31 ([return](#))

[Several of the court newspapers have of late made frequent mention of Wat Tyler. That his memory should be traduced by court sycophants and an those who live on the spoil of a public is not to be wondered at. He was, however, the means of checking the rage and injustice of taxation in his time, and the nation owed much to his valour. The history is concisely this:—In the time of Richard II. a poll tax was levied of one shilling per head upon every person in the nation of whatever estate or condition, on poor as well as rich, above the age of fifteen years. If any favour was shown in the law it was to the rich rather than to the poor, as no person could be charged more than twenty shillings for himself, family and servants, though ever so numerous; while all other families, under the number of twenty were charged per head. Poll taxes had always been odious, but this being also oppressive and unjust, it excited as it naturally must, universal detestation among the poor and middle classes. The person known by the name of Wat Tyler, whose proper name was Walter, and a tiler by trade, lived at Deptford. The gatherer of the poll tax, on coming to his house, demanded tax for one of his daughters, whom Tyler declared was under the age of fifteen. The tax-gatherer insisted on satisfying himself, and began an indecent examination of the girl, which, enraging the father, he struck him with a hammer that brought him to the ground, and was the cause of his death. This circumstance served to bring the discontent to an issue. The inhabitants of the neighbourhood espoused the cause of Tyler, who in a few days was joined, according to some histories, by upwards of fifty thousand men, and chosen their chief. With this force he marched to

London, to demand an abolition of the tax and a redress of other grievances. The Court, finding itself in a forlorn condition, and, unable to make resistance, agreed, with Richard at its head, to hold a conference with Tyler in Smithfield, making many fair professions, courtier-like, of its dispositions to redress the oppressions. While Richard and Tyler were in conversation on these matters, each being on horseback, Walworth, then Mayor of London, and one of the creatures of the Court, watched an opportunity, and like a cowardly assassin, stabbed Tyler with a dagger, and two or three others falling upon him, he was instantly sacrificed. Tyler appears to have been an intrepid disinterested man with respect to himself. All his proposals made to Richard were on a more just and public ground than those which had been made to John by the Barons, and notwithstanding the sycophancy of historians and men like Mr. Burke, who seek to gloss over a base action of the Court by traducing Tyler, his fame will outlive their falsehood. If the Barons merited a monument to be erected at Runnymede, Tyler merited one in Smithfield.]

32 ([return](#))

[I happened to be in England at the celebration of the centenary of the Revolution of 1688. The characters of William and Mary have always appeared to be detestable; the one seeking to destroy his uncle, and the other her father, to get possession of power themselves; yet, as the nation was disposed to think something of that event, I felt hurt at seeing it ascribe the whole reputation of it to a man who had undertaken it as a job and who, besides what he otherwise got, charged six hundred thousand pounds for the expense of the fleet that brought him from Holland. George the First acted the same close-fisted part as William had done, and bought the Duchy of Bremen with the money he got from England, two hundred and fifty thousand pounds over and above his pay as king, and having thus purchased it at the expense of England, added it to his Hanoverian dominions for his own private profit. In fact, every nation that does not govern itself is governed as a job. England has been the prey of jobs ever since the Revolution.]

33 ([return](#))

[Charles, like his predecessors and successors, finding that war was the harvest of governments, engaged in a war with the Dutch, the expense of which increased the annual expenditure to L1,800,000 as stated under the date of 1666; but the peace establishment was but L1,200,000.]

34 ([return](#))

[Poor-rates began about the time of Henry VIII., when the taxes began to increase, and they have increased as the taxes increased ever since.]

35 ([return](#))

[Reckoning the taxes by families, five to a family, each family pays on an average L12 7s. 6d. per annum. To this sum are to be added the poor-rates. Though all pay taxes in the articles they consume, all do not pay poor-rates. About two millions are exempted: some as not being house-keepers, others as not being able, and the poor themselves who receive the relief. The average, therefore, of poor-rates on the remaining number, is forty shillings for every family of five persons, which make the whole average amount of taxes and rates L14 17s. 6d. For six persons L17 17s. For seven persons L20 16s. 6d. The average of taxes in America, under the new or representative system of government, including the interest of the debt contracted in the war, and taking the population at four millions of souls, which it now amounts to, and it is daily increasing, is five shillings per head, men, women, and children. The difference, therefore, between the two governments is as under:

	<i>England</i>			<i>America</i>		
	<i>L</i>	<i>s.</i>	<i>d.</i>	<i>L</i>	<i>s.</i>	<i>d.</i>
<i>For a family of five persons</i>	14	17	6	1	5	0
<i>For a family of six persons</i>	17	17	0	1	10	0
<i>For a family of seven persons</i>	20	16	6	1	15	0

36 ([return](#))

[Public schools do not answer the general purpose of the poor. They are chiefly in corporation towns from which the country towns and villages are excluded, or, if admitted, the distance occasions a great loss of time. Education, to be useful to the poor, should be on the spot, and the best method, I believe, to accomplish this is to enable the parents to pay the expenses themselves. There are always persons of both sexes to be found in every village, especially when growing into years, capable of such an undertaking. Twenty children at ten shillings each (and that not more than six months each year) would be as much as some livings amount to in the remotest parts of England, and there are often distressed clergymen's widows to whom such an income would be acceptable. Whatever is given on this account to children answers two purposes. To them it is education—to those who educate them it is a livelihood.]

37 ([return](#))

[The tax on beer brewed for sale, from which the aristocracy are exempt, is almost one million more than the present commutation tax, being by the returns of 1788, L1,666,152—and, consequently, they ought to take on themselves the amount of the commutation tax, as they are already exempted from one which is almost a million greater.]

38 ([return](#))

[See the Reports on the Corn Trade.]

39 ([return](#))

[When enquiries are made into the condition of the poor, various degrees of distress will most probably be found, to render a different arrangement preferable to that which is already proposed. Widows with families will be in greater want than where there are husbands living. There is also a difference in the expense of living in different counties: and more so in fuel.

<i>Suppose then fifty thousand extraordinary cases, at</i>	
<i>the rate of ten pounds per family per annum</i>	<i>L500,000</i>
<i>100,000 families, at L8 per family per annum</i>	<i>800,000</i>
<i>100,000 families, at L7 per family per annum</i>	<i>700,000</i>
<i>104,000 families, at L5 per family per annum</i>	<i>520,000</i>
<i>And instead of ten shillings per head for the education</i>	
<i>of other children, to allow fifty shillings per family</i>	
<i>for that purpose to fifty thousand families</i>	<i>250,000</i>
	<i>L2,770,000</i>
<i>140,000 aged persons as before</i>	<i>1,120,000</i>
	<i>L3,890,000</i>

This arrangement amounts to the same sum as stated in this work, Part II, line number 1068, including the L250,000 for education; but it provides (including the aged people) for four hundred and four thousand families, which is almost one third of an the families in England.]

40 ([return](#))

[I know it is the opinion of many of the most enlightened characters in France (there always will be those who see further into events than others), not only among the general mass of citizens, but of many of the principal members of the former National Assembly, that the monarchical plan will not continue many years in that country. They have found out, that as wisdom cannot be made hereditary, power ought not; and that, for a man to merit a million sterling a year from a nation, he ought to have a mind capable of comprehending from an atom to a universe, which, if he had, he would be above receiving the pay. But they wished not to appear to lead the nation faster than its own reason and interest dictated. In all the conversations where I have been present upon this subject, the idea always was, that when such a time, from the general opinion of the nation, shall arrive, that the honourable and liberal method would be, to make a handsome present in fee simple to the person, whoever he may be, that shall then be in the monarchical office, and for him to retire to the enjoyment of private life, possessing his share of general rights and privileges, and to

be no more accountable to the public for his time and his conduct than any other citizen.]

41 ([return](#))

[The gentleman who signed the address and declaration as chairman of the meeting, Mr. Horne Tooke, being generally supposed to be the person who drew it up, and having spoken much in commendation of it, has been jocularly accused of praising his own work. To free him from this embarrassment, and to save him the repeated trouble of mentioning the author, as he has not failed to do, I make no hesitation in saying, that as the opportunity of benefiting by the French Revolution easily occurred to me, I drew up the publication in question, and showed it to him and some other gentlemen, who, fully approving it, held a meeting for the purpose of making it public, and subscribed to the amount of fifty guineas to defray the expense of advertising. I believe there are at this time, in England, a greater number of men acting on disinterested principles, and determined to look into the nature and practices of government themselves, and not blindly trust, as has hitherto been the case, either to government generally, or to parliaments, or to parliamentary opposition, than at any former period. Had this been done a century ago, corruption and taxation had not arrived to the height they are now at.]

-END OF PART II. -

*** END OF THE PROJECT GUTENBERG EBOOK THE WRITINGS
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